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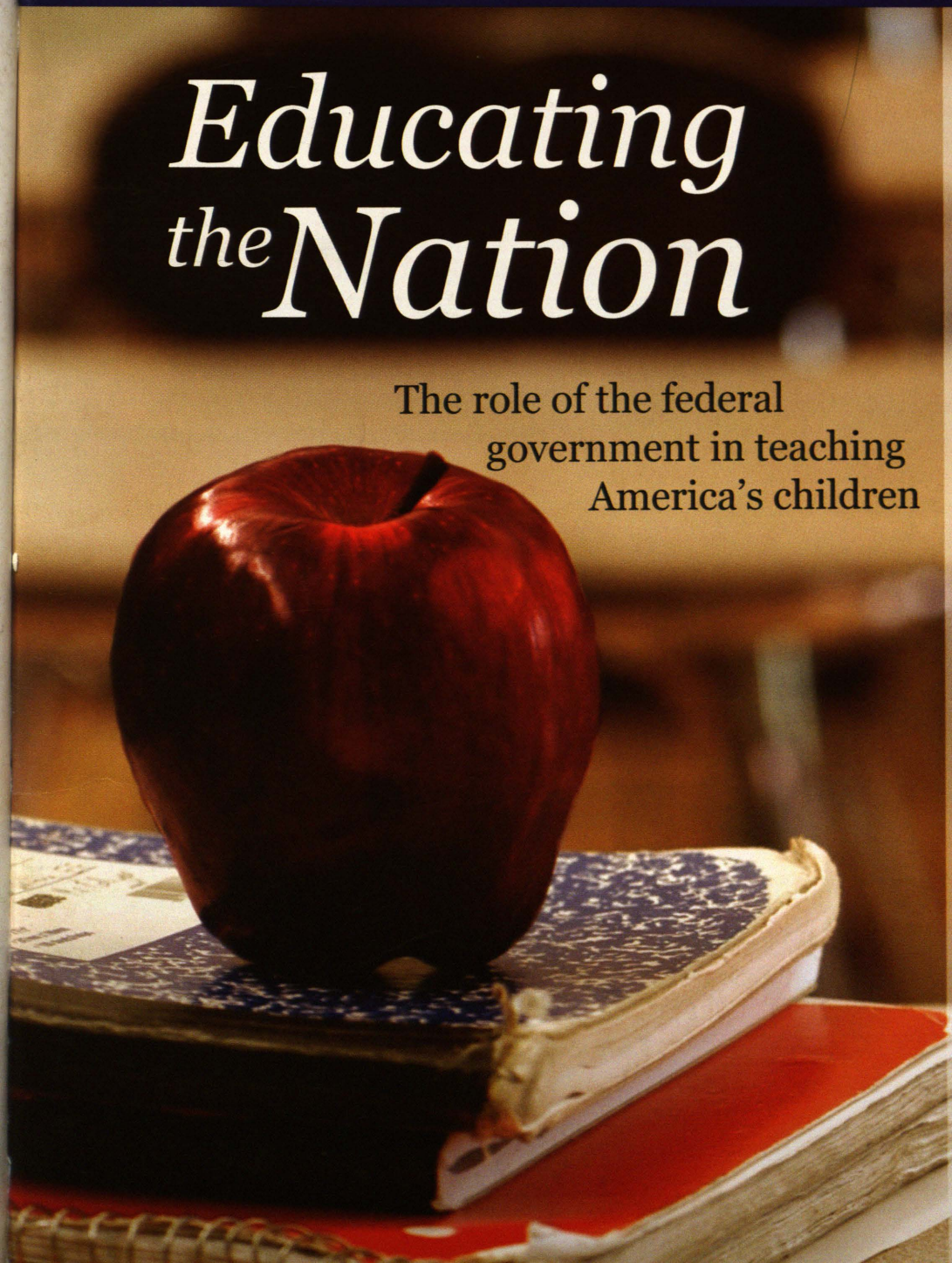
THE POLITIC

Fall 2007 AN UNDERGRADUATE JOURNAL OF POLITICS Volume LXI, Issue IV



Educating the Nation

The role of the federal government in teaching America's children

Featuring

Jeb Bush
Former Governor, Florida

Buck McKeon
U.S. Representative, California

James Comer
Yale University

David Boaz
Cato Institute

Frederick Hess
American Enterprise Institute

Jim Sleeper
Yale University

Also With

Ian Shapiro
Yale University

Robert Shiller
Yale University

Anne Derse
U.S. Ambassador, Azerbaijan

Bruce Klingner
The Heritage Foundation

Ned Lamont
Former U.S. Senate Candidate

THE POLITIC

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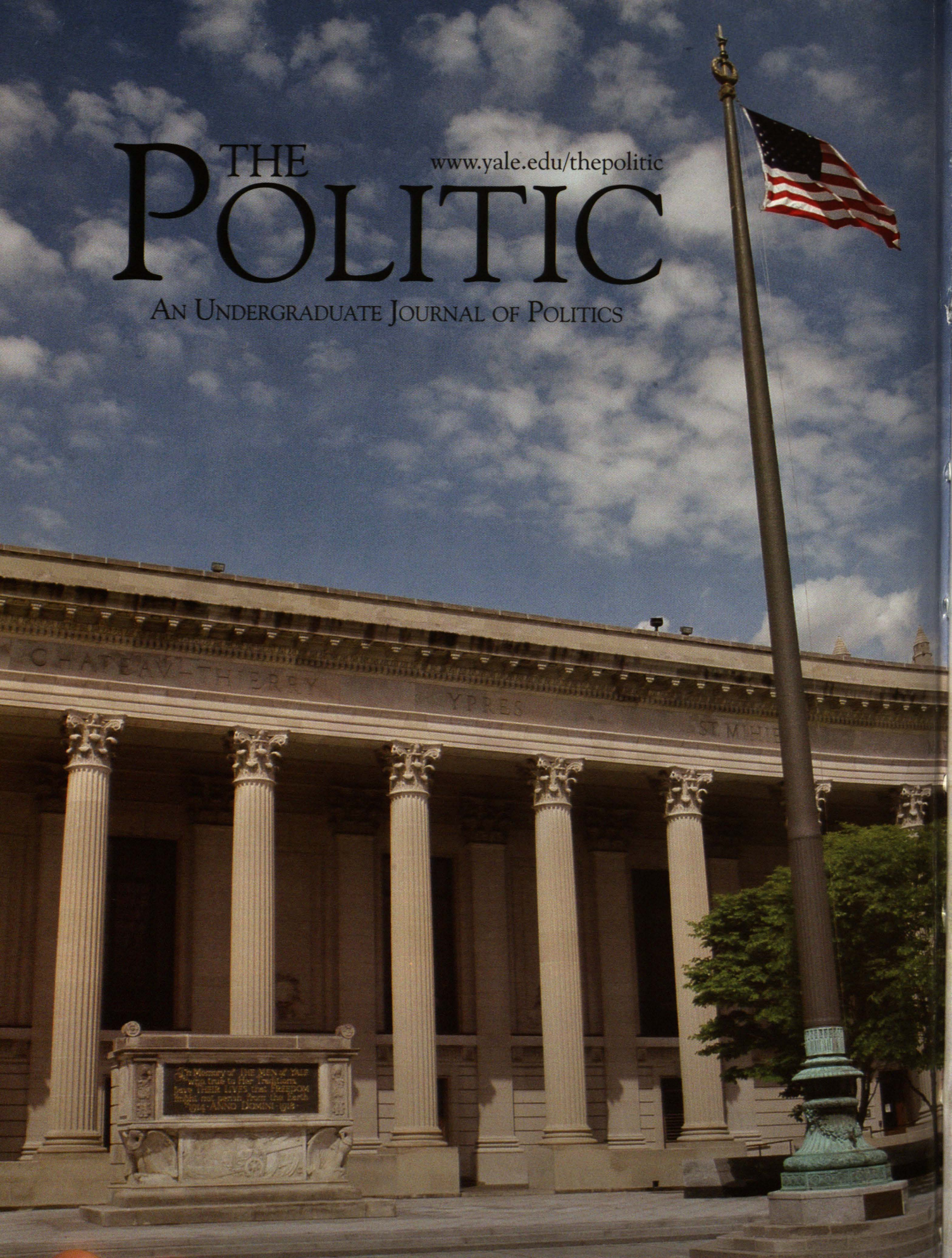
AN UNDERGRADUATE JOURNAL OF POLITICS



THE POLITIC

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FALL 2007

Dear Reader,

Education has received comparatively little attention on the national stage as of late, the presidential candidates generally focusing their stump speeches on matters of foreign policy. In this issue of The Politic, the final for the 2006-07 editorial board, we capture the debate over the role of government in education in the United States, with the perspectives of politicians, policy experts, professors, and students on their concerns with the current system and on their proposed prescriptions for improvement.

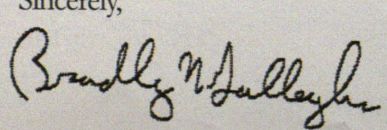
This issue contains some of the most comprehensive interviews The Politic has yet conducted. Former Florida Governor Jeb Bush, who made education a focus of his tenure, reflects on his efforts both in office and since. We interview Congressman Buck McKeon on congressional attitudes toward federal intervention in education. We also hear from David Boaz of the Cato Institute and Frederick Hess of the American Enterprise Institute, who take more libertarian bents on the issue. Yale's Dr. James Comer, a key figure in child learning research, challenges the mechanical approach most schools have taken. Elena Rocha of the Center for American Progress forecasts the future of education reform in the United States, and Ted McConnell of the Campaign to Promote Civics Education advocates including civic-minded material into the learning of academic fundamentals. Yale Professor Jim Sleeper writes on the importance of free dialogue to education and to democracy, and the perspectives of students Michael Camarda '08 and Paul Schneider '08 round out this section, addressing the flaws in social studies education and race in American education, respectively.

Our National section includes interviews with Yale Professors Ian Shapiro and Robert Shiller on American democracy and speculative bubbles, respectively. Former U.S. Senate candidate Ned Lamont reflects, a year later, on his historic run. Abby McCartney '10 writes on the level of debate in the 2008 presidential election and argues that one candidate's plan stands out among them.

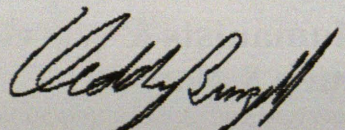
In our International section, U.S. Ambassador to Azerbaijan Anne Derse speaks on what developments in the region mean for the U.S. We also interview Marijan Zumbulev of the International Crisis Group on what the future may hold for the Congo, Yale World Fellow Maria Lisitsyna on her home country of Kyrgyzstan, and Lee Hae-Young of the Association of North Korean Defectors on the impact of the division of Korea on the people of both states. Bruce Klingner of The Heritage Foundation analyzes the transition of power in Japan's prime ministership.

On behalf of our entire staff, we thank you for your continued readership, our sponsors for their continued support, and Yale University for providing an encouraging environment for exploring the greater world.

Sincerely,



Bradley Gallagher



Teddy Bunzel

Reform in the States

An interview with Governor Jeb Bush

Conducted By Michael Camarda

***Jeb Bush** served as governor of Florida from 1999 to 2007. He is founder and chair of the Foundation for Florida's Future—a non-profit organization that advocates for education reform policies—and of the Foundation for Excellence in Education, which supports programs to advance public education.*

Editors' note: The following interview was conducted via e-mail.

What do for you feel are the greatest achievements of your efforts to reform Florida's education system?

I am proud of the bold reforms we enacted which led to rising and sustained student achievement across our state. The results speak for themselves.

Overall, 57 percent of Florida's students in the third through tenth grades are reading at or above grade level, compared to only 47 percent in 2001. Sixty-two percent of Florida students are demonstrating math skills at or above grade level, compared to 50 percent in 2001. These numbers are more than just statistics; they represent students. Today, 211,000 more students are reading and 244,000 more students are doing math at or above grade level than when I took office as governor.

Providing a quality education that gives students the skills to succeed in school and beyond is an accomplishment to be shared by the Florida Legislature, school boards, teachers, parents, and the students themselves.

A comprehensive package of reforms created the opportunity for student success. One single component might have changed a part of the system, but all of the reforms together transformed education.

Standards are meaningless unless you measure student progress toward achieving them. Measuring doesn't matter unless the results are used to develop and implement reforms that will change the outcome and improve results. Accountability only works when it is based on a measurement system that is clear, consistent, and credible.

I have said before that success is never final and reform is never finished. Throughout my eight years in office, we continually took steps forward. For example, since we started grading schools on a scale of A to F in 1999, we raised the standards four times. When the overwhelming number of students demonstrated proficiency in writing, we knew it was time to raise the bar.

If we had stopped at the law that was passed in 1999, we would not have seen the continued, incremental progress in student learning because the system would have normed to the new status quo.

The world in which our students will have to compete is constantly changing, and we have to continually reform the system to keep it focused.

What mentality do you feel is the biggest hindrance, in Florida or in general, to improving education?

We need to continue to change the mindset that it is unfair to hold all students to the same high standards for learning. When we started reforming education, many said it was unfair to hold poor students to the same standards as rich students, or to expect students with disabilities to learn, or to measure students who are learning English as a second language.

I believe it is unfair to blame students for an education system that is failing them. I believe all children can learn. Our responsibility is to create a system to ensure each and every student learns a year's worth of knowledge in a year's time.

The data proves my point.

- 70 percent of Florida's elementary school students are reading at or above grade level, up from 54 percent in 2001.
- 67 percent of elementary school students are doing math at or above grade level, up from 52 percent in 2001.
- Florida's fourth graders are above the national average in both reading and math on the National Assessment of Educational Progress (NAEP), compared to be among the lowest performing students in 1998.
- Middle school students are beginning to make progress,

with 58 percent reading at or above grade level, up from 48 percent in 2001.

- 57 percent of middle school students are doing math at or above grade level, up from 47 percent in 2001.
- This year, for the first time, our eighth graders are above the national average in reading on the NAEP.
- While much more work needs to be done, we are also seeing moderate progress in high school, with six percent more students reading on grade level or higher than in 2001.

We need to continually challenge the status quo. We need to measure progress to identify the reforms that are working and those that are not. We need to clearly and consistently report the results—even those that aren't good—to parents and the public. Then we need to develop new reforms to address weaknesses.

Of your educational policy implementations, which do you feel was the most difficult to enact and why?

Every reform I proposed was met with resistance. Reform is change, and people fear change, even change that will provide clear benefits. For example, I proposed that the state raise the starting salary for teachers to $35,000—up from an average of $31,000—and even that was attacked by the teacher's union.

By far, the reform that is most feared by the establishment is the one that empowers parents with the ability to choose the educational setting that best meets the needs of their child.

The world in which our students will have to compete is constantly changing, and we have to continually reform the system to keep it focused.

In all other aspects of our lives, we have choices—where we work, where we shop, where we live. But in what is arguably one of the most important decisions—where our children go to school—the vast majority of parents have little or no choice.

A public education system that traps poor students in failing schools is fundamentally flawed. Low-income families that can't afford to send their children to private school have few or no options.

To empower parents with the ability to choose, I advocated for several school choice measures, including vouchers for students with disabilities, corporate vouchers for low-income students, voluntary pre-kindergarten vouchers for all Florida's four-year-olds, virtual education, and the expansion of charter schools.

In 1999, I proposed a very small voucher program called Opportunity Scholarships. The program allowed students who were trapped in a school that had been deemed failing for two years to make a choice. These students could choose another higher performing public school or a participating private school.

At the time this legislation passed, only two schools out of more than 3,000 would have met the criteria to trigger a voucher. The day I signed the bill into law, a lawsuit was filed challenging its constitutionality. And for the next six years, we fought to defend the law in the courts. Eventually, the Florida Supreme Court ruled against us and these needy students in one of the most tortured legal decisions I've ever seen. So a great program that served 753 students, 95 percent of whom were minority and 72 percent were low-income, was halted. The program was proven, through independent research, to have improved the public education of the students who remained in the public schools.

Following the Court's decision, I asked the Legislature to put a constitutional amendment on the ballot to give the citizens of Florida the opportunity to approve or reverse that decision. The measure never made it to the voters because it fell one vote shy in the Florida Senate, the victim of political squabbling.

Politically, school choice is gaining strength as more and more Democratic lawmakers begin to see that parental choice in education is becoming a new civil rights movement for minority students. Just a few months ago, long-time Democrat and former Congresswoman Carrie Meek opened a scholarship funding organization to provide tax credit vouchers to low-income students. More and more minority lawmakers are beginning to side with the students, not the teacher's union.

Nationally, school choice seems to be continuing to make baby steps, gaining ground in states like Arizona, which passed a tax credit voucher and recently passed a voucher for foster children. Georgia recently passed a voucher for students with special needs fashioned after Florida's McKay Scholarship for students with disabilities. Utah passed a universal voucher that is under attack and could be reversed through constitutional referendum.

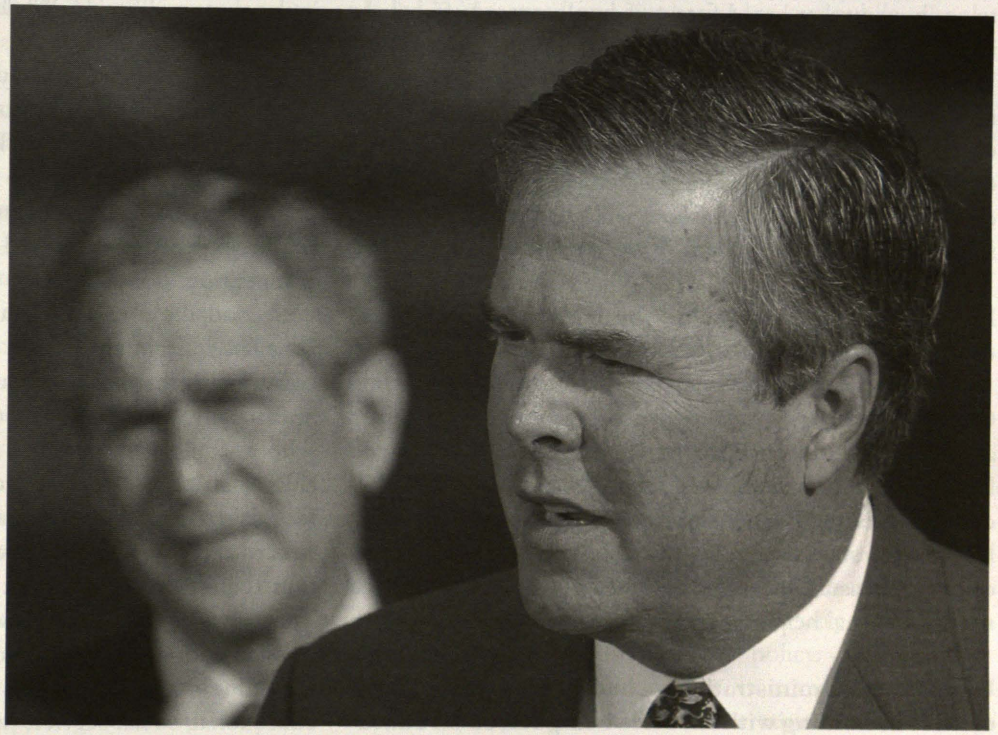
Competition is a good thing—it will create incredible improvements and innovations in our public education system, just as it does in our higher education system. But there are still too many defenders of the "system" who do not want to lose power because their strength lies in the status quo. Because of this, school choice will continue to battleground in Florida as well as nationally.

How do we make better teachers? Is there too much of an emphasis on educational courses for teachers over an actual command of the subject area they are teaching?

Research shows that quality teachers are integral to student

learning. States must find ways to increase the recruitment and retention of high quality teachers. Removing barriers to entry into the profession, improving the leadership in the schools, and creating incentives to attract and keep the best and brightest in the classroom are among the policies that we implemented in Florida.

Prior to 2000, individuals who wanted to become a certified teacher had to earn an "education" degree from an approved college of education or go back to college and take 20 credit hours of "education coursework." Requiring college graduates to go back to college before allowing them to enter the classroom is a barrier that prevents many talented individuals from entering the teaching profession.



A staunch defender: Brother Jeb is one of the strongest supporters of President Bush's education policy and No Child Left Behind. (Jim Watson/AFP/Getty Images)

Over the years, we enacted legislation to provide multiple pathways to enter the teaching profession. We now accept teachers with teaching degrees from other states through reciprocity. An individual who has a subject-area degree can prove they are competent in their subject matter through passage of subject area tests and become a Florida teacher while getting necessary classroom skills through alternative certification programs. Individuals who teach at the community college and university level are now recognized as having sufficient skills to teach K-12 students. We also created an "adjunct" certification so school districts can hire retired astronauts, engineers, doctors, and accountants to teach part-time, without having to pursue state certification. We did something radical and created "competition" in the college of education marketplace. With state approval, we allow community colleges to offer four-year degrees in education. They also run "educator preparation institutes" for individuals who decide to make a career change into education. Last year, Florida had more than twice as many individuals newly certified to teach in our classrooms through "alternative routes" than through state-approved colleges of education.

Getting quality teachers into the classroom is the first step, but keeping quality teachers also requires work. Like any job, leadership is important to the job satisfaction of employees; a poor manager will impact the morale and effectiveness of the workplace. So we created a principal leadership development program that identifies, replicates, and incentivizes high quality school leaders. We also supported programs that took successful business leaders and recruited them to become mentors of school principals. These businessmen and -women teach principals—who are typically former teachers—the basics of being great leaders.

Providing financial incentives can also help retain high quality educators. All teachers are not equal, and yet we have a pay system that treats them as if they were. We created an incentive program that provides cash awards directly to schools that increase student performance. These funds are not subject to the collective bargaining process, and the school decides how to use the funds. During my tenure, more than $850 million was provided to schools through this School Recognition Program. Last year more than 85 percent of the funds were used to provide bonuses to the faculty and staff in the schools.

In my last year in office, we also passed legislation to create "differentiated pay" in the salary schedule. Instead of determining wages based solely upon years of experience and level of degree held, school districts must collectively bargain with market-based criteria such as subject area taught—subjects that are in greater demand should yield a higher salary; economic demographics of the school—all things being equal, teaching in a poorer school is a more difficult task and should demand greater pay; and job duties—taking on leadership duties in the school should be rewarded. This policy goes into effect in the current school year, so it will be interesting

to see how market-based forces, if implemented effectively, impact recruitment and retention of quality teachers.

And finally, we began a policy of providing merit bonuses to the highest performing teachers determined primarily on student learning. This policy is still in its infancy and is extremely controversial, but research shows that providing economic incentives to teachers will raise student learning in the classroom.

How does one truly tackle the issue of grade inflation?

One way to deal with grade inflation is to use a standardized assessment to objectively compare student knowledge and learning across classrooms and schools. Parents whose children earn As and Bs in the classroom yet score below grade level on the state test are right to question why. Without an objective measure, parents may never know that their children need additional help in a subject.

Under your administration, schools received major increases in funding without taxes being raised on education. How was this possible?

Florida cut taxes by $20 billion during my eight years as governor. Lower taxes, fiscal discipline, reform of multiple government programs, a business environment that fostered investment and rewarded entrepreneurialism, and strategic investments in our infrastructure and human capital created one of the most robust economies in our nation. The vibrant economy increased revenue to state coffers.

During the same time, we increased education spending per student by 44 percent, from $4,875 to $7,004. Overall funding for K-12 grew by 69 percent, from $11.1 billion to nearly $18.8 billion.

Increased funding without reform was simply throwing money at the problem. The key was aligning the funding with the reforms to create incentives for raising student achievement without penalizing struggling students.

I created the School Recognition Program to provide incentive funds to schools that increased a letter grade or achieved an A. More than $850 million was distributed to schools through this program.

What do you feel were the major flaws in Bush v. Holmes, which struck down your school voucher program as unconstitutional, and what do you feel is the future of school vouchers in Florida and in the nation?

The Bush v. Holmes decision had two major flaws.

First, the decision ignored the most fundamental principle of Florida constitutional law—that the Legislature has the authority to enact any public policy that is not clearly prohibited in the state constitution. While Florida's constitution requires a uniform and high quality system of public schools, nothing in the constitution takes away the Legislature's discretion to create supplemental educational programs like the Opportunity Scholarship Program. Ironically, when it struck down the Opportunity Scholarship Program, the court eliminated a program that had demonstrably improved public schools by forcing them to respond to greater accountability and competition.

Second, the decision let stand a flawed and discriminatory appellate court interpretation of the provision of the Florida constitution that governs state aid to religious institutions. Specifically, the appellate court had ruled that religious schools could not participate in a scholarship program available to all private schools generally. Rather than interpret Florida's constitution as mandating government neutrality toward religion, the court actually held that our constitution requires discrimination against religious institutions. This twisted ruling unnecessarily puts Florida's constitution at odds with the non-discrimination principles of the U.S. Constitution. Moreover, the decision jeopardizes countless educational, social service, juvenile justice, and corrections programs in Florida, where faith-based organizations provide government-funded services.

The court's decision was so unprecedented and erroneous that one wonders perhaps if it was predicated on the substance of the challenged program, not the cited legal rationale. Fundamental error or not, the decision is definitely final. The only way to reverse this detrimental decision is by constitutional amendment. There appears to be some movement by the Florida Taxation and Budget Reform Commission to put the issue on the ballot next November. This Commission is created in the Florida Constitution and meets every 20 years to review Florida's tax policy and the efficiency and effectiveness of government programs. It are given the authority to put constitutional amendments on the ballot without legislative or court approval.

The Bush v. Holmes decision had a chilling effect on the creation of new programs and the expansion of existing ones, even though we have a waiting list of low-income families who want to participate in the corporate tax credit scholarship program. The only protection for educational choice in the future is for citizens to vote to remove the cloud created by the flawed Bush v. Holmes decision.

What is the rationale for requiring Florida's high school students to declare a major? Will this narrow the scope of knowledge acquired in secondary education?

Many students drop out of high school because they don't see the connection between what they learn in school and what they want to do in life. It is imperative that the education system keep students engaged in learning through graduation.

High school majors can open doors. They allow students to explore an interest or pursue a passion. Majors connect the skills learned in school with the ones needed in the workplace. For many students, making this connection will give high school a clear purpose. Making school meaningful will keep kids coming to class.

High school majors won't limit the scope of knowledge; they will enlarge it. In Florida, students must complete 24 credits for high school graduation. Sixteen of those credits are specified in law—four in math, four in language arts, three in science, three in social studies, one in physical education, and one in fine arts. The remaining eight credits are electives, from which a student selects a major. A high school major consists of four elective courses in one area of interest. Statewide, schools are offering more than 400 majors, including everything from medicine, science, and foreign language to automotive technology, music, culinary arts, and computer graphics.

Just as a college major does not dictate your career in life, neither will a high school major lock the student into a career at an early age. Students will be able to change majors, and a high school major is not required for graduation. The point is to get students engaged and involved in making educational decisions based upon interest and relevance rather than a convenient class schedule or study hall period.

You have encouraged private and corporate investment in school programs. Is there any risk of such monies being used to influence the curriculum by, for example, emphasizing job training in high school over a traditional liberal arts education?

We need to have businesses and citizens invested in and concerned with our public education system. Today's students are tomorrow's business leaders, small business owners, employees, and citizens.

The types of corporate investment I have encouraged are mentoring of students and mentoring of leaders in the school and provision of tax credits to give low-income students private options. These types of investments will create a stronger public education system.

At Yale, history is the most popular major—your brother George himself following that path—but under your A+ Plan for Education, history is not included among the subjects that are tested, these being only reading, writing, math, and science. Why is this so? Does civics fall by the wayside?

One of the principles of reform I have learned over the years is that reform is incremental. When I first proposed the A+ Plan for Education, I focused on the basics—reading, writing, and mathematics as the first of the core that needed to measured and emphasized in our public schools. We expanded testing in reading and math to all grades third through tenth, instead of at only one grade level each in elementary, middle, and high school. A test on science was added in 2003, and just this year, science became part of a school's grade in Florida. Now I believe we need to raise the bar again by adding social studies to the statewide standardized test, a position for which the Foundation for Florida's Future announced its support this year.

What areas of education still need improvement in Florida? What would be the ideal situation for education in the state? And what can current Governor Charlie Crist do to get closer to that ideal?

Merit pay—rewarding outstanding teachers based upon student learning—is still in its infancy and under attack. It is a critical policy in ensuring high quality teaching in the classroom, and Governor Crist has been very strong in his support to continue and expand that policy.

Continuing to raise the bar on how our students and schools are held accountable will be critical. Even though Florida has made tremendous progress, we have much more work that needs to be done in our middle schools and high schools to ensure our students are equipped with the skills necessary for success in the future.

Expanding choice options for parents and creating an individual, customized education system is critical.

Those who want to go back to the time prior to accountability where the only solution to low student performance was more money have not gone away. Leadership is key.

Is Florida much different than the rest of the nation in terms of education? If you had the opportunity, what steps would you take to improve the nation's educational system? What role should the federal government play in education?

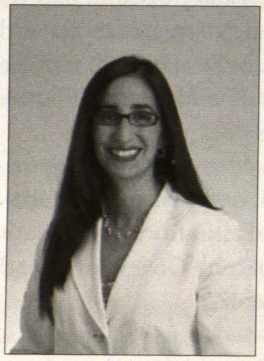
Florida has many unique challenges because of our size, our diversity, and our large migratory populations. But the basic policies we have put in place—high standards, accountability, rewards and consequences for results, and school choice—can be applied in any state and at the national level.

The federal government should create the framework and incentives for states to continue to improve their education systems, and then it should get out of the way.

The No Child Left Behind Act has some great foundations—annual testing of students and grading of schools, accountability and consequences for failure, and choices for students who need it. I have been very clear that there need to be changes to the No Child Left Behind Act so states are not incentivized to lower standards to look good and escape consequences. P

Making Our Schools Modern

How to update our school system for the 21st century



By Elena Rocha

Elena Rocha is Senior Education Analyst at the Center for American Progress.

Witnessing the Modernization of Public Education?

In too many ways, we are today as we were decades ago, a nation of incredible inequity; a country of "haves" and "have nots" with academic achievement gaps so blatantly visible that they appear as walls separating low-income and minority students from their upper-income and white peers. The only difference is that today these gaps are no longer confined by our national borders, but also exist on an international scale.

At the same time, we are confronted daily with the realities of the "American competitiveness agenda." Although education has long been the key to personal security and mobility and has lead to our distinction as a world power, the academic excellence of our students has stagnated over the last 50 years while other countries have been making strides. Still, in the face of globalization, we are only marginally willing to do what it will take for the nation to stay on top—to make the sacrifices necessary to ensure a world class education for every student.

When the No Child Left Behind Act was passed in 2001, it sought to improve the state of public education in America, especially for disadvantaged students. It established an accountability system for student learning, outlined interventions for low-performing schools, required the disaggregation of student-level data by subgroup, held high expectations for students and teachers, and provided the largest federal increase in K–12 education ever. Analogous to a national education reform agenda, the law's intent today remains as solid as it was 42 years ago when the nation's civil rights movement inspired the act's predecessor, the Elementary and Secondary Education Act of 1965.

In recent years, public acceptance of globalization and our interdependency with other countries has led to the modernization of almost every aspect of our public and private lives. One glaring omission, however, has been the transformation of our public education system—the mechanics of which look as they did 100 years ago with procedures reminiscent of the 1950s and goals associated with an era predating Sputnik.

To combat this antiquated system, new proposals from congressional leaders have been woven into the NCLB reauthorization debate. Many of these proposals seek to strengthen the law, enhance flexibility, better serve the students who need the most help, and build a modern education system that will prepare every student for the 21st century. They have been developed by a coalition of education, advocacy, civil rights, and business organizations, and are receiving bipartisan support. Three such proposals include the restructuring of the school calendar and expansion of learning time, the strengthening of the teaching profession to improve learning, and replication of pathways to help high school students earn a diploma.

Antiquated Mechanics

The mechanics of the modern-day school system are far from modern. In fact, they more closely resemble the structure of institutions from decades ago. The school calendar, for example, is the most basic component of schooling, yet it is still organized around an agricultural calendar that demanded "all hands" to tend to the crops during the summer months. The school curriculum is another example of how the school system is outdated. Although the curriculum has expanded and evolved over the last century, it arguably hasn't gone far enough, stopping shy of the school system's ability to widely prepare every student for the demands and challenges of the 21st century. Too many schools, for instance, lack the integration of technology and innovation in the classroom, or the inclusion of world languages and the sciences that serve to provide a well-rounded education and build 21st century skills.

Downers Grove High School teachers strike for greater benefits on September 17, 2002. Ms. Rocha argues that the high turnover rate among public school teachers is a result of, among other things, low salaries. (Tim Boyle/Getty Images)

Comprehensive reform, however, can modernize schools and turn them into vehicles for life-long success, particularly for students in low-performing and high-poverty schools. One such approach is expanded learning time, or ELT. Adding more time to the school day, week and/or year allows schools to do what is being asked of them—provide more in-depth learning opportunities for students in core subjects, integrate or maintain enrichment activities into the learning experience, and meet the academic and enrichment needs of students.

The Expanded Learning Time Demonstration Act will provide federal incentives to states and schools to develop and implement initiatives of expanded learning time. Doing so will provide schools with additional resources to redesign their educational program to better support students and teachers while contributing to the growing body of evidence that more and better use of learning time is a successful strategy to boost student performance and close achievement gaps.

Restructuring the school calendar will serve to bring our public education system out of an agrarian age and into the 21st century. But this strategy alone will not meet its promise if other adjustments to affect what happens during the school day are not made. The expansion of learning time will also require the implementation of new policies and procedures that affect teaching and learning.

Outdated Procedures

Research has well-documented the direct effect of high quality teachers on student learning. In fact, we know that teachers are the single most important factor influencing a child's academic achievement, yet no issue is more important or more challenging than getting high quality teachers into every classroom, particularly those in high-poverty and low-performing schools.

Teachers frequently cycle through the system, moving from one school to another as they gain experience or leave the teaching field all together. About one-third of new teachers leave the profession within three years of teaching and half leave by the fifth year. Studies tell us that high teacher turnover is attributed to several factors including challenging work environments, lack of decision-making ability, lack of preparation for the challenges found in the classroom, insufficient professional development opportunities, and low salaries. Unfortunately, teacher preparation; recruitment, distribution, and retention practices; training and skill development efforts; and compensation systems have changed little over the decades. Maintaining the status quo of these and other teacher-related procedures has had an impact on learning and school reform. But steps in the right direction may soon be taken.

Numerous provisions from the Teacher Excellence for All Children (TEACH) Act have received backing and warrant praise. These provisions seek to redesign teacher and principal compensation systems to incorporate rewards for success in teaching and learning and to provide skilled teachers with opportunities to mentor novice teachers, further develop their

Despite the Odds: A soon-to-be high school graduate, having re-enrolled in school a year after Hurricane Katrina struck, walks past a damaged wall on his way to his commencement June 8, 2007 in New Orleans. Ms. Rocha argues that a high school diploma is still valuable, despite the demands of many employers for more advanced degrees, in today's society. (Mario Tama/Getty Images)

craft, and climb the teaching career ladder. They also make necessary improvements in federal requirements for hiring, retaining, and equitably placing effective teachers into every classroom. The provisions do so by providing incentives to teachers to teach in hard-to-staff subjects like the sciences, mathematics, special education and bilingual education, and to teach in hard-to-staff schools, namely high-poverty and low-performing schools in segregated communities.

If we are to truly provide a world-class education to all of our students, then we must update the procedures in place governing the hiring, training, distribution, retention, and compensation of our nation's teachers. Comprehensive school reform cannot be achieved merely by restructuring the mechanics of the school system alone. Careful attention must be paid to the most critical resource in education—teachers.

Goals of a Bygone Era

Modernizing the education system also causes us to reassess the purpose and desired outcomes of public education. Since the mid-19th century, the system aimed to provide children with the basics. Over time, the end-goal evolved from completion of the 6th grade to the creation and promotion of high schools. And while universities have long existed, they were originally intended to serve a select, elite group of students. Today, a high school diploma is just the beginning as a majority of jobs now require at least some post-secondary training or education. Despite the expectations of employers and the demands of our global society, attainment of a high school diploma is still viewed as sufficient.

For students who do not graduate high school, it has become all too easy for the American public to turn a blind eye. Nationally, only seven out of 10 high school students, and just half of Latino and black students, receive a diploma within four years. But there are strategies that can have a significant impact on high school completion rates and the pursuit of learning opportunities after high school. Through research and practice, we now know how to identify students at risk of dropping out and how to support them so that they stay on a path to long-term success.

The Graduation Promise Act will establish a federal commitment to cultivate and replicate effective proven strategies and school designs to keep high-school-aged students in school and performing at grade level. These efforts will pay particular attention to the nation's 2,000 lowest performing high schools, known as our "dropout factories," and provide schools with the supports to help a growing number of students graduate with a diploma.

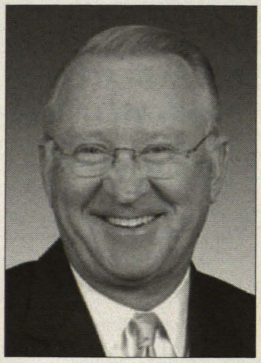
Although high school graduation is a predictor of life-long success, we as a nation have not paid enough attention to high school reform or the needs of high school students. At the same time, we are on the verge of a massive shift in human resources due to the retirement of 77 million baby boomers. To maintain the nation's status as an intellectual leader and democratic power, our education system must do a better job for all students from kindergarten through post-secondary.

Transformation in Progress

These and other important proposals are under serious consideration by Congress for inclusion in the reauthorization of No Child Left Behind. While not a complete package of the necessary reforms to thrust our education system to the top, they can result in significant change. Developed in collaboration with a network of stakeholders, the proposals presented here have wide support. While not all agree on each specific provision within these proposals or their exact language, the vast majority of organizations and individuals seeking education reform agree that reauthorization must move forward this year. There is great bipartisan support for the principles of this critical law and now is the time for action. The nation's 50 million public schools students, 19 million of whom are economically disadvantaged, cannot and should not wait any longer. Their learning, their schools, and their communities deserve our national attention and support for better teaching and learning.

The Politics of Education

An interview with Congressman Buck McKeon



Conducted By Avi Kupfer

*Congressman **Buck McKeon** (R-CA) has represented California's Twenty-Fifth Congressional District since 1993. He became chairman of the House Committee on Education and the Workforce in 2006 and currently serves as the committee's ranking member.*

While campaigning for the presidency in 1980, Ronald Reagan called the Department of Education "President Carter's new bureaucratic boondoggle." In the mid-1990s, Newt Gingrich led a strong coalition of legislators who favored dismantling the national involvement in education. Why has the Republican Party drifted so far from this commitment to a minimal federal presence in constructing local education policy?

Republicans have long been wary of inappropriate federal intrusion into state and local control of education, and I think that holds true today. At the same time, with the federal government's investing tens of billions of dollars each and every year into education, Republicans are committed to ensuring that money is spent wisely. Under No Child Left Behind, for the first time ever we began demanding results in exchange for the significant federal investment in education. It's about accountability in how we spend the taxpayers' money.

There are critics who say NCLB creates too much federal intrusion, and those who argue it gives states too much flexibility. I understand the concerns on both sides of this debate, and my answer is that we are doing our best, and will continue striving, to strike the appropriate balance between accountability and flexibility.

In early 2007 you called the No Child Left Behind Act "one of our top priorities for the year ahead," urging bipartisan support to reauthorize the act. However, many experts see NCLB as a departure from prior education policies and a striking expansion of federal authority over public schools. What are the constitutional and policy implications of continuing to increase U.S. Department of Education authority over state, local, and personal education decisions through NCLB reauthorization?

From the outset of the reauthorization process, I have been clear about my commitment to the three pillars of NCLB: accountability, flexibility, and parental choice. NCLB offered unprecedented flexibility to state and local schools in how they allocate federal dollars among key programs. This is because we recognize that the educational needs in one state are not necessarily the same as another. It's the same reason why states—not the federal government—develop accountability plans under NCLB to bring all their children to proficiency by 2014. On the issue of personal education decisions, NCLB offered landmark new options, including free tutoring and public or charter school choice, which had never before been available to parents of children in chronically underachieving schools. I hope we can build on the state and local flexibility and parental options in NCLB—but let's also acknowledge the progress NCLB has already made in these areas.

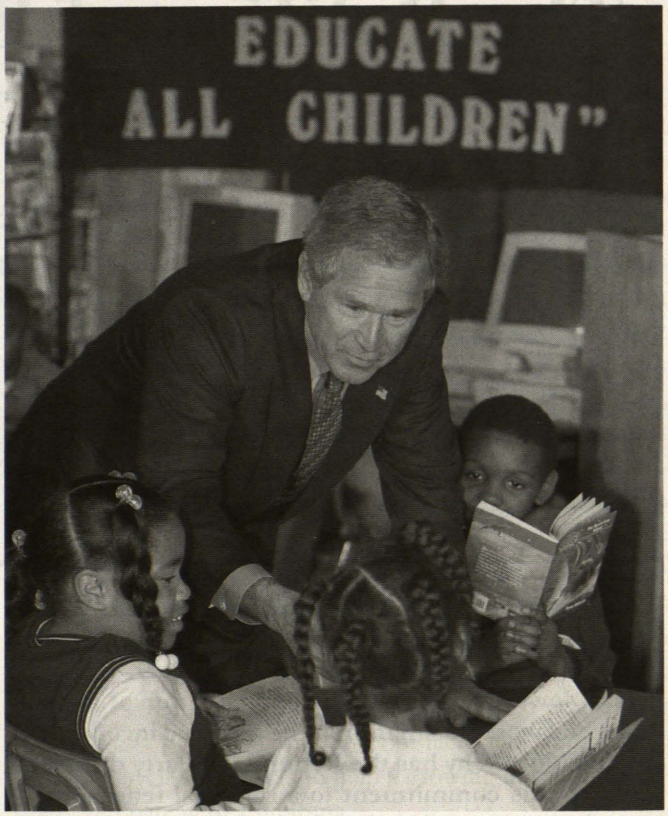
In a January 2006 Pew Research Center survey, respondents ranked "improving the education system" as the second most important priority for the president and

Congress. The executive and legislative branches responded to such calls for reform and made a point of trying to meet the demands of education "consumers," including parents, taxpayers, and employers. Does this focus on education "consumers" put negative pressure on the education profession, teachers' unions, and the plethora of education service providers?

That's an excellent question, because I believe it gets to the heart of the education debate. Are we looking out for "the consumers" or "the system"? My answer is unequivocal: the consumers—the students and parents, along with the taxpayers footing the bill and the employers who rely on our educational system to give students what they need to keep America competitive. For too many years, lawmakers and the education establishment viewed education policy in terms of "the system," with not enough attention paid to the outcomes for students. I think NCLB has helped change the debate for the better by making it about students, and our belief that every student can learn and succeed.

You have advocated more flexibility for states under NCLB. However, critics claim that this leniency, which allows states to create their own tests to measure annual yearly progress, leads to inflated scores and shields chronically failing schools from corrective action. As evidence, these critics cite the huge discrepancy between the proportion of students meeting "proficiency" standards under each state's own test and the national NAEP test. What do you make of these claims? In a reformed NCLB, should state tests be held to a higher standard?

There are critics who say NCLB creates too much federal intrusion and those who argue it gives states too much flexibility. I understand the concerns on both sides of this debate, and my answer is that we are doing our best and will continue striving to strike the appropriate balance between accountability and flexibility. It's true that states are responsible for establishing their own accountability systems under NCLB to ensure their students reach proficiency, and different states have different standards. There may be ways at the federal level to encourage states to strengthen their accountability systems, and I think that is an area to be explored. At the same time, I believe state and local officials will ultimately recognize that it serves their long-term interests to have a rigorous accountability system that better prepares their students for postsecondary education and workforce competitiveness.



US President George W. Bush talks to students on the anniversary of the No Child Left Behind Act as part of a cross-country campaign to create bipartisan support for reinstituting the Act. (Paul J. Richards/AFP/Getty Images)

It's not surprising that states have struggled to meet that lofty goal, but we cannot—and they cannot—back away from the premise that all students deserve to be taught by an effective teacher.

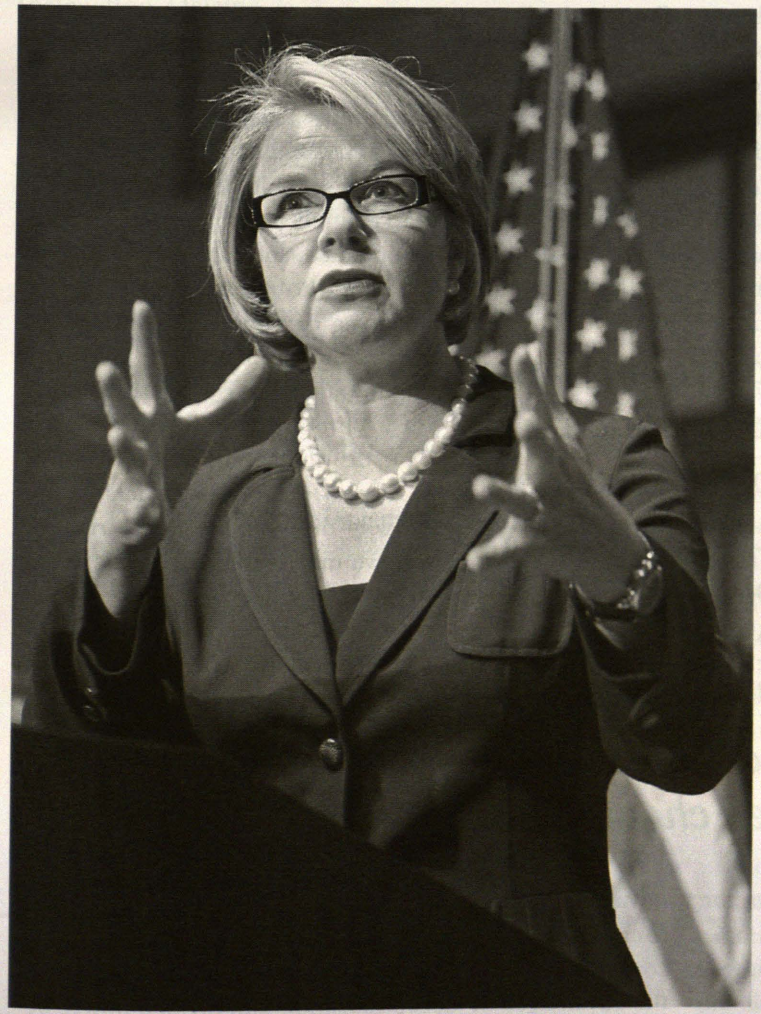
By 2004, the National Conference of State Legislatures identified 28 states that considered legislation that requested waivers, more flexibility and money, or that would prohibit the state from spending funds to comply or participate in the NCLB program. How does Congress rectify education policy with states that view NCLB as an unfunded mandate over local education?

As you know by now, I'm in favor of state and local flexibility, and I support steps that can be taken at the federal level to offer flexibility within NCLB so long as the goals of the law are not undermined. However, I also believe that as stewards of the taxpayers' dollars, we have an obligation to ensure that the funds are being used effectively. If states do not want to accept federal dollars, they need not comply with this law. It is my hope, however, that as the law takes hold and accountability becomes inte-

gral to the system, these policies will be embraced.

A large portion of NCLB reform has focused on identifying failing schools and offering choices to parents. To what extent does this exasperate the problem, forcing educators to concentrate on compliance rather than real improvement?

The short answer is not at all. Without identifying schools in need of improvement, how can we possibly target resources to improve the schools that need help? Only by identifying schools and offering choices to parents can we hope to drive real improvement. At the same time, while these schools are making progress and working to improve, I believe we have an obligation to offer parents a chance to get extra help for their students. I know that these schools can improve, but I do not believe we should force students and parents to wait for educational opportunity until that happens.



U.S. Secretary of Education Margaret Spellings has been under increasing fire from those who claim that No Child Left Behind encourages states to lower testing standards in order to project the appearance of education strides. (Photo by Chip Somodevilla/Getty Images)

NCLB required that by 2006 all teachers demonstrate competence in the subject they teach, genuinely attempting to address competency issues. However, the National Council on Teacher Quality, an independent research center, found that "even with the 2006 deadline looming, only a handful of states appear willing to comply with the spirit of that portion of the law that seeks to correct the long-tolerated, widespread, and inadequate preparation of American teachers in their subject areas." How will the federal government coax states and local officials into adopting reforms that many view as contrary to self-interest?

Research has shown that effective teachers are among the most important factors when it comes to improving student achievement. Under NCLB, we attempted to establish a framework for states to ensure the availability of a highly qualified teacher in every classroom. It's not surprising that states have struggled to meet that lofty goal, but we cannot, and they cannot, back away from the premise that all students deserve to be taught by an effective teacher. There are steps we can take in the reauthorization to improve opportunities for states and school districts to meet that goal. For example, we can incorporate existing regulatory flexibility for rural and science teachers into the law, update methods used to certify veteran teachers as highly qualified, and establish rewards for teachers who improve student achievement and agree to work in our neediest schools. Ultimately, however, I believe states should embrace the goal of increasing teacher quality, because it is in their self-interest.

Some argue that NCLB reflects the utopianism of an administration that stresses collectivism above individual responsibility. How can NCLB revive the parental choice provisions that were an integral part of its original proposal in early 2001?

This may be the first time I have heard anyone attempt to argue that Republicans favor collectivism above individual responsibility. The fact is, I am personally committed to the principles of individual rights and responsibilities, and in many ways, I think NCLB reflects that. I certainly wish the law did more when it comes to parental choice, and I have proposed legislation to increase the availability and type of choices that are offered to parents. At the same time, I would be remiss if I did not point out the groundbreaking elements of NCLB in the area of parental choice and individual educational opportunity. The public or charter school choice and supplemental educational services provisions of NCLB are an integral first step when it comes to giving parents a voice in their children's educational future.

Deregulating Education

Liberating schools from the burden of federal meddling

By David Boaz

David Boaz is executive vice-president of the Cato Institute. He is the author of Libertarianism: A Primer *and the forthcoming* The Politics of Freedom *and is editor of* The Libertarian Reader *and* Liberating Schools.

Education is a perfect example of one major theme of limited government: that many vitally important things in American society are not the province of the federal government. No one questions the importance of education in a complex modern society. Education is the process by which we impart moral values to our children, make them part of our particular culture, develop their ability to think, and give them specific kinds of information that they will need to be productive adults, good citizens, and civilized human beings.

Today there is great concern about the quality of American education. Every year brings another study on how poorly American students fare in international competition.

But neither the importance of education nor the poor quality of our schools affords the federal government a role in the classroom. Education is not mentioned in the Constitution of the United States, and for good reason. The Founders wanted most aspects of life managed by those who were closest to them, either by state or local government or by families, businesses, and other elements of civil society. Certainly they saw no role for the federal government in education.

Once upon a time, not so very many years ago, Congress understood that. The History of the Formation of the Union under the Constitution, published by the United States Constitution Sesquicentennial Commission, under the direction of the president, the vice president, and the speaker of the House in 1941, contained this exchange in a section titled "Questions and Answers Pertaining to the Constitution":

Q. Where, in the Constitution, is there mention of education?

A. There is none; education is a matter reserved for the states.

The greatest service Congress could perform for American education would be to rekindle the original understanding of the delegated, enumerated, and thus limited powers of the federal government and to return the control and financing of education to states, localities, and families.

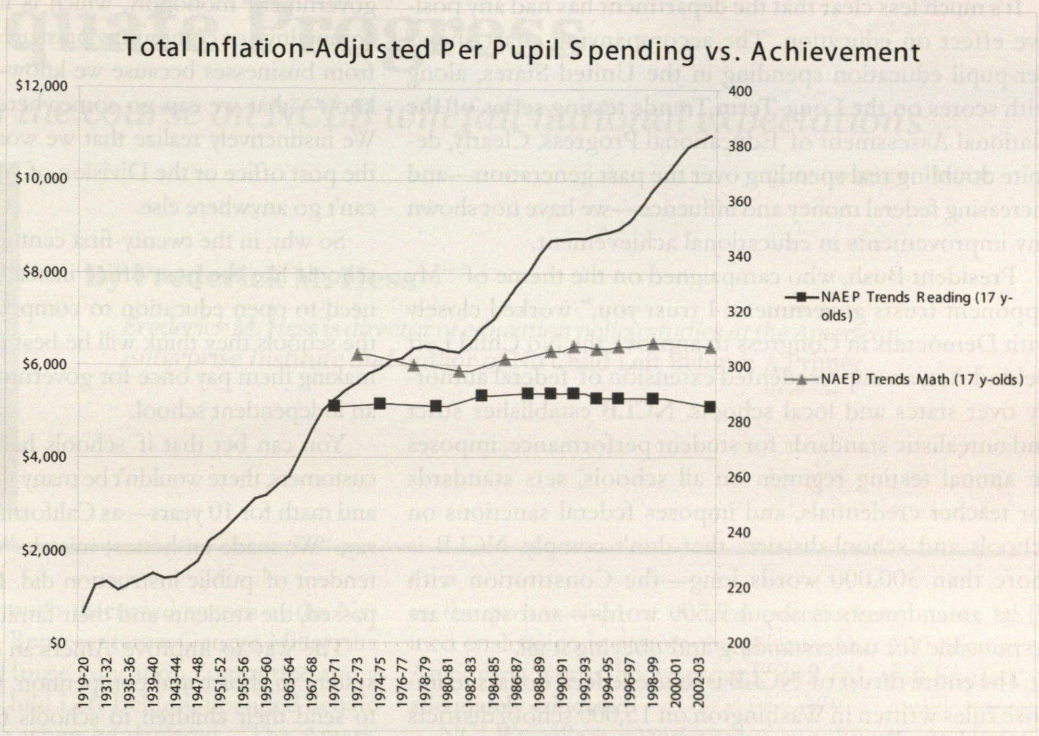
The way to improve American education is to open the system to choice and competition. Give parents the freedom to send their children to schools that they choose.

This argument is not based simply on a commitment to the original Constitution, as important as that is. It also reflects an understanding of why the Founders were right to reserve most subjects to state, local, or private endeavor. The Founders feared the concentration of power. They believed that the best way to protect individual freedom and civil society was to limit and divide power. Thus it was much better to have decisions made independently by 13—or 50—states, each able to innovate and to observe and copy successful innovations in other states, than to have one decision made for the entire country. As the country gets bigger and more complex, and especially as government amasses more power, the advantages of decentralization and divided power become even greater.

The science of economics was in its infancy when the Constitution was written, and modern management theory had not even been imagined. But two centuries later we can make even stronger arguments against a federal role in

education. Not only is freedom safer when power is divided, but we now recognize that progress is far more likely under decentralized and competitive systems than under central direction.

After state test results showed that the vast majority of California public school students could not read, write, or compute at levels considered proficient, Superintendent of Public Instruction Delaine Eastin appointed two task forces in 1995 to investigate reading and math instruction. The task forces found that for 10 years there had been a wholesale abandonment of the basics—such as phonics and arithmetic drills—in California classrooms. It was bad enough that California taxpayers spent more than $200 billion to impose such disastrous "reforms" on more than four million students. But imagine how much worse the problem would have been if the U.S. Department of Education had been able to impose such a scheme on the whole country.



Origins of the Department

Defenders of the federal role in education insist that the Department of Education has no power to impose anything on the nation's schools. It can only study, advise, inspire, and offer supplemental funding. Of course, our folk wisdom tells us that he who pays the piper calls the tune—as federal money increases, so does federal control.

When the department was created in 1979, many critics warned that a secretary of education would turn into a national minister of education. Rep. John Erlenborn, Republican of Illinois, for instance, wrote, "There would be interference in textbook choices, curricula, staffing, salaries, the make-up of student bodies, building designs, and all other irritants that the government has invented to harass the population. These decisions which are now made in the local school or school district will slowly but surely be transferred to Washington." Dissenting from the committee report that recommended establishing the department, Erlenborn and seven other Republicans wrote, "The Department of Education will end up being the Nation's super school board. That is something we can all do without."

Such concerns were not limited to Republicans. Rep. Patricia Schroeder, Democrat of Colorado, predicted, "No matter what anyone says, the Department of Education will not just write checks to local school boards. They will meddle in everything. I do not want that." David W. Breneman and Noel Epstein wrote in the Washington Post, "Establishing a cabinet-level department is a back-door way of creating a national education policy." And Richard W. Lyman, president of Stanford University, testified before Congress that "the two-hundred-year-old absence of a Department of Education is not the result of simple failure during all that time. On the contrary, it derives from the conviction that we do not want the kinds of educational systems that such arrangements produce."

The Department Today

Almost 30 years after its founding, what has the Department of Education achieved? Although its advocates promised that a cabinet-level department would be leaner and less expensive than the previous federal education programs scattered through many agencies, the department's budget has continually increased, from $14.5 billion to $67.2 billion. It is no wonder that the National Education Association and other professional educationists wanted to see a Cabinet department for education.

It's much less clear that the department has had any positive effect on education. The accompanying chart shows per-pupil education spending in the United States, along with scores on the Long-Term Trends testing series of the National Assessment of Educational Progress. Clearly, despite doubling real spending over the past generation—and increasing federal money and influence—we have not shown any improvements in educational achievement.

President Bush, who campaigned on the theme of "My opponent trusts government; I trust you," worked closely with Democrats in Congress to approve the No Child Left Behind Act, an unprecedented extension of federal authority over states and local schools. NCLB establishes strict and unrealistic standards for student performance, imposes an annual testing regimen on all schools, sets standards for teacher credentials, and imposes federal sanctions on schools and school districts that don't comply. NCLB is more than 300,000 words long—the Constitution with all its amendments is about 7,500 words—and states are responsible for understanding and obeying it all.

The entire thrust of NCLB is to use federal dollars to impose rules written in Washington on 15,000 school districts in 50 states. Many people who think American schools need better teachers, more testing, and higher standards have welcomed NCLB without thinking through the implications of a centralized, one-size-fits-all, command-and-control system. If the twentieth century taught us anything, it should be that markets, competition, and decentralization work better than mandates, monopoly, and central direction.

Actually, it taught us one other relevant lesson: Powerful states will not only to seek to impose their will, they will produce statistics and reports on what a good job they're doing. And indeed the Department of Education is already trumpeting the accomplishments of NCLB, just a few short years after its passage in 2002. But a rigorous review of NAEP national and state-level test results by Jaekyung Lee for Harvard's Civil Rights Project finds little or no improvement in overall achievement and no narrowing of the achievement gap.

New Directions

As the world is turning away from central planning and government mandates, U.S. education policy is moving in just the opposite direction. A legitimate concern about the quality of education has been co-opted by the education establishment and turned into an excuse for more funding and more federal regulation. We spend five times as much per pupil today as we did in 1950, after adjusting for inflation. If money could solve the problems of American schools, surely it would have done so by now.

The problem with U.S. schools is not lack of funding. The problem is that the schools are run by a bureaucratic government monopoly, which is increasingly isolated from competitive or community pressures. We expect good service from businesses because we know—and we know that they know—that we can go somewhere else if we're not happy. We instinctively realize that we won't get good service from the post office or the Division of Motor Vehicles because we can't go anywhere else.

So why, in the twenty-first century, are we still running our schools like the post office instead of Federal Express? We need to open education to competition. Let parents choose the schools they think will be best for their children, without making them pay once for government schools and again for an independent school.

You can bet that if schools had to depend on satisfying customers, there wouldn't be many that decided to skip phonics and math for 10 years—as California's schools did—and then say, "We made an honest mistake"—as California's superintendent of public instruction did. Long before 10 years had passed, the students and their families would be gone.

The way to improve American education is to open the system to choice and competition. Give parents the freedom to send their children to schools that they choose. Get the dynamic and innovative for-profit sector looking for ways to deliver more education for less money. Let a thousand experiments bloom—from charter schools to vouchers to tax credits to private management to full separation of school and state—and let families and school systems emulate the successful ones.

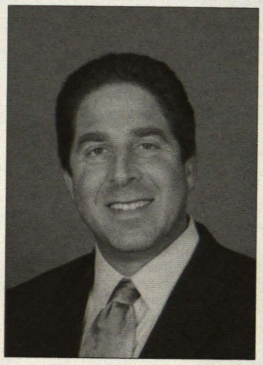
But don't do any of this at the federal level. Don't reform education. Don't change the rules. Don't set up a demonstration project. Don't impose national standards. And by all means don't set up a national voucher plan. Even block grants to states, favored by some conservatives, have many problems: they continue the illusion that federal money is "magic money" that doesn't come from the people in the several states; they get state and local education agencies hooked on federal money; and they subsidize the very monopolies that need to be opened to competition.

Just eliminate the Department of Education, end its meddlesome subsidies and regulations, and return the $70 billion that the federal government spends annually on elementary and secondary education to the American people in the form of a tax cut. Then let 300 million Americans decide how best to spend that money. The question isn't whether Americans will spend lots of money on education. The question is who will spend that money: Congress and the federal bureaucracy, state bureaucracies, local school districts, or families. The closer to the family we push the decisionmaking, the more dynamic, competitive, and innovative the educational system will be.

Congress should affirm the wisdom of the Founders in not granting the federal government any power over education and return the vital function of education to the states, localities, and families where it can be managed best. P

Inadequate Progress

Why staying the course on NCLB will fail national expectations



By Frederick M. Hess

Frederick M. Hess is director of education policy studies at the American Enterprise Institute and author of No Child Left Behind: A Primer.

This summer, in a much-discussed speech at the National Press Club, Representative George Miller, the chairman of the House education committee and a principal author of No Child Left Behind, upended debate regarding reauthorization when he declared, "The American people have a very strong sense that the No Child Left Behind Act is not fair, not flexible, and is not funded. And they are not wrong." With even the law's stalwarts arguing for change, it's useful to step back and ask what went wrong.

No Child Left Behind (NCLB) began in 2001 with the ambitious promise that every U.S. school-child would be "proficient" in reading and math by 2014. While we obviously can and must do a far better job of educating our children, no educator believes that universal proficiency in 2014 is a serious goal. Only politicians promise such things. The inevitable result is cynicism among school practitioners and state and local officials.

In hindsight, NCLB's passage was less about improving schools or results-based public-sector accountability than declaring fealty to a noble but utopian ambition, one the statute welded to clumsy, heavy-handed procedural mandates. It was less about teaching, learning, schools, or schooling than it was about trying to write desirable social outcomes into federal law.

NCLB was less about teaching, learning, schools, or schooling than it was about trying to write desirable social outcomes into federal law.

NCLB is, in fact, a civil rights manifesto masquerading as an education accountability system. Its grand ambition provided a dubious basis for policymaking, much as if Congress tackled energy by declaring that all American cars would get at least 90 miles per gallon by 2014. In this sense, NCLB was more ambitious and more problematic than even the grandest of Lyndon Johnson's Great Society designs. After all, even Johnson, long held up by critics as the poster child of federal overreaching, never imagined enshrining in statute the promise that 100 percent of Americans would be employed, well-fed, well-housed, or adequately educated.

NCLB's gallant unseriousness is politically understandable. Imagine JFK pledging in 1961 that "America will get most of the way to the moon" by decade's end. It leaves the heart a little cold, doesn't it? Moreover, NCLB's backers can legitimately note that they had already spent nearly two decades asking state and local officials and educational leaders to address mediocre schools and stubborn race-based inequities in educational outcomes. From that perspective, the urgency in fusing NCLB is eminently understandable.

Indeed, NCLB has important virtues. It has produced long-overdue school transparency, focused unprecedented attention on student achievement, and offered valuable political cover to determined superintendents and principals.

Nonetheless, the NCLB accountability system was adopted with scant attention to principles of sound public sector accountability or to how it could be competently implemented. The statute's authors sought to craft an elaborate plan that would alter the behavior of thousands of schools and millions of educators through a mixture of goals, rewards, sanctions, choices and sunlight. Yet their deliberations overlooked the fact that effective behavior-changing regimes marry realistic expectations with palpable incentives and punishments. The reality is that NCLB provides neither of these.

The conventional account propounded by NCLB's champions is that the law is well-crafted and that any problems are due to implementation. Thus, for example, U.S. Education Secretary Margaret Spellings's has famously asserted in 2006 that the law is "99.9 percent pure", like

A powerful critic: *Rep. George Miller (D-CA), a major craftsman of the original NCLB law, is now leading the charge against it. (Manni Garcia/ AFP/Getty Images)*

"Ivory soap" and her deputy Ray Simon declared in 2007 the need to "stay the course." The law's defenders attribute any concerns to implementation glitches, foot-dragging by state and local officials, educator recalcitrance or lack of funding.

Unfortunately, as Chairman Miller's remarks suggest, the calls to "stay the course," spend more money, and tweak the edges of NCLB are insufficient for the challenge. They misdiagnose the law's problems and are therefore unlikely to deliver the hoped-for results.

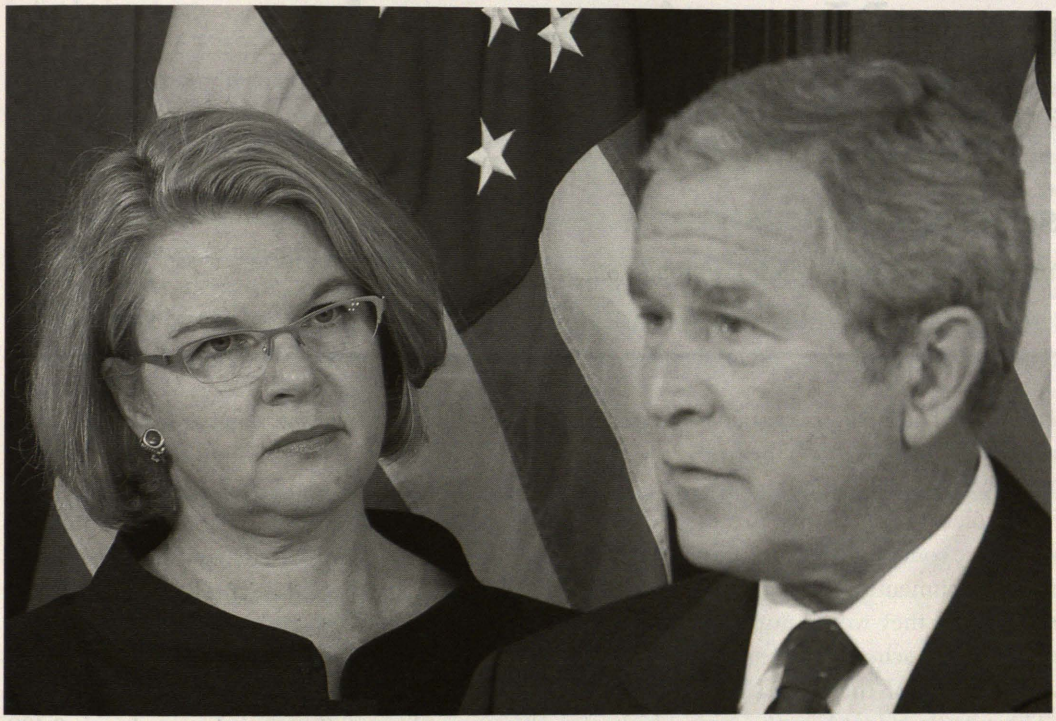
In promoting education reform during the 2000 election and after the enactment of NCLB, President Bush fatefully opted to focus on compassionate moralism (e.g. "the soft bigotry of low expectations") rather than offer a more robust vision of what might be done to overhaul the feds' education machinery and facilitate school improvement. This reflected standard Washington practice—where education policy debates are more often about social justice than institutions, incentives, or instruction. Enlisting allies in the civil rights community who were eager to insist upon radically improved outcomes for poor and minority students, Bush forged a powerful bipartisan coalition.

Bush was right to argue that Washington should set ambitious goals and exhort everyon to attain them. ... Washing cannot competently micromanage what state, districts, or school do, and it shouldn't try.

Ironically, at the very moment of supposed conservative "triumph" on federal education policy, the Bush administration somewhat remarkably embraced a moralistic vision of accountability and big-government enforcement while jettisoning the pragmatic, incentive-focused model that had emerged from three decades of conservative critiques of grandiose Great Society designs.

NCLB's accountability system is an assemblage of three distinct models of educational change, awkwardly welded together. The first model seeks to make transparent the performance of students across the nation, essentially providing an X-ray of how different schools and groups of students are performing in key subjects. The second model promotes the kind of "behavior modification" accountability refined through decades of public sector reform in order to compel low-performing schools and districts to improve. The third model sets forth "shoot-the-moon" targets and engages the federal bully pulpit to encourage leaders in states and districts to do better.

Each approach is worthwhile and each has a place in federal policy. But they cannot reasonably be linked to one another as NCLB tries to do. Unwilling or unable to choose among them, NCLB's builders gamely jammed all



The defenders: While other original supporters like Miller have turned critical, Secretary of Education Margaret Spellings continues to advocate for the president's policy. (Jim Watson/ AFP/Getty Images)

three into the same law. The result is a slowly developing train wreck.

The value of a national "X-ray" of educational performance has long been recognized. NCLB's dictate that all states regularly test students in key subjects was an historic victory. The X-ray's accuracy is compromised, however, when this cross-sectional snapshot of achievement becomes the basis for gauging the performance of schools and educators—much less triggering interventions. We don't judge doctors based on whether their patients are sick today but by how much patient health improves under their care. Judging professional performance on the basis of a one-moment-in-time X-ray encourages questionable behavior, leads states to play games with standards, and can discredit the X-ray itself.

Pushing public-sector institutions to set goals, monitor performance, and then reward excellence and address mediocrity is all to the good. Decades of studied effort, touted in iconic books like Reinventing Government and championed through the 1990s by the Gore Commission, make clear that sensibly structured accountability systems encourage self-interested workers to take goals seriously, focus on outcomes, and employ all the levers at their disposal to produce those outcomes. But this dynamic is undercut if targets are unattainable. By making failure inevitable, unrealistic goals have the perverse effect of focusing employees on compliance and masking "failure".

Finally, aggressive use of the bully pulpit is a proper and a vital role for federal officials. Setting high bars, shining a bright light on performance, and challenging state and local officials can provide political cover to leaders and spark efforts among the foot-draggers. Yet such efforts are discredited when the X-ray reveals little progress over time or when laggards pay more attention to exploiting loopholes than to teaching or learning.

Bundling the three models together presumes that federal intervention on all three counts is appropriate everywhere in the land. In fact, several states already had X-ray assessment or behavior modification systems more serviceable than those mandated by NCLB. Moreover, the fact that these systems were not linked to a date certain for universal proficiency was arguably a good thing.

Can NCLB be saved? Yes, but only if its key components are thoughtfully uncoupled from each other and from naively heroic expectations.

It is appropriate for Uncle Sam to demand that every state provide a fine-grained X-ray of student achievement and pupil performance. It's reasonable also to insist that states develop sanctions, remedies, and interventions for schools and districts that are performing badly and not improving. But these cannot be linked in a functional accountability system.

Washington should press states to track performance levels, but "adequate progress" should be based primarily on the academic value that schools add (i.e. the achievement gains their pupils make), not the aggregate level at which students perform.

Bush was right to argue that Washington should set ambitious goals and exhort everyone to attain them. But the constructive way to do this is by promoting transparency, setting benchmarks, rewarding high-achievers, identifying laggards, and clearing political obstacles. The most sensible way to do this is via a consistent metric. Washington cannot competently micromanage what state, districts or schools do, and it shouldn't try.

It is possible for policymakers to scale back the grand ambitions of the 2001 law and erect in its place a more modest, more sensible, and more constructive law. Whether the law's proponents will summon the determination and the votes to do so—or prefer the shallow symbolism of grandiose ambition—is the question. P

Crafting a New Approach

A look at race and education in the 21st century

By Paul Schneider

Paul Schneider is a senior in Yale's Trumbull College.

On September 4, 1957, nine black teenagers tried to do something unheard of—walk through the front doors of Central High School in Little Rock, Arkansas. As if the vitriol of the violent segregationist protest was not enough to keep these brave souls from an education alongside their white peers, a detachment of the Arkansas National Guard was there to ensure they would not enjoy such a privilege. The nine returned to school less than two weeks later, this time under the escort of the 101st United States Airborne Division. This was President Eisenhower's idea of dealing with race in education.

Almost half a century later, Justice Sandra Day O'Connor wrote for the U.S. Supreme Court majority in the landmark case *Grutter v. Bollinger*, nixing a University of Michigan Law School affirmative action program but leaving open the possibility of more narrowly tailored policies aimed at promoting racial diversity. She added, however, that the use of all racial classifications should expire in 25 years. Whether this seemingly arbitrary declaration acts as a mandate or a mere prediction remains an unanswered question.

Now, just four years later, we may be upon the final two decades of race-based policies in education. Will America soon be a place where these policies are no longer needed to ensure a level playing field? Regrettably, this notion is irreconcilable with reality. The recent flood of performance data in the wake of the No Child Left Behind Act illustrates in sharp relief a racial achievement gap that is going nowhere. Regardless, our already limited use of race as a tool to solve racially defined problems may soon expire. State constitutional ballot initiatives in California, Washington, and Michigan spanning the last decade plus have prohibited state actors from using race as a factor in their decisions, severely limiting school policies and judicial remedies. More of these propositions will soon appear on ballots in other states. The green and hungry conservative Supreme Court recently set its sights on racial considerations in K-12 enrollment plans as well.

The recent flood of performance data in the wake of the No Child Left Behind Act illustrates in sharp relief a racial achievement gap that is going nowhere.

Brown Reconsidered

In 2000, Andy Meeks, a ninth-grader in Seattle suffering from ADHD and dyslexia, wanted to enroll in a special biotechnology program whose hands-on instruction was a natural fit for his unique learning style. Despite being accepted into this selective program, Andy was denied a transfer to its host high school because of his race. Two years later and some 2,400 miles away, five-year old Joshua McDonald and his mother moved to Louisville and wanted to enroll in the neighborhood elementary school but found it already full. Their request for enrollment in another nearby school was denied because of Joshua's race.

Andy Meeks and Joshua McDonald were both white.

The problem was that the schools they wished to transfer into were predominately white. Andy and Joshua were denied transfers because, if allowed, they would contribute to racial isolation in the schools and upset the desegregation efforts underway. These two young men will probably have more impact on race in elementary and secondary schools over the next half-century than anyone else. Suits filed against their respective school districts reached the Supreme Court together last year and were resolved this summer. In a splintered opinion, the Court held that avoiding racial isolation and promoting more general diversity—of which racial diversity may be a part—are compelling interests for educators. They manner in which Seattle and Louisville pursued those goals, however, were not sufficiently narrowly tailored to justify the distribution of privileges based on race. Justice Kennedy explained, "School authorities concerned that their student bodies' racial compositions interfere with offering an equal educational opportunity to all are free to devise race-conscious measures to address the problem in a general way and without treating each student in different fashion based solely on a systematic,

individual typing by race."

While Justice Kennedy's was the prevailing opinion of the Court, two less restrained factions also issued opinions, each claiming to remain true to the spirit of *Brown*. Chief Justice Roberts and his conservative plurality unabashedly claimed that diversity in the K-12 context where there was no prior segregative intent could never be an interest compelling enough to justify the use race as a tool. "The best way to stop discrimination on the basis of race," Roberts wrote, "is to stop discriminating on the basis of race." He meant, very simply, that there is no meaningful distinction to make between actions that seek to isolate the races and those that seek to bring them together. Neither is permissible. In other words, Roberts whispered, "Let's pretend race does not exist."

On the other hand, Justice Breyer and his liberal colleagues brazenly interpreted the case law to allow race-based school assignment and transfer plans in the context of de facto segregation where there was never any segregative intent on the part of a state actor. To this faction, interest in a racially diverse school system was sufficiently compelling. Significantly, they believe that the goal for which race is used must favor integration. In support of the Seattle and Louisville plans they wrote, "The context here is one of racial limits that seek, not to keep the races apart, but to bring them together." In other words, Breyer declared the plurality opinion a bastardization of the spirit of *Brown*.

Both Court factions represent views that are at once courageous and traditional in the contemporary jurisprudence of race and education. The conservatives envision an America in which every person is free from classification and treatment on the basis of race, a literal reading of the Equal Protection Clause of the 14th Amendment. The liberals recall Justice Thurgood Marshall's dissent in *Milliken v. Bradley*, envisioning an America in which the races are educated in integrated schools, "for unless our children begin to learn together, there is little hope that our people will ever learn to live together."

Despite the strength of both of these arguments, the factions ignored the equally valid competing claims. Justice Kennedy warns, "Fifty years of experience since *Brown* should teach us that the problem before us defies so easy a solution." The decisive opinion affirms the constitutionally permissible middle ground between passive bystander and intrusive, though perhaps benign, racist. Such flexibility shows a commitment to the principle that judicial scrutiny of racial classifications is strict in theory, but not fatal in fact.

Integration: For what? Of whom?

In the late eighteenth century founding father Thomas Jefferson developed his views on the emerging American meritocracy and education's role in it. Jefferson, a zealot for knowledge and liberty, believed that education was indispensable to the prosperity of democracy. The lifelong owner of slaves and the likely father of some of them, Jefferson also once wrote that blacks and whites "cannot live in the same government. Nature, habit, opinion has drawn indelible lines of distinction between them." Thomas Jefferson represents the onerous complexity of race and education in America.

Almost two centuries later at Central High, when Jefferson Thomas, just three days into his fifteenth year of life, faced guns and armor in the hands of purebred American racism, he did not back down. Young Jefferson endured physical and verbal abuse at Central High until his graduation three years later. He never gave up. In a recent *New York Times* interview 50 years since he faced the National Guard, Jefferson said, "I had to stay there. I had to make what happened worthwhile. So I kept going back. I said, 'As long as I can walk, I can walk up those steps into Central this day.'" Jefferson Thomas represents the astonishing courage with which countless minority students and their families bore and continue to bear the onerous complexity of race and education in American public schools.

Now, half a century later, Americans must reconsider race and education in order to reconcile not only Thomas Jefferson with Jefferson Thomas, but them with Joshua McDonald and Andy Meeks as well. The Supreme Court has clearly decided that school authorities cannot use race in a way that treats students systematically on an individual basis. Except where the courts are still overseeing mandatory integration of schools that were segregated by law, we are beyond the possibility of racial integration for the sake of racial diversity alone. Instead, our new paradigm is the equal treatment of all students, regardless of their race. Education is becoming colorblind. Nevertheless, we see black and white performance differentials in vivid contrast. Faced with undeniably unequal outcomes, reformers are searching for tools that use equitable inputs.

If the purpose of integration is to provide an opportunity for learning to happen in the context of diverse ideas and backgrounds, perhaps race really is a tool too arbitrary to do the job. At least this is the sentiment among a growing chorus of reformers that suggests socioeconomic status is a better indicator of diversity. How much, the argument goes, can a middle-class black kid and a middle-class white kid learn from each other anyway? Greater intergroup understanding will develop when those groups are defined by their class rather than their race, such reformers argue, noting that income-based remedies to socioeconomic segregation are constitutionally unassailable.

As we inch further down this path, reformers must remember that racial solutions are not dead, and neither are racial problems. Nor will they be for the foreseeable future, almost certainly not in two mere decades. The new jurisprudence of race in education only demands that, when crafting such solutions, students are treated as whole people and not wholly on the basis of their race.

Civic Education & A Healthy Democracy

An Interview with Ted McConnell

Conducted By Christopher Chen

***Ted McConnell** is the Director of the Campaign to Promote Civic Education. The program is based with the Center for Civic Education, a nonprofit, nonpartisan educational corporation dedicated to promoting an enlightened and responsible citizenry.*

The platform of the Campaign to Promote Civic Education states, "Civics and government is a subject on a level with other subjects." Should it be tested like subjects that have been perceived as more critical, such as mathematics and reading? As the No Child Left Behind Act (NCLB) has come under much fire for its emphasis on testing, why should there be civics testing?

Civics absolutely should be tested. We live in an era of standards and accountability-based education. If it isn't tested, it isn't taught. We're really talking about two separate issues here. There is the federal level testing requirement through the NCLB provisions of the Elementary and Secondary Education Act, and then there's state level testing. While we have advocated for the inclusion of key disciplines within the social studies—civics, history, economics, and geography—in the reauthorization of NCLB, our focus is to make sure that every single state-level accountability system includes civic learning. I use the term "civic learning" to include service learning, character education, and new methodologies to help develop civic character.

While we have advocated for the inclusion of key disciplines within the social studies—civics, history, economics, and geography—in the reauthorization of NCLB, our focus is to make sure that every single state-level accountability system includes civic learning.

Another point on this: We also advocate assessing civic learning beyond paper-and-pencil tests. A very important outcome of civic learning is dispositional growth—that is, whether the students have internalized the importance of civic engagement and make a commitment to it. In fact, high-quality civics education generally has that outcome. But you can't test that with paper-and-pencil tests. Students can memorize the historical knowledge through multiple-choice, true/false paper-and-pencil tests, but dispositional growth is best tested through things like classroom-based assessments and portfolio assessments, wherein a student researches a public policy issue, takes a stance on it, and defends his or her stance. I'm pleased to tell you that more and more states are taking a look at making this part of their assessments. The state of Washington will begin classroom-based assessments of civic learning with the 2008-09 school year. It's a huge breakthrough.

Considering the serious problems affecting the American education system in general—namely, the inequalities among different schools in different areas and a national high school dropout rate that has been estimated to be as high as 30 percent—why should there be more of a focus on civics? Doesn't the government need to devote more funding toward simply helping students graduate?

It's not an either/or question. Closing the achievement gap is a vitally important task for our country. Certainly, there is a great deal of promise toward that end in NCLB, and we believe that Congress needs to fully fund the provisions of NCLB that would do so. However, we're very, very concerned about the achievement gap in civic education.

This is the central mission of public education. So again, it's not an either/or; we can close the achievement gap and be true to the duality of mission in preparing students for both citizenship and the workplace.

Secretary of Education Margaret Spellings recently stated, "For the past five years, No Child Left Behind has help[ed] students become stronger readers.... The Nation's Report Card on U.S. History and Civics proves NCLB is working and preparing our children to succeed. While critics may argue that NCLB leads educators to narrow their curriculum focus, the fact is, when students know how to read and comprehend, they apply these skills to other subjects like history and civics." Do you think NCLB has really had a direct influence on civics education?

I can see the Secretary's point, that NCLB has had a certain measurable positive effect on reading. At the same time, there has been much criticism of primary, or elementary, reading material. We would like to see students and policymakers utilize civic learning in an interdisciplinary, integrated manner to help boost student reading comprehension. Getting back to the Secretary's point, there is a body of data that suggests that she's missing the point here. In fact, NCLB has narrowed the curriculum, with its testing requirements overlaid on top of state testing requirements in the subjects of science, technology, electronics, mathematics, and reading. The Center for Education Policy here in Washington has, for the last four years, done studies on the narrowing of the curriculum. Schools that are having trouble meeting Annual Yearly Progress under the NCLB Act are decreasing time and attention to the social studies. On average, this decrease works out to a little over fifty percent.

There has been much criticism of primary, or elementary, reading material. We would like to see students and policymakers utilize civic learning in an interdisciplinary, integrated manner to help boost student reading comprehension.

Could you elaborate on how schools can institute more civics education, especially by integrating it with other subjects?

Civic learning—again, accepting the premise that it is one of the dual missions—can be used to great effect across the curricular lines. Others in the field have been very, very critical of the nearly vapid primary reading material that exists now. Rather than having students reading something like, "See Dick and Jane run after Spot," how about having them read age-appropriate stories about the Founders of this country? Age-appropriate stories on the elemental concepts of representative democracy such as authority, privacy, responsibility? So at the same time we increase their reading skills, we increase their civic virtue.

This can be used in any other curricular area as well. In the visual arts area, schools have implemented service-learning projects in which students go into the community and paint over graffiti-strewn walls, for example. The students come back into the classroom and learn about the negative effects of graffiti, as well as the validity of graffiti as an art form. This is service learning at its finest. They are giving back to the community and they are learning the public policy aspects of this issue, as well as increasing their learning in the whole subject area—in this case, the visual arts.

Several studies have shown that students are often less willing to participate in political life after taking a government course than before. If students aren't interested in civics, how can teachers motivate them to develop a passion and learn more?

Civic learning is much more than a course on how a bill becomes a law or on the three branches of government. At the same time as we've seen a decrease in civic learning opportunity in schools there have been new teaching strategies and methodologies developed that are proven to engage the student—for example, simulations and modeling like the Center for Civic Education's We the People: The Citizen and the Constitution program or the Model UN programs.

Other strategies include the opportunity to discuss current events in the classroom. For fear of litigation and community disapproval, far too many educational administrators and far too many teachers are afraid to bring a discussion of current events into the classroom. One of the most important ways of getting a student interested in a topic is making it relevant. How more relevant can you make it than to bring a contemporary issue into the classroom and solicit students' opinions on it? At the same time, you help students build the skills needed to discuss matters in a respectful manner, have tolerance of others' points of views, and learn to give-and-take. The bottom line is that it is essential to capture student interest in civic learning by making it relevant to them. Once it is made relevant to them, they are more likely to want more civic

learning, more likely to view being civically engaged as a positive attribute.

A recent *Time* article claimed, "Polls show that while confidence in our democracy and our government is near an all-time low, volunteerism and civic participation since the 1970s are near all-time highs. People, especially young people, think the government and the public sphere are broken, but they feel they can personally make a difference through community service." Do you think civics education should focus more on public service through the government or the community?

It is an irony that at the same time public confidence and youth confidence in our institutions of government are at an all-time low, student volunteerism is at an all-time high. Study after study shows this. Volunteerism is vitally important and is a long-standing American tradition. It's important, though, that during K-12 schooling, students learn about the consequences that make volunteering necessary. For example, it's much more important that before working in a soup kitchen, students learn about homelessness—why it happens and what can be done—than to just go into a soup kitchen.

In terms of focusing civic education, I think civic participation is equally important in community groups and when affecting public policy. The behavior that civic learning promotes is essential. It is vitally important that we vote and that we join together with others with a similar point of view to affect policy. The beauty of civic learning is showing young people not only that it's possible that one person, or people taking collective action, can make a difference, but that it's essential to maintaining a healthy democracy.

Civic virtue implies more than just a willingness to work at the soup kitchen or to stuff sandbags if the community is flooded. ... Civic virtue is much greater than just volunteerism.

Several presidential candidates have proposed increasing civic involvement through universal national service. What do you think of the desirability and feasibility of this plan? How would it fit in with the Campaign to Promote Civic Education's own programs?

In my view, it is highly desirable to encourage volunteerism to tackle community and national problems. What we're about, though, is the effort to restore the civic mission to the schools. It is about affecting behavior not just in terms of volunteerism but civic virtue as well. Anything that increases people's civic participation is good; volunteerism is good, but this effort goes much further in terms of providing the knowledge, skills, and disposition necessary for informed and engaged citizenship.

Civic virtue implies more than just a willingness to work at the soup kitchen or to stuff sandbags if the community is flooded. Civic virtue includes participation in voting, serving jury duty instead of throwing the notice away, and testifying on issues that are of concern to you before the various governmental entities—zoning boards, alcohol control commissions. Civic virtue is much greater than just volunteerism.

Whose responsibility is it to address the lack of civic education?

Education policy is still a matter for the states. It is the responsibility of every education policymaker in every single state and the District of Columbia, every single local board and local superintendent, every single principal, every single teacher, and the community at large. Again, what we're talking about here is passing on the knowledge and skills necessary to maintain our democracy. When Horace Mann and other pioneers first advocated for our first system of public education in this country in the early nineteenth century, their principal motivation for doing so was a realization that a representative democracy was a new thing to the world and we had to educate our citizens about it in order to maintain it.

As director of the Campaign to Promote Civic Education, what difficulties have you experienced in encouraging communities and lawmakers to adopt increased civics education?

As in any public policy campaign, the first difficulty is awareness of the issue. Reacquainting people with the historic civic mission of schools and making them aware of the declination of civic learning opportunities is always a challenge. A secondary challenge is over-testing in other subjects. Lastly, the final refuge of any school policymaker or administrator is, "How are we going to do this in an already overcrowded school day?" My response is, "There are ways; you can find them." We are talking about one of the twin missions of public education. A nation of laborers that don't participate in the government or the community is a nation doomed to fail.

Is History History?

The U.S.'s failure to provide adequate social studies education

By Michael Camarda

Michael Camarda is a senior History major in Yale's Calhoun College and serves as International Section Editor of The Politic.

"Yale's distinguished History faculty—among the most eminent in the world—teach and write the histories of Africa, Asia, Europe, Latin America, the Middle East, and the United States and Canada, from ancient times to the present, seeking to make its study as exciting and rewarding in the twenty-first century as it was when first introduced it at Yale before the American Revolution."

So reads the introduction to the Yale Department of History's webpage. However, in a recent *Miami Herald*, I came across a statistic that seemingly belies this statement of excellence. One-third of seniors at Yale could not answer how President Kennedy responded to the Cuban Missile Crisis. I am frequently reminded at Yale that the History department is second-to-none in the entire United States, and as a History major myself, I have found the curriculum excellent in imbuing a large overall depth and breadth in historical knowledge and, more importantly, argument. Nonetheless, this statistic cast into doubt my overall confidence in not only my college but in colleges, high schools, and overall educational structures whose responsibility it is to educate the next generation. I find several problems that these institutions must face, lest the statistics that remain affixed to my hippocampus sound more like one-half, or two-thirds, or more.

Jobs come and go, and skill sets can be important one day and obsolete the next, but the ability to think critically using given facts is an asset that will never lose its value.

The *Herald* article by Natalie P. McNeal focused on the lack of historical knowledge among American college students; however, gaps in any kind of knowledge rarely begin in the echelons of higher education—for a hole in the knowledge base to be manifesting itself there is indicative of a larger systemic deficiency in the initial realms of education as well. The state of Florida offers prima facie evidence of a systemic relegation of the subjects of history and civics to a realm of secondary importance.

A recent statewide study conducted by the Florida Association of Social Studies Supervisors found that 66 percent of elementary school teachers reported spending two hours or less on social studies—history, civics, economics, or geography. On average, that's barely 20 minutes a day devoted to giving Florida's youngest the most basic grounding in responsible citizenship. One might wonder why our primary education system has made social studies a secondary priority. While any sufficient answer is sure to include manifold reasons for this failure, one seems to loom largest: the Florida Comprehensive Assessment Test (FCAT) tests the skills in the core subject areas of reading, writing, mathematics, and science but excludes one other core subject area—social studies. In an era where school ratings and funding are closely tied to FCAT performance, not having the core subject area of social studies tested with the other core four areas creates a huge disincentive to teach thoroughly the subjects such of history, government, economics, and geography. In fact, only 14 states nationwide include social studies as part of their educational accountability systems. With priorities like these, should we really be shocked at the gross ignorance of our nation as a whole in terms of historical and governmental knowledge?

When this lack of emphasis starts in the elementary schools, it is not difficult to imagine the effects this subsequently has on our middle schools, high schools, colleges, and our citizenry as a whole. When secondary students lack the terminology and conceptual frameworks important to civics, we often find middle and high schools doing the jobs to which elementary schools now give a mere 20 minutes a day. Secondary students' having only a limited primary education in civics combined with an oftentimes-continued lack of emphasis on civics at the secondary level forced the Florida legislature to pass a law requiring middle schools to offer a semester of civics—a step in the right direction, but a step where a long walk is required.

Along this journey, we must address an overlooked downside to this de-emphasis in social studies education that especially begins in middle and high schools and hurts society

immensely—a deficiency in critical thinking skills. Questions and answers on historical fact, like the one that began this paper, easily show deficiency; simply put, facts are right or facts are wrong. There is far more to learning (and history!) than names, dates, and short answers; the ability to think critically is almost indisputably the most important skill any education can afford. Jobs come and go, and skill sets can be important one day and obsolete the next, but the ability to think critically using given facts is an asset that will never lose its value.

In 1999, the Lyndon B. Johnson School of Public Affairs completed a national study on civic education. To thoroughly examine the intellectual skill levels necessary for a proficient citizenry, three echelons of skills were identified, from most basic to most advanced: identifying and describing—the ability to give meaning or significance to terms; explaining and analyzing—the ability to identify, describe, clarify, or interpret something, which often involves breaking down information into its constituent parts in order to clarify meaning or significance; and evaluating, taking, and defending positions—the ability to use criteria to make judgments about the strengths and weaknesses of positions on issues. When employed, one must select a position of his or her own and be able to offer evidence in defense of the taken position and attack opposing ones. This study charted each state's focus on each level of reasoning. Nationally, 21 percent of attention went to the first level, 49 percent to the second, and 30 percent to the third. Appallingly, Florida's educational focus did not in the slightest resemble this national schema. Statewide, 83 percent went to the first level, an unforgivable 0 percent to the second, and 17 percent to the third. How does a student make a successful intellectual jump from the most basic level to the most advanced, without there being any focus on the intermediate step?

How, too, do students make a successful jump from high school to college, where—ideally—the advanced-level skills are almost exclusively the only skills tested? In short, they don't. Barry University Professor Tim Smith says he's seen a marked decline in historical knowledge and critical thinking skills among incoming freshman. "Sometimes I feel like I'm working with a blank slate," Smith says with regard to his new students. 7,000 randomly selected college freshmen were asked to answer 60 multiple-choice questions about basic history; they answered 52 percent of questions correctly. One question from the test: "'We hold these truths to be self-evident, that all men are created equal" is from the a) Constitution; b) Communist Manifesto; c) Declaration of Independence." Another: "From what century does America's first colony at Jamestown date? a)16th; b)17th; c)18th." Surely colleges would correct the 18 years of neglect our K-12 education system has afforded our next generation. Sadly, these institutions don't. As stated, college freshmen answered 52 percent of these questions correctly, whereas 7,000 college seniors who took the same test mustered a score of 53 percent. Fifteen universities, including UC-Berkeley and Johns Hopkins, earned a "negative learning" rank when their freshman class outperformed their senior class. Most shocking, in a study released this February, the Center for Survey Research and Analysis at the University of Connecticut found that 81 percent of college seniors scored at a D or F level in terms of American history. How could this be? Most students are required to take some form of social studies all four years of high school. Most state universities require that their undergraduates, save history majors, take only a few history classes in their four years. At Yale, a student can go all four years without once sitting in a history class. It is no wonder that one third of the supposed "best and brightest" could not answer correctly a simple question of American history.

The ramifications of this gross failure by our educational structures does not end with poor test scores or embarrassing results from studies; it takes a toll on all of society. As stated, Florida lags in several categories in terms of the civic education, but its real toll can be seen in statistics outside of the purview of our educational system: Florida ranks thirty-ninth in voter turnout, at 46.8 percent; it ranks forty-ninth in terms of volunteering; 66 percent of central Floridians cannot name one of Florida's two U.S. Senators. Two out of five Floridians cannot name the three branches of government, and that same number could not properly identify the concept of checks and balances—both level-one skills.

Whither civic education? There is some hope. In 2004, in an effort to combat this cascade effect of ignorance and apathy on a national level, U.S. Senator Robert Byrd of West Virginia got a piece of legislation passed establishing Constitution Day. The act mandates that all publicly funded educational institutions provide educational programming on the history of the American Constitution on that day. For Florida, the bipartisan pair of former U.S. Representative Lou Frey, a Republican, and former Governor and U.S. Senator Bob Graham, a Democrat, just released a report entitled "Enlisting a New Generation of Florida Citizens," which is a veritable clarion call for a renewed emphasis on civic education in Florida, advocating for five major reforms in civic education: making civics an intergral part in the public school curriculum; including civics on the FCAT; better training future civics teachers; improving textbook quality; and establishing a statewide center for Florida citizenship. Their report is lucid, sensical, and if properly employed, might lead to the reduction of many of the aforementioned problems plaguing Florida in the teaching of history, government, geography, and economics. In the meantime, if we ourselves each took up a cause near and dear to our hearts and followed the properly proscribed civic path to further that cause, we would be putting the lessons taught to us by our junior high civics teachers into practice. Newer generations might just take note and become involved themselves, and that's something three-thirds of Yale seniors would know is right.

Challenging Approaches

An interview with James Comer

Conducted by Carolyn Nguyen

***Dr. James P. Comer**, Maurice Falk Professor of Child Psychiatry at the Yale University School of Medicine's Child Study Center, is the founder of the Comer School Development Program, which promotes the collaboration of parents, educators, and community in childhood education. He advocates a focus on child development as a way of improving schools.*

The Institute for Higher Education Policy released its annual report on the state of American secondary schools and colleges, reporting that despite many improvements, there remain systematic barriers preventing immigrants and students of color from entering college. The most chilling projection is that in less than ten years, the United States will no longer be able to retain its powerful status in the global market. What do you believe is the cause for this, and what can be done to reverse these trends? Has affirmative action failed its stated purpose?

Affirmative action is too little, too late. It has been carried out in a way that missed its very purpose. What we are trying to create is equal opportunity that takes into account many factors, not just numbers. We were not searching for a way to have certain percentages of marginalized individuals in certain careers or schools. Yet affirmative action did not create that focus. What we should have done was create programs that enable marginalized families and schools to help prepare children to participate in mainstream society. There needs to be a systematic effort to connect marginalized students into the mainstream, an effort that today is almost nonexistent. The natural connections that mainstream students have do not exist for their less fortunate counterparts, who often struggle to make ends meet. Through the manner affirmative action was implemented, there have been incredibly negative responses on both sides.

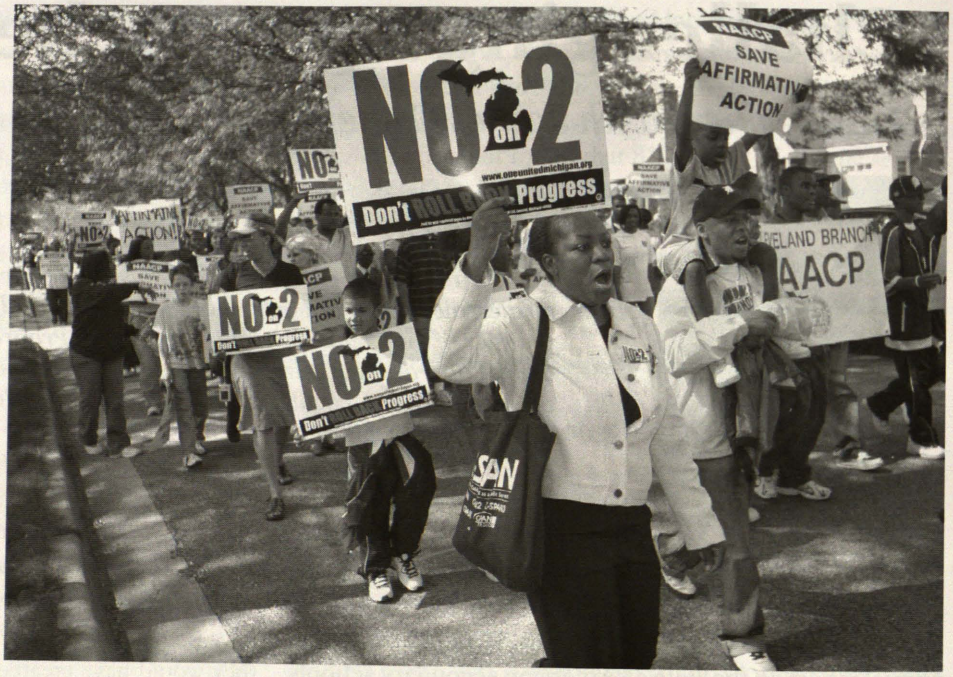
For example, my son, who is African American, was walking to school with his two blond friends one day when one of them took his hand and told him plainly to stay away from the black kids heading towards them because they fight. At the time, the three children were about six or seven years old, too young to know any better. Yet, my son's friend was describing her reality, but she was also talking about a class, style, and developmental experience, although she would not have known that. Her teachers didn't understand it either, or they would have created another kind of school. This is the kind of problem that has created a backlash to integration and affirmative action. What makes this even more disturbing is that this doesn't occur just among little kids; it is throughout our system. This is why it is important to enable and empower marginalized people to help them overcome these sensibilities.

At this year's American Educational Research Association annual meeting in April, Ernie Pascarella, author of the seminal How College Affects Students, observed that the study of higher education seemed to be moving toward anecdotal research, away from traditional theory, causing a decline in the quality and potential usefulness of the findings. To what extent do you believe this is becoming an issue, and what influences, political or otherwise, account for this shift—if Mr. Pascarella is correct—in other contexts, such as the reports regarding No Child Left Behind?

Mr. Pascarella implies that traditional research or theory was high quality and had useful findings. In my view, some did and some did not. In the first place, theory should be suggested and grow from practice. Anecdotal information is useful in that regard in that it suggests questions and issues that we can do for research. It's not one replacing the other, but both need to be used appropriately. No Child Left Behind distorted empirical research while ignoring other bodies of research. If one focuses only on statistical research and, in particular, test scores, one will not have a complete and accurate picture of the findings. It is necessary to have qualitative research at the same time. We need to have insight into the factors that go beyond the classroom and focus more on what children will need to work and function in society—and this requires

anecdotal evidence. I would agree that No Child Left Behind made too many claims with evidence that had to do with quantitative findings and experimental research findings. These researchers chose to ignore findings that have grown out of expert observation. Sometimes isolated incidents can be very powerful and equally important. Stating that one form of research is necessarily better than another for finding the truth is troublesome.

Since its creation, the No Child Left Behind Act has caused nothing short of a maelstrom of controversy in its methodology, with some suggesting different growth models of measuring achievement. What aspects do you believe are pivotal in ensuring that program meets its goals of leaving no child behind? In its current form, how successful can we deem NCLB?



Hundreds of protestors participate in a march and rally for affirmative action in Lansing Michigan in opposition of Proposal 2 on the Michigan ballot. The measure would amend Michigan's Constitution to bar public institutions from considering race or sex in public education, employment, or contracting. (Photo by Bill Pugliano/Getty Images)

No Child Left Behind has been a double-edged sword. It has forced people to pay attention to disparities and to marginalized children and those who are underperforming. Furthermore, it holds the school responsible for giving them the opportunity they deserve. In that sense, it is good. The program's problem is that it has selected incomplete standards—namely standardized test scores—as an indicator of achievement. These scores are an inadequate predictor of academic achievement and, more importantly, development. What it does is distract from the complexity of school improvement. The focus on test scores acts as if there is one simple way to deal with the issues facing our schools. It implies that the schools, as institutions, are fine, but that someone is not working hard enough to make things happen. Too often the blame falls on children, parents, and teachers. Someone here is not working hard enough and, furthermore, it gives the impression that someone may not be smart enough.

My 40 years of working in this field tell me that this is not the problem. First of all, education is far more complex and for many reasons. There are complicated problems because we have a conceptual understanding and a resultant way of carrying out schooling that is inadequate—to the point of being wrong. Learning that will prepare you to do well in school and in life is not a simple cognitive process. If that were the case, we could have a mechanical model of delivering information, and students, if they tried hard enough, would learn. In this scenario, there is no need for a school. Why not just purchase everyone a computer to deliver the information? What this case misses are the foundation skills—such as reading—that students need. In order to learn to read, students need social interaction with those who are teaching to be successful. A better model to consider is a social interactive model, which depends on the quality of relationships. Mature adults had to, at some point, learn to use certain words in certain contexts. My grandson claps when he does something right because his parents clap. Learning contains social, emotional, and psychological aspects to be successful. Students also need exposure on an ongoing basis to increase and build upon their learning. Yet this is not traditional education, and is not being carried out. It's not because teachers don't want to; it's because of the lack of training they have received in this area. The same goes for school administrators. For this reason, they fall back on the mechanical model to try to help kids learn, even when that approach is not how most kids learn. Kids who are able to learn in this manner are the ones who have had good development and support at home or who have the capacity to tolerate the social context they find themselves. However, these kids belong to the minority, and this is what is wrong with NCLB—it ignores what is really needed, and that is child development. Children at greatest risk—those who are going to drain the system the most and draw the most resources—are the marginalized, underdeveloped children. This is the biggest downside of NCLB.

A recent report by the federal government describes a

U.S. first lady Laura Bush speaks during a 'Conference on School Safety' October 10, 2007 in Chevy Chase, Maryland that highlighted the need for focus on schools in problematic areas. Nguyen believes that student development and learning can be improved in the most troubled areas. (Photo by Win McNamee/ Getty Images)

trend of creating more vocational programs for students who may not see college as the right choice for them. Should U.S. schools focus on pragmatic job training or on sending more students to liberal arts colleges?

There has to be a balance. We need to give enough students the four-year experience that really opens them up to what will come along in the information age. Students cannot be trained without the proper experience. Regardless of the schools that are out there, there is a need for the proper education that can manage regardless of the nature of the economy. We need to prepare all students to go in whatever education path they desire. There is a threshold development between professional and academic decisions.

The Comer School Development Program (CSDP) is a success in hundreds of school across the U.S. and the world. Its premise revolves around the cooperation of three teams—the school planning and management team, the student and staff support team, and the parent team. What aspects make the Program different from other school support groups? What do you believe has made it a great success in many different environments?

The Comer School Development Program went into chaotic schools and soon realized that chaos was coming from various aspects of the organization and management of the schools, or lack thereof. Coming from the fact that adults were not relating to each other, in a way that they could be successful, it came as no surprise that there was difficulty in focusing on the development of the students. All of their focus was on passing information, and they couldn't even do this because of the chaos. Yet, this is where the critical interaction has to take place. A child looks up to the adults—not just the teacher, but the custodian, the cafeteria worker, and administrators—for guidance and for role models on how to act. Every behavior, attitude, and expression from the adults can impact the child and, especially, the culture and climate of the school.

CSDP is different in this aspect—it provides methods in organizing and managing the school in a way that allows all of the adults to develop interpersonal relationships, helping them interact with the children in a way that supports their development along all the critical pathways necessary to make them successful in school and in life. We have identified seven aspects of learning and have sought to find ways to address them. They include physical, social interactive, psycho-emotional, moral-ethical, linguistic, and intellectual-cognitive. The constant focus on these aspects for development distinguishes us from other programs. However, no program model, not even ours, will fix all of the problems in American education, but the principles in ours and the delivery system that becomes institutionalized are necessary for schools to improve the American educational system for all children. I went to visit one of schools that had participated in the CSDP in North Carolina and met a father there. He told me he had heard a lot about the Comer program, yet he couldn't figure out what made the program unique, since this is what all schools should be about. He's right. This is what schools should be about, but most aren't today. Many schools are overwhelmed with problems and relationship difficulties that created negative forces throughout the environment that impeded the development of children. Some will say for poor kids only; but this is not the case. I once spoke at one of the nation's foremost prep schools. I asked the headmaster why she had invited me. Her response was that what I had been pushing for was what all children need, not just the poor. The CSDP creates a culture that allows the adults to provide support for development, for when children develop well, they will learn well. The two are intrinsically linked. After all, academic learning is a part of overall development.

Understanding the Housing Crisis

An interview with Robert Shiller

Conducted By Thomas Kidd

Robert J. Shiller *is the Stanley B. Resor Professor of Economics, Department of Economics and Cowles Foundation for Research in Economics, Yale University, and fellow at the International Center for Finance, Yale School of Management. His book* Irrational Exuberance *is an analysis and explication of speculative bubbles, with special reference to the stock market and real estate. His newest book is* The New Financial Order: Risk in the 21st Century.

What do you see as the long-term effects of the mortgage crisis? How will the downturn in the housing market effect the U.S. economy on the whole?

It's a very interesting question. I think I have an unusual view in that I am more worried about it than are most economists. Most economists tend to think of it in terms of a wealth affair. They look at how much the housing market is down. I have data—a Standard and Poor's price index—which indicates that, nationally, home prices are down 3.5 percent. That is a decline in wealth of about $650 billion, which economists view as relatively small compared to the way the stock market has gone up. I am inclined to think that the housing market decline is more significant than the standard model has predicted because the housing market has a good chance of continuing to decline and, secondly, because the value of housing has gained in significance to households, more so than the stock market. Also because we have a mortgage problem—a lot of people have already defaulted on their mortgages, and this will only get worse. We are likely to see a lot more foreclosures on mortgages, and this will affect the level of confidence in the market.

Do you anticipate a recovery for the housing market in the near future?

It's possible. We've seen it in some cities—the Boston housing market, for example, has been on the rise since February. But, generally, it's still declining across the country. I am inclined to think that housing prices have gotten out of line with fundamentals, in terms of income, rent, and the general cost of living.

Also, I think that we had a tremendous boom in home prices. This boom was supported by a fragile psychology. In many U.S. cities there was an unusual burst in the prices of low-priced homes—partly attributed to sub-prime lending—and those prices are coming down still. There could be a turnaround, but my inclination is to think that we had two major booms—the stock market boom of the 1990s and then the housing boom—and both have had major reversals. We have seen an extraordinary psychology supporting the housing market, and that is going to end.

What steps could the Fed the have taken, both in recent months and in the more distant past, to have helped avert the current housing crisis?

They could have spoken out against it. In fact, it used to be that Fred Turner would express opinions about asset pricing. It was Alan Greenspan who created a precedent for silence. He made his famous "irrational exuberance" speech in 1996, but he refrained from any further comments for the next ten years of his reign. Greenspan, since he retired, has given some talks about important phenomena that drive the economy, but he doesn't think the Fed can't do much about them. I think they could have leaned against it and spoken out against it more, and it might have reduced its severity. I don't think of the housing boom as driven by interest rates, as other people do. Interest rates should drive both the stock market and the housing market, but the housing market and the stock market historically have been uncorrelated. It is not interest rates that explain all of this. It is not the Fed's responsibility.

On a more general note, you wrote in your recent *New York Times* **column that speculative bubbles have become more commonplace in the world. What factors do you believe have been contributing to this trend?**

There is a long trend going back hundreds of years. Part of it is our economic development. We have more and more people who are speculating. As the world becomes more capitalistic and we have increasingly global markets, there are more and more people involved. The growing conviction that capitalism is the future of the world has led more and more people to a speculative mentality. I don't think it's a bad thing—I think on the whole having better financial markets improves the world's

economies and makes for better social welfare, but it also leads to times of distress.

Are economic phenomena such as the housing bubble connected more to personal and group psychology than a nation's monetary policy?

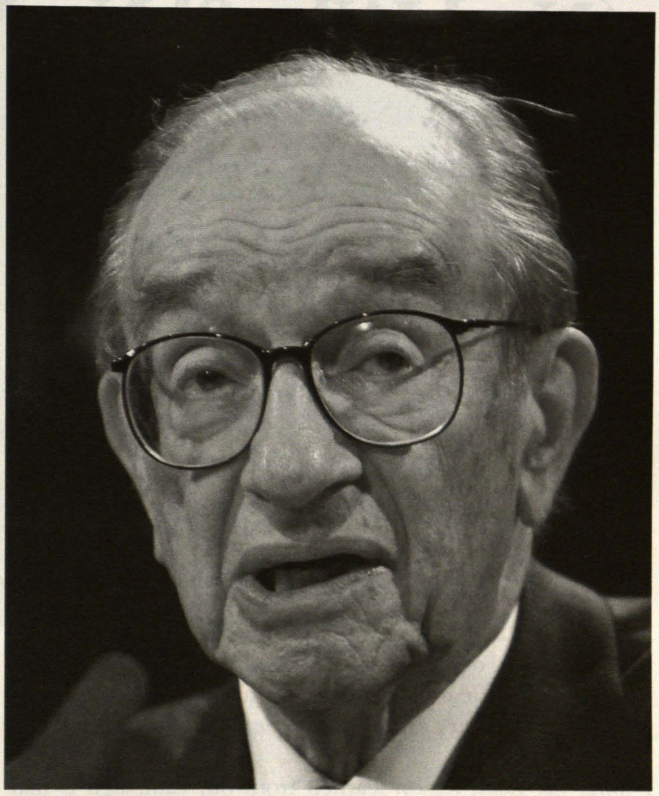
This is a view that I have held and argued for a number of years. It is at odds with the conventional view. I wrote in a paper in 1981, arguing that there is excess volatility in the stock market not attributable to future dividends or future interest rates. This also corresponds with my view of the world. I have been involved with behavioral economics for years, so human psychology is fundamental to my thinking on these issues. If you look at what psychology tells us about human judgment, it doesn't encourage a view that everything would be determined mechanically by fundamentals.

In your column, you mentioned that there has been significant decrease in trust in the social safety net, with people shifting their attention from saving to investing. Considering the upcoming presidential election, what role, if any, do think the winner can play in reversing this trend?

There is a question of strategy in terms of getting elected, but let's talk about what they should do. I think that the rising inequality in the U.S. is a fundamental problem that they have to think about addressing. I don't think that necessarily gets them elected, however. We have a concentration of wealth developing in this country, and I don't think it is any anybody's interest to see that go on, because it ultimately creates social discord. Income inequality was improving in the years after World War II, and I think it led to a better sense of America, a sense that we were a happy people not split by discord. Now it is getting worse, and I think it is creating rifts in society. Part of this is related to social insurance. We still have 40 million people without health insurance, and that is a calamity. It is related to our income inequality, and it is something we should fix.

In your book The New Financial Order you propose the concept of inequality insurance, by which the U.S. government would reframe the progressive income tax system so as to fix the amount of inequality, rather than establishing arbitrary tax brackets. Would you elaborate on this proposal?

This is a proposal I first put in my book in 2003. Now I have a paper with Len Berman, who was Assistant Secretary for Tax Policy Analysis under President Clinton. We have some figures showing how a system would behave using a tax policy simulation model. We found that if we had put in place in the late 1970s an inequality indexation, it would mean the tax system would be much more progressive that it is today. I don't think we are proposing going back to 1979 levels of inequality, but if we stopped here and put in a system that would automatically raise taxes on the wealthy, there would be just the same percentage chance of becoming wealthy as there is now. In fact, I think ultimately people are more enticed by the idea of high relative income than the idea of high absolute income. It won't disturb entrepreneurship as much as people think.



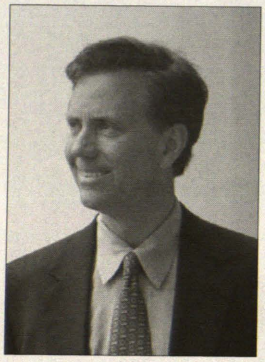
While Shiller criticizes Alan Greenspan for not speaking out and leaning against the housing bubble more during his time as Chairman of the Federal Reserve, he acknowledges that the Fed's role in controlling the housing boom is relatively minimal. (John Stillwell/AFP/Getty Images)

Moving on to the global economy, you have mentioned that Brazil remains a hotspot for foreign investment. What factors make Brazil so appealing economically?

I visited Brazil and met a number of people, and I got the feeling that while the country has had discord in the past, under current President Lula they are moving forward with business in a good way. The president has a left-wing ideology and enjoys the support of the country's poor. He is sympathetic with them, and this leads to a social stability. At the same time, he has shown very practical business sense, believing that Brazil has to move on in business and has to respect private property. This is exactly what Brazil needs to grow. When he talks with Hugo Chavez, he sometimes tries to push Chavez back to more reasonable views. That looks good to me. Brazil has shown very good growth. It's a part of the developing world that is doing very well.

'Ned Who?' No More

An interview with Ned Lamont



Conducted by Christopher Gombeski

***Ned Lamont** is the founder of Lamont Digital Systems, a company that serves over 150 campuses across the country with foreign language, distance learning and cable television services. He is a graduate of both Harvard and the Yale School of Management and a former newspaper editor. In 2006, Lamont defeated incumbent Senator Joseph Lieberman in the Connecticut state Democratic primary. Following his loss in the general election, Lamont has served as a fellow at Harvard University's Institute of Politics in Spring 2007, and currently serves as a board member at the Progressive States Network. He is in the process of setting up a policy center at Central Connecticut State University to work on state issues such as healthcare, education, transportation, and tax reform.*

At the YearlyKos convention in Chicago this past August, you led a panel on the lessons learned from your campaign. What can political observers take away from your campaign—its primary and in the general election phases?

I think the main lesson learned from our campaign is that when you're a first-time candidate, you have to define yourself. During the primary, those voters who hadn't met me I went and met. Having the ability to do that gives you the chance to break through stereotypes. I think that was very helpful. Now, in the general election, all of a sudden, you have ten times as many people to meet, and you've got one-fifth the time to do it. There, you've got a lot less chance to meet everybody and make your case, and then TV and the press become a lot more important. There, I made the mistake of letting the Lieberman campaign define me.

New York University Professor Clay Shirky has called you the last of your kind, meaning the last net-savvy candidate to square off against a non-net-savvy candidate. Do you think every candidate—incumbents included—has gotten the notice?

I think that the online community is very important and was particularly important in our race for a couple of reasons. First and foremost, the establishment dismissed us out of hand at the beginning. The Hartford Courant ran a big cartoon featuring some ingenue wearing a "Ned who?" button. The rest of the mainstream media, the major unions, the major businesses—they all were lining up behind the incumbent. You may remember that I was the first candidate in history opposed by Bill Clinton, Karl Rove, the Chamber of Commerce, and the AFL-CIO.

The online community did not line up behind the incumbent but was willing to take a look at me. They give challengers like me an opportunity. Over time the *Hartford Courant*, *The New Haven Register*, and WFSB television news picked up once we got momentum, but the online community helped us pick up that momentum. The other thing the online community does is fact-check. They challenge you; they say, this is inaccurate or this is misrepresentative, or this is different from what you said a week ago Thursday. You may be talking to the converted—online people talking to online people—but the mainstream media like the *Hartford Courant* and *New York Times* start reading these commentaries online, and they slowly begin to filter into the mainstream press.

Many commentators have sized up your support among Connecticut voters and still argue that the movement behind you can more rightly be regarded as forming in opposition to Senator Lieberman rather than truly in support of you. How do you respond to those who say you failed to exercise positive leadership?

I'd say that was true at the beginning of the campaign but not at the end. In the beginning, one of the first headlines I saw on a blog was along the lines of 'I don't know a damn thing about Ned Lamont, but I know a lot about Joe Lieberman, so I'll listen to what Lamont has to say.' So, definitely being opposed to key policies Senator Lieberman had so vigorously espoused got me in the door. Once you get in the door, though, you have to earn the votes. You have to stand up there and make your case. You have to have a positive vision. You have to say what you want to do, and you have to take the questions. There are a lot of people who have just said, 'No,' and I made a big point of saying, 'Yes.' We were very specific on health care and jobs and education and what we would do in the Middle East.

Your campaign manager, Tom Swan, delivered some criticisms of leading Democrats for their lack of support in the run-up to the election, including Senators Barack Obama and Hillary Clinton. How do you think you were treated by top Democrats?

I'd say during the primary I was Kryptonite, and nobody would touch us with a ten-foot pole. They not so quietly supported

the incumbent, even though most Democrats were slowly coming into opposition against the war. After we won the primary, the response was mixed. There were an awful lot of Democrats—national Democrats, Washington Democrats—who didn't care whether it was Lamont or Lieberman; they just wanted to make sure the seat was safely Democratic. Many of them finally sided with Joe Lieberman. We also had some who were strongly supportive of us. I'd say it was mixed.

You've expressed support in the past for Senator Chris Dodd's presidential campaign. Are you still impressed with his chances? And is there any other contender you would support in the 2008 election?

His chances, no; his passion, his energy, his position on the issues, yes. I think unlike in 1988, where they called our candidates in the race "the Seven Dwarves" and some of them didn't seem to have the executive gravitas necessary to be president of the United States, when you look at Hillary and Barack and most of the leaders, I think people know that they would be strong as president and take this country in a new direction. They are actually very comfortable with the Democratic candidates.

General Petraeus has recommended a reduction in troop levels in Iraq because, in President Bush's words, "We have now reached the point where we can maintain our security gains with fewer American forces." As an outspoken opponent of "the surge," are you satisfied with the pullout?

No. The pullout has nothing to do with success or lack of success on the ground. The so-called pullout is simply due to the fact that we don't have the troops necessary to maintain the surge. We've got to pull back to a level of troops that the military itself says it can sustain.

You've declared, "There is no military solution to the situation in Iraq." What can be done to remedy the turmoil in Iraq while still fulfilling what you have termed our "human, strategic, and political obligation to the people of Iraq"?

I would go back to the recommendations of the Baker-Hamilton Iraq Study Group. I would put diplomacy and political jawboning front-and-center. I'd work with other countries in the region, including Iran and Syria, without preconditions, which is just what former Secretary of State Jim Baker has advocated. You're not going to pull the troops out precipitously from Iraq. If we are going to change our mission in Iraq, we should do that soon. It's likely we'll need to play a continued anti-terrorist role, but our frontline combat has got to come to an end.

Ned Lamont concedes defeat during his 2006 campaign for Senate. Now, according to a new independent poll, Lamont would beat Lieberman if a rematch were held today. (Bob Falcetti/Getty Images)

According to a poll from the independent pollster Research 2000, you would beat Senator Lieberman by a margin of 48 to 40 percent if you faced him today in a rematch. Do you think this hypothetical represents primarily a referendum on the war and the administration's handling of it?

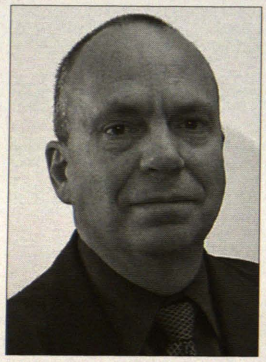
I think that independent poll reflects a lot. During the campaign, Senator Lieberman pledged significant troop reductions by the end of 2006. He said during the debates, "Nobody wants to end the war more than I do." And then soon after the election the Senator was calling for escalation. I think that a fair number of people in Connecticut took a second look. I think it was probably bigger than the war. There's just a sense that we've got some big issues confronting the country, and the incumbent class in Congress is not ready to step up. Congress as a whole, if you look at the polls, is looked on with some disfavor. I think people are clamoring for a fresh start and some new blood.

Tom Swan has vowed that "Connecticut has not heard the last of Ned Lamont." What's in store for you in the future?

Time will tell. I'm teaching a course at the Yale School of Management in a few weeks. If you had told me three years ago that I'd be taking on a three-term incumbent, I'd have suggested you go see a shrink. Races for public office are important. They're a bully pulpit where you can bring issues to the table and push the political dialogue. If I had another opportunity to run, I'd take a hard look at it.

Democracy at Home

An interview with Ian Shapiro



Conducted By Thomas Kidd

***Ian Shapiro** is Sterling Professor of Political Science at Yale University, where he also serves as Henry R. Luce Director of the MacMillan Center for International and Area Studies. He has written widely and influentially on democracy, justice, and the methods of social inquiry. His most recent books are* The Flight From Reality in the Human Sciences, *and* Death by a Thousand Cuts: The Fight Over Taxing Inherited Wealth *(with Michael Graetz) and* Containment: Rebuilding a Strategy against Global Terror.

How would you evaluate the relative strengths and weaknesses of American democracy today, and what can be done to strengthen American democratic institutions?

I think that the biggest challenge to American democracy is that it was never really designed to be a democracy. It was designed to be, as Madison described, as a non-tyrannist republic. As a result, we have a presidential system with in an independently elected president, rather than a parliamentary system, and we have a separation of powers, and we have very strong federalism. We have massive numbers of veto points in the American political system, which tends to make reform and change very difficult.

How do you think spiraling campaign costs and the media have affected elections in the United States?

Huge campaign costs affect the conditions for entry into a political race. However, my sense is that if you want to talk about the perniciousness of money in politics, then campaign expenditures are really just the tip of the iceberg. If you look, for example, at my book that I wrote with Michael Graetz of Yale Law School, *Death By a Thousand Cuts: The Fight Over Taxing Inherited Wealth*, we have a chapter in that book called "Money, Money, Money" in which we go into the ways money played a role in the repeal of the estate tax. If you wanted to list the ways in which money was effective, campaign contributions were only a tiny part of the story. By far the most important part was the money that over the past two decades has been poured by the anti-tax lobby into think tanks, into moving opinion among elites by hammering out alternatives to the New Deal consensus that triumphed in the 1940s, 50s, and 60s.

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Do you think those efforts have changed how the Democratic Party approaches taxes as well?

I think they have indeed. I think the Democratic Party since the 1980s has been under the influence of the Democratic Leadership Council, being engaged in a project of reinventing itself that has been deeply unhealthy for the Democratic Party and for opposition politics in America. They have been seduced by what Dick Morris refers to as "triangulation." This is the notion that in a two party system if you figure out what your opponent is pushing, and you offer a light version of that, you will get some of your opponent's votes at the center, and your grassroots supporters might grumble, but they will have no other place to go.

The problem with triangulation is that it is good tactics but bad strategy, because once your opponent figures out what you are doing, they just keep moving the goal posts. Thus, the Republicans have mainstreamed what have previously been fringe issues, such as estate tax reform. Triangulation can work in the short run, as it did with Bill Clinton in the case of welfare reform, but in the long run it tends to mean that your platform becomes your opponent's previous platform.

Many have commented that the Democratic victory in 2006 was not due to the Democratic Party's own successes, but rather, Republican failures. Do you believe that Democrats have solved the problems that have

been plaguing the party in recent years?

I think the implication of the question is correct. The Democrats didn't win in 2006; the Republicans lost. It was a referendum on the mismanagement of Iraq. If you look at what the Democratic candidates are now proposing, they haven't overcome this deficit. On national security questions, they haven't proposed any alternative to the Bush doctrine. In domestic politics, you would be hard-pressed to name me three of four policies that Hillary or Obama stand for.

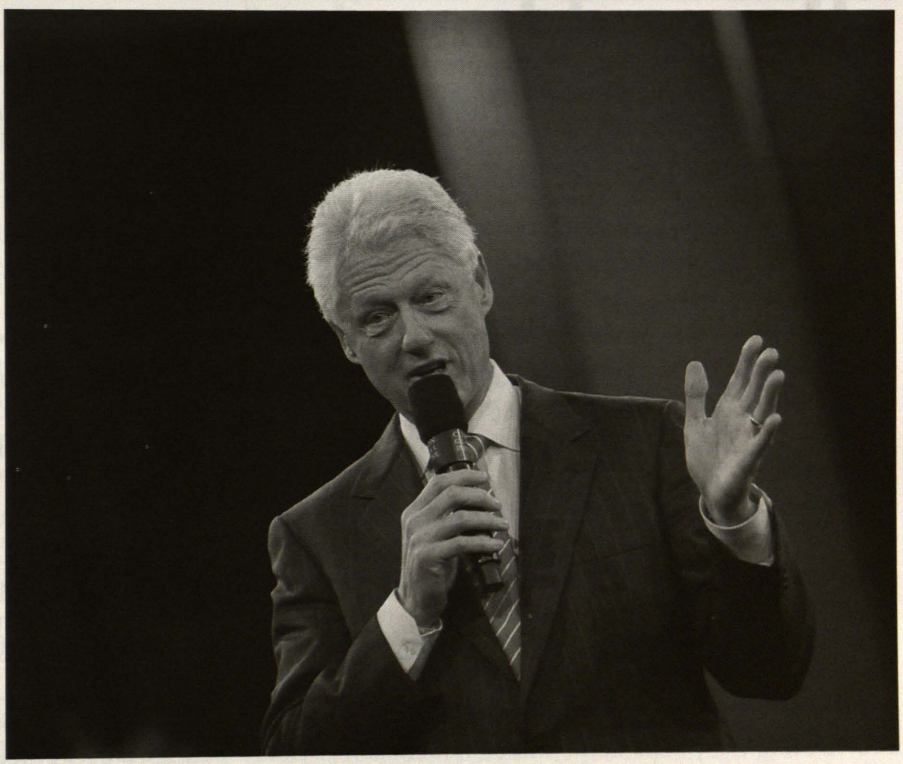
The Internet is becoming a more and more important tool in modern campaigns. How is the web changing democratic participation in America today? What are the positive and negative aspects of this new technology?

I haven't studied it in a systematic way, so while I think that there are positive and negative dimensions to it, I don't know how they net out. A positive dimension is that it gives all kinds of people access to public debate with minimal resources. In that sense it is a very egalitarian thing. A negative aspect is that it can be a forum for extreme attack groups to organize with like-minded people, and it's not altogether clear how healthy that is.

In your book *Containment*, you propose a policy of containment, similar to the one employed by the United States during the Cold War, to combat global terrorism. The United States' containment policy began from almost the very beginning of the Cold War. Is it too late for the U.S. to initiate such a policy? What difficulties will the U.S. need to overcome to put in place an effective containment policy combating terrorism?

I don't think it's too late. I think it is inevitable that we will need to employ containment to combat terrorism, because the alternatives don't work. We did it successfully in Libya, for example. I think that there is clearly going to have to be a containment strategy for post-occupation Iraq. It's just that we are making it vastly more difficult for ourselves by engaging in the policies that we have, which undermine containment. Global containment differs from containment in the Cold War in that it has to be worked through international institutions and has to operate with regional allies in the neighborhood of states where terrorist groups are located. I think that the Baker Commission was exactly right that we can't do that without cooperating with local powers.

Of all the current 2008 presidential candidates, both Republican and Democratic, who do you believe has the most comprehensive and potentially effective plan to combat terrorism?



Shapiro argues that the political strategy of triangulation, as employed by Democratic moderates such as Bill Clinton, might be successful in the short run, but in the long run is politically untenable. (Photo by Chip Somodevilla/Getty Images)

I don't see anybody having it. I think the Democrats will continue to follow the strategy of why say anything when the Republicans are busy tripping over their own feet. On the Republican side, we have people like McCain saying that we should stay the course with more surges. The saner Republican voices, like Senator Chuck Hagel, have decided not to run.

The past year has seen a significant reduction in support among the American public for the war in Iraq, and more generally, the proposition of promoting democracy abroad. Do you think it is possible to rebuild a consensus over U.S. efforts abroad?

Not until our policies change. George Kennan, the original architect of containment, opposed the war in Vietnam because he said that if you go to war over a peripheral interest, your support at home is going to erode before your adversaries' willingness to fight disappears, because for you it's a peripheral interest while for them it's a vial interest. He predicted what actually happened in Vietnam, and now we see the same thing going on in Iraq. To the degree that American policy includes going to war when we don't have vital interests at stake, I think it's inconceivable that any administration will be able to build public support for that. P

Beyond Iraq

Obama's foreign policy takes the long-term view

By Abby McCartney

Abby McCartney is a sophomore Political Science major in Yale's Branford College.

With each Democratic debate, the responses get a little more ridiculous. The questions about Iraq become more and more issues of semantics, or else of nitty-gritty details that will have to be worked out later by the generals and Congress. One candidate supports bringing all the troops home in a year. Another says eight months. Another says he will leave behind support forces to guard the embassy, sparking an argument over whether such guards count as "troops." Left unsaid is the truth at the center of the debate: Most of the Democratic candidates fundamentally agree on Iraq, and any plan offered now to bring the troops home will be functionally useless by the time any of them—knock on wood—are sworn in January 2009.

The more interesting question is the question not being asked: What comes next? Assuming that withdrawing most of the American military presence, establishing some form of political solution to mitigate the ongoing civil war, and stabilizing the borders of Iraq and the region will be the immediate foreign policy priorities of the next president, what will the next three years of American foreign policy look like? And how are we going to get there?

Alone among the major candidates, Senator Barack Obama has laid out a comprehensive plan for fighting the nebulous "war on terror" in concrete and sophisticated terms.

Alone among the major candidates, Senator Barack Obama has laid out a comprehensive plan for fighting the nebulous "war on terror" in concrete and sophisticated terms. Rather than using the debacle that is Iraq as a reason to withdraw from the world, he argued in a recent essay in Foreign Affairs that we must "use this moment" to confront "threats are at least as dangerous as and in some ways more complex than those we have confronted in the past." His strategy combines military strength with diplomatic finesse, utilizes the "soft power" of American reputation and influence productively, and incorporates a vision of American power that goes beyond conflict resolution in the "hot spots" of Iraq, Iran, Israel, and North Korea. It is a vision worthy of closer consideration, not least of all because such a long-term and comprehensive view of the world is so rarely offered and discussed.

In a speech at the Woodrow Wilson International Center for Scholars on August, 2007,[1] Obama identified terrorism as an ongoing and serious threat, saying, "Just because the President misrepresents our enemies does not mean we do not have them." He then went on to identify five components of his comprehensive counterterrorism strategy: "getting out of Iraq and on to the right battlefield in Afghanistan and Pakistan; developing the capabilities and partnerships we need to take out the terrorists and the world's most deadly weapons; engaging the world to dry up support for terror and extremism; restoring our values; and securing a more resilient homeland."

If you heard about this speech at all, you probably heard about Pakistan. In their infinite wisdom, the reporters covering the speech identified the toughened rhetoric against President Musharraf as the major news event of the day and turned this quote into the soundbite: "If we have actionable intelligence about high-value terrorist targets and President Musharraf won't act, we will." Certainly this was an important statement, and it drew criticism from some, who argued that it is irresponsible for presidential candidates to threaten foreign leaders and risk undermining complex diplomatic relationships. Nonetheless, Obama was hardly breaking new ground with this comment: He was simply vowing a renewed commitment to an existing tenet of American foreign policy. There was a time when President Bush promised to lean more heavily on Pakistan, too.

Reading the entire speech, though, one discovers an odd but effective mix of eloquence and details. Obama lays out a sweeping portrait of America as the hope of the world, and the speech occasionally takes a literary turn, referring to Northwest Pakistan as "the wild frontier of our global-

ized world," full of "wind-swept deserts and cave-dotted mountains."[2] But interspersed among these grand and fuzzy declarations are specific policy proposals. Obama did not just scale up the rhetoric on Pakistan's practice of harboring terrorists. He also vowed to make foreign aid to Pakistan conditional on a crackdown on terrorist training camps and to increase support in the border region to help the Pakistani government provide secular education and establish order.

An oft-cited but little acted-upon sentiment in politics since September 11 has been the need for our military to evolve to face a new kind of threat. While the Bush administration has rearranged a few organizational charts, its approach to military strength is still largely conventional, and this outdated structure is at the root of many of the problems we face in fighting an insurgency in Iraq. Obama, recognizing this, proposes a new set of "Mobile Development Teams"[2] that would incorporate personnel from the State Department, Pentagon, and USAID. These teams would work to address problems holistically, from political and economic as well as military points of view, recognizing that few conflicts in our modern world can be boiled down to a single issue or response. He also proposes a "Shared Security Partnership Program,"[2] with a $5 billion budget, to focus exclusively on counter-terrorism cooperation with other countries, from securing borders to fighting corruption to improving the sharing of information.

[Obama's] view of America as the hope of the world is based on a certain degree of idealism, to be sure, but also on the practical necessity of winning support and trust in pockets of the world where we have long been hated.

Perhaps most importantly, Obama has framed all of his initiatives in terms of fighting extremism from its roots. Noting that extremism flourishes in places where opportunity seems most distant, he has vowed to create a $2 billion "Global Education Fund"[2] to provide an alternative to radical madrasas and bring the world's economy within reach of its most desperate residents. And he has promised to double the United States' commitment to poverty reduction in the developing world by 2012. As he put it, "We must work for a world where every child, everywhere, is taught to build and not to destroy."[2]

John Edwards, the only major candidate to make non-Iraq foreign policy a major focal point of his campaign, makes a similar point, arguing that we must restore America's role of moral leadership in the world. However, like most foreign policy plans laid out by the other Democratic candidates, his proposals are largely discussed in terms of undoing the damage of the Bush administration, rather than forming a distinctive vision for the future. He calls on us to "repair the tremendous damage done to civil-military relations" and "root out cronyism and waste and increase efficiency at the Pentagon."[3] Edwards also identifies ending global poverty as a "moral and security issue,"[4] but he focuses far more on the moral aspect, calling for primary education for every child and better efforts at preventing disease, mentioning the prevention of extremism only as an aside.

This is not to say that he is wrong: The vast inequalities among children born in different parts of the world may well be the starkest moral issue of our time. But for generations, American taxpayers have resisted increases in foreign aid and global poverty programs because their altruistic impulses were not strong enough to override pressing domestic concerns. Until politicians begin to frame education and economic development in the developing world as national security issues—the national security issue, if terrorism is our primary concern—the expense will continue to be hard to justify. But if every leader talked about the issue as Obama has—as primarily a long-term strategy to make the world safer for everyone, from Tehran to Nairobi to Chicago—the fight over funding would begin to take on a very different shape.

And in fact, this is the distinctive characteristic of Obama's foreign policy vision. His view of America as the hope of the world is based on a certain degree of idealism, to be sure, but also on the practical necessity of winning support and trust in pockets of the world where we have long been hated. *The Economist* called it a "Clintonian" outlook—in the Bill sense—but worried that American voters would hesitate to take the risk of engaging in messy and complex situations around the world.[5] What they failed to understand was the foundation of self-interest that underlies Obama's proposals. By talking about global altruism as a crucial counter-terrorism strategy, Obama is well on his way to convincing the country that "the security and well-being of each and every American depend on the security and well-being of those who live beyond our borders"—and not just in Iraq.

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[1] *Barack Obama, "Renewing American Leadership," Foreign Affairs, July/August 2007.*
[2] *"The War We Need To Win." <http://www.barackobama.com/2007/08/01/remarks_of_senator_obama_the_w_1.php>.*
[3] *"A Strong Military for a New Century." <http://johnedwards.com/issues/military/>.*
[4] *"Restoring America's Moral Leadership By Fighting Worldwide Poverty." <http://johnedwards.com/issues/global-poverty/>.*
[5] *"Barack Obama's Foreign Policy Vision." <http://www.economist.com/blogs/democracyinamerica/2007/06/obama_sets_out_a_foreign_polic.cfm>*

Humanists & Warriors, Then & Now

How and how not to study humanities at Yale

By Jim Sleeper

Jim Sleeper is a lecturer in Political Science at Yale.

Since Yale doesn't have a core curriculum in the humanities like Columbia's or the University of Chicago's, it's difficult to tell how many students here wish they'd studied more classic texts about lasting challenges to politics and the spirit in personal and public life. Such challenges can become urgent when least expected—when you're deciding whether and how much to invest in an undertaking, or how to respond to a friend's request for your support in some difficult public stance he or she is taking, or whether you agree that the republic that nurtured and sustained you should go to war.

Fortunately, if you've missed Directed Studies or a major in the humanities, I have a quick fix in the Greek historian Thucydides' account of Athens' debate about whether to murder or spare the Mytilenians, a hitherto friendly people whose leaders had turned on Athens' in a war. The Athenians had thwarted the defection and had to decide how harshly to punish the betrayal. Whatever they did—and how they decided it—would have consequences for Athenian democracy, internally as well as internationally.

On one side, Cleon urged maximum retaliation, in this case through mass capital punishment. Anticipating by 2,500 years analogous calls at Yale to extend this country's retaliatory and preventive violence, Cleon warned that seeking reconciliation with people who'd behaved treacherously would only endanger Athens' vital interests. He urged Athenians to accept their grim responsibility to kill all the Mytilenians, including those who'd only gone along with the defection. Cleon advised especially Athens' well-meaning "liberals," as we'd call them now, that

Armies alone can't sustain a republic's virtues and beliefs, and wealth can't buy them. Enlightened self-sacrifice and the strength that comes only in vulnerability to honest dialogue have to be nourished elsewhere, and all the more intensively, in citizen-leaders.

Because fear and conspiracy play no part in your daily relations with each other, you imagine that the same thing is true of your allies, and you fail to see that when you ... give way to your own feelings of compassion you are being guilty of a kind of weakness which is dangerous to you and which will not make them love you any more.

What you do not realize is that your empire is a tyranny exercised over subjects who do not like it and who are always plotting against you; you will not make them obey you by injuring your own interests in order to do them a favor. Your leadership depends on superior strength and not on any good will of theirs. ... It is a general rule of human nature that people despise those who treat them well and look up to those who make no concessions. Let them now therefore have the punishment which their crime deserves.... The only alternative is to surrender your empire, so that you can afford to go in for philanthropy.... Punish them as they deserve, and make an example of them to your other allies....

This argument may well have persuaded Joseph Stalin at the end of World War II, when victorious allies had to decide whether to punish Germany as onerously as the Soviet army and commissars did, or whether to undertake a more reconciliatory, rehabilitative course, as Americans did. Cleon actually did influence *New York Times* columnist David Brooks, who read the above passage while an undergraduate at the University of Chicago and wrote papers on Thucydides. Brooks and certain other touters of Thucydides functioned as tight ends for the Bush Administration during the Iraq War, in the 2004 presidential campaign, and during our continuing engagement in Iraq.

Indeed, Brooks virtually echoed Cleon in a September 4, 2005 column: "Americans have had to acknowledge dark realities that it is not in our nature to readily acknowledge: the thin veneer of civilization, the elemental violence in

human nature." In 2006 he urged we meet Iraqi insurgents' "savagery with savagery" because they've "create[d] an environment in which it is difficult to survive if you are decent."

But there was another voice in Thucydides' account of the Mytilenian debate. Diotodus answered Cleon with what could be a rebuke to Brooks' eagerness to meet savagery with savagery and to disparage the other side in the debate (namely, in 2004, John Kerry, who Brooks claimed had "a brain of sculpted marshmallow" for seeking an alternative course). Acknowledging that the Mytilenes had aided Athens' mortal enemies, Diodotus warned that by murdering them, Athenians would only make other peoples more desperate to succeed in breaking away. Shouldn't Athens show the world that reconciling with Athens was the wiser course? Well, that would depend on when and how Athens exercised restraint, for not every danger is easily overcome. But Diodotus cautioned Cleon and others inclined to vengeance, as to war, that

> *[T]he idea that fortune will be on one's side plays as big a part as anything else in creating a mood of overconfidence; for sometimes she does come unexpectedly to one's aid, and so she tempts men to run risks for which they are inadequately prepared. And this is particularly true in the case of whole peoples, because they are playing for the highest stakes—either for their own freedom or for the power to control others—and each individual, when acting as part of a community, has the irrational opinion that his own powers are greater than in fact they are. In a word it is impossible (and only the most simple-minded will deny this) for human nature, when once seriously set upon a certain course, to be prevented from following that course by the force of law....*

Still more important, Diodotus warned of the dangers to internal security that come not from enemies but from a closed national-security mindset in people who poison public deliberation with charm, intimidation, and insinuation. He warned that an advocate of using gratuitous force,

> *knowing that he cannot make a good speech in a bad cause, ... tries to frighten his opponents and his hearers by some good-sized pieces of misrepresentation. ... [In contrast,] the good citizen, instead of trying to terrify the opposition, ought to prove his case in fair argument; and ... when a man's advice is not taken, he should not even be disgraced, far less penalized. [If he is treated respectfully, even though his advice is rejected, other] speakers will be less likely to pursue further honors by speaking against their own convictions in order to make themselves popular....*

Diodotus hadn't opposed war when the situation had really come to that. He was against making it come to that by working up delusions and shouting down those who resisted them. Armies and wealth, though vitally necessary, can't defend or nourish a people's deliberative integrity and will-power. The more a nation fills itself up with armed watchmen and sharp-tongued scourges of dissent, the more rapidly it decays. Its bad leaders distract citizens from strategic blunders and the collapse of public discourse by sophistical chin-stroking or by "creating a mood of overconfidence" that "tempts men to run risks for which they are inadequately prepared."

Not all wars are as unjustified and full of strategic folly as was the war in Iraq. Nor are all temperate, successful occupations, like Americans' of Germany and Japan, necessarily the right prescriptions for circumstances like those in Iraq.

Not all wars are as unjustified and full of strategic folly as was the war in Iraq. Nor are all temperate, successful occupations, like Amerians' of Germany and Japan, necessarily the right prescriptions for circumstances like those in Iraq. But since all wars and occupations require mobilization and unity, it's tempting for their advocates to accuse critics like Diodotus of endangering the nation's vital interests in order to "go in for philanthropy," as Cleon sneered.

Diodotus' lesson is that often it's the supposedly hard-headed who are naïve about what most endangers national strength, especially when they're intimidating or stampeding their countrymen into unsustainable efforts to control what even the most powerful states cannot. In British India and South Africa, and Soviet Eastern Europe, unarmed supposedly naive people led by Ghandi, Mandela, Havel, and countless others brought down vast national security states that had forgotten how to nourish their own deepest strengths. "How many [military] divisions has the Pope?" Stalin once quipped. When the Pope stepped off a plane in Communist Warsaw four decades later and was greeted by a million people, Stalin's successors got an answer: The Pope had no divisions but enough power to show that Soviet domination of Poland was doomed by its own

heavy-handedness and soul-suffocating lies.

Other classic texts make clear why strategies like Cleon's fail. The mid-twentieth-century American theologian Reinhold Niebuhr, exploring the pitfalls of national-security strategies and preventive wars, cited St. Matthew's account of Jesus' admonition to be "wise as serpents, but guileless as doves." How can you be both? Echoing Cleon at first, Niebuhr reminded well-meaning liberals and Christians that the serpent and his kind—"the children of darkness"—are wise to the fact that selfishness is irrepressible in all humans. But, Niebuhr noted, the children of darkness misuse that wisdom to manipulate and discourage do-gooders who think that all people can be led by example to peace and light.

Therefore, Niebuhr added, "The children of light must be armed with the wisdom of the children of darkness but remain free from their malice. They must know the power of self-interest in human society without giving it moral justification." They must not lose their ability to be guileless as doves whenever conciliatory and trusting behavior is called for. Or, as Jesus put it, "Be ye as deceivers, yet true." Understanding those last two words is the fulfillment of wisdom. Ronald Reagan outsmarted his Vulcan advisors this way when, to their horror, he decided cannily to trust Gorbachev because both men dreaded the nuclear end-game toward which their national-security strategists were driving.

Reagan's neo-conservatives and so-called "realist" advisors had gotten stuck in their discovery of evil in all men. They'd become as wise as serpents but hadn't a clue how to extend the kind of trust that elicits trust. They had good reason to resent some liberals' ignorance of their wisdom and to accuse some self-styled "children of light" of hypocrisy. But however maladroit and counterproductive are the latter's reactions to war, and however tempted Cleon or Brooks are to exploit their follies, liberals' reactions are usually just that—reactive, not causal. The real causes of the Mytilenian defection or the Iranian threat may lie elsewhere: Most of the current Iranian threat has been nurtured, provoked, funded, and armed by Washington since 1953, as Peter Galbraith shows in the October 11 *New York Review of Books*.

But perhaps the greatest irony which serious study of the humanities can teach is that while the children of light have their own darkness, the children of darkness have some light in them that's struggling to get out but has been blocked or miscarried by their own gnawing fears and compensatory over-confidence. That is why they always loudly claim to be devotees of the classics, and of George Orwell, and, indeed, of Reinhold Niebuhr. Two books that see through this and that opened my eyes to this reversal of the conventional wisdom about who is hard-headed and who is naïve are Niebuhr's "Moral Man and Immoral Society" and Jonathan Schell's "The Unconquerable World."

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By the way, Diodotus won the debate in Athens, narrowly. His listeners turned down Cleon's deft appeals to their fears and pride. They voted to treat the Mytilenians as Americans treated the defeated Germans. Of course, so much has changed since then that it would be irresponsible to rummage through history for quick precedents to justify preventive wars or containment. It would be better to read Niebuhr, Schell, and the classics on what's really lasting in politics and to resist designations of evil driven by ideology and by public put-downs.

"[A]nyone who is himself willing to listen deserves to be listened to. If he is unwilling to open his mind to persuasion, then he forfeits his claim on the audience of others," Yale President Kingman Brewster, Jr. wrote in a 1967-68 annual report. I quote him so often that some people roll their eyes, but he understood that a liberal democracy and free economy depend on virtues and beliefs which the liberal state and markets can't nourish or defend, since they have to serve even un-enlightened self-interest. Armies alone can't sustain a republic's virtues and beliefs, and wealth can't buy them. Enlightened self-sacrifice and the strength that comes only in vulnerability to honest dialogue have to be nourished elsewhere, and all the more intensively, in citizen-leaders. That's what Yale College and the humanities are for. And it requires not a Cleon, stuck in the wisdom of the children of darkness, but a Diodotus, who has absorbed that wisdom and gone beyond it.

Trouble in the Heart of Africa

An Interview with Marijan Zumbulev

Conducted By Michael Camarda

Marijan Zumbulev *has worked at the Crisis Group in New York since June 2004, before which he worked in Belgrade researching the state of the post-Milosevic Serbian economy.*

The Democratic Republic of the Congo holds more than half of the world's cobalt, 30% of all diamonds, 70% of coltan—a vital ingredient of mobile phones—as well as huge deposits of gold, copper, and various other minerals. How do these vast resources affect both the economy and politics in the region?

These resources affect both the economy and politics traumatically. Congo has what may be called the curse of natural resources, which have been exploited mostly for the worse. If you control the resources, you can control the economy, which in turn allows you to control the people. In short, political power is a function of economic resources under one's control.

The Second Congo War, from 1997-2003—sometimes called Africa's World War—involved eight countries and resulted in 3.8 million deaths between August 1998 and April 2004, according to the International Rescue Committee. Most of these deaths were due to starvation or disease that resulted from the war, not from actual fighting. Millions more have become internally displaced or have sought asylum in neighboring countries. Why was this humanitarian disaster allowed to play out for as long as it did without being stopped either internally or internationally?

While I hate to say it, the Congo remains to some degree the proverbial "heart of darkness." I don't want to psychoanalyze Western governments, but it's just not a high priority for international communities. Why is this so? The Congo is a remote place on a remote continent. In the late 1980s, you'd see something about the Congo in the newspaper or on television, but now you are unlikely to see much of anything about it. Domestically within the Congo, the conflict went on for so long because many factions had taken root in many parts of the country. It became a huge mess that could not be stopped.

How did Laurent Kabila's rule—from 1997 until 2001—differ from his predecessor, Mobutu? How might the Congo be different had he not been assassinated in 2001?

Kabila's son was at least subsequently willing to negotiate a compromise between factions.

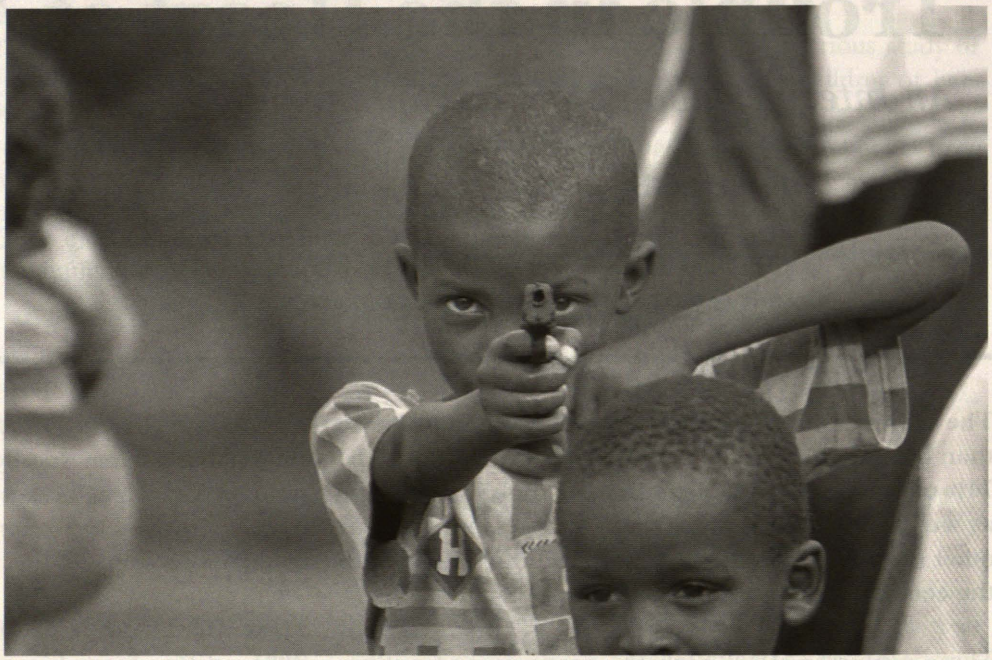
The international community decided to disengage more than they should have after the elections. They claimed, now that a free and fair election has taken place, they have no right to stay and influence the policies of a sovereign government.

The Congo itself has its own "red-state/blue-state" divide, with clearly demarcated electoral zones. In the 2006 presidential election, the eastern portion of the Democratic Republic of the Congo, which bore the brunt of the fighting, strongly supported Laurent Kabila's son, current President Joseph Kabila. In the western portion, many view Joseph Kabila as a foreigner who works for foreign interests; they voted for former rebel leader Jean-Pierre Bemba. How important is this east-west split, and what factors contribute to it?

The split is mostly artificial. Kabila stopped the war; he reached out and brokered a compromise. The war was mostly fought in the east, so stopping it made him immensely popular there. In the west, he was just the guy who got rid of Mobutu—he's not much liked because little changed there. Bemba's primary qualification was that he wasn't Kabila. Bemba's forces were not much liked in the east. Bemba was just a local boy in the west;

he has much better allies in the west because his father networked quite a bit in Kinshasha. Kabila is seen as the foreigner

This is not about ideology or platform; the split is more or less completely baseless. You have some empty slogans from both camps. Kabila talks about fixing roads and schools and improving social life. But this was the first fair election for the Congolese. It basically boiled down to feelings—with whom you felt you were better off or worse off.



Child's Play: *A boy points a toy gun at a photographer in a camp for displaced refugees on October 12th, 2007 in the eastern Congo. Fighting continues between rebel general Laurent Nkunda's fighters and government forces who are attempting to regain control in parts of North Kivu Province. (Lionel Healing /AFP/Getty Images)*

If Joseph Kabila is to gain support in the west and maintain backing in the east, he must tackle strongly-entrenched corruption and poverty. But bringing unity and peace to the Congo, a country two-thirds the size of western Europe, with some 200 ethnic groups and only 300 miles of paved roads, is likely to present major challenges. What can Kabila do to help unite the country? And what can he do to assure his biggest accomplishment to date—peace—is maintained?

Kabila can do three things: He can reach out to the opposition, he can transparently run the economy to exploit natural resources, and he can reach out to neighbors, especially Rwanda. The third effort is especially important. Congo-Rwanda relations are crucial, but he has not done enough on Rwanda. Many of the problematic factions in the east have ties to Rwanda. He should take better care of the Tutsi community of the eastern Congo.

Kabila also needs to democratize. He needs to run things openly. He needs to reform the army and police; we call this security sector reform. This means he will have to gain and maintain control of all of the Congo.

I don't like comparing one humanitarian crisis with another, but obviously Darfur gets much more attention.

Atrocities in the east Congolese province of South Kivu go "far beyond rape" and include sexual slavery, forced incest, and cannibalism, a UN human rights expert said in July. Yakin Erturk called the situation the worst she has seen in four years as a special investigator of violence against women. Sexual violence in the Congo is "rampant," she said. She blames rebel groups, the armed forces, and the national police. How would you compare the humanitarian crisis in South Kivu with the crisis in the Darfur region of the Sudan? Does South Kivu get the amount of international media coverage it warrants?

I don't like comparing one humanitarian crisis with another, but obviously Darfur gets much more attention. There are a few reasons for this: Darfur is part of the Sudan, and during the Second Sudanese War the country was a big priority for circles in the United States. Especially for religious circles it was important—you had the Muslim north fighting the Christian-Animist south. Many Christian groups in the U.S. were pushing to end that war. So when Darfur began to get bad a few years ago, you already had a mobilized constituency with ties to the Sudan already—it was a bigger basis to move on. You had student movements, anti-genocide campaigns.

Compared to that, the Congo has garnered less attention.

The Congo, at the end of the day, is just not much of a priority for the U.S. It doesn't make headlines. Oprah, I believe, had one segment on gender violence. It's not a big issue for the U.S. public or elected representatives. The only people in the international community who care are businesspeople, and they see it as a pit of natural resources. As long as a company gets what they it wants, governments like that of the U.S. won't be under any pressure to democratize the Congo. The priority list is long, and the days are short for many governments.

The situation is very bad. I met with someone who runs a hospital in South Kivu. Sometimes people use words like cannibalism to get attention, but it does go beyond what would be considered rape. Mass rapes are common, very brutal.

The international community decided to disengage more than they should have after the elections. They claimed, once a free and fair election had taken place, that they had no right to stay and influence the policies of a sovereign government.

What kind of work do you and your organization, the International Crisis Group, do to help the situation in the Congo?

In the Congo, we zero in on a problem. We have field officers in hotspots around the world. We write policy briefs and try to influence anyone and everyone who has leverage or decision-making capacity in the area. It depends on the topic or issue at hand, but we may try to influence the Congolese people, major Western business, Rwanda, or the Africa Union.

We did a report on the situation in the east in Kivu. Three to five people worked on this report for weeks, but our reports have no authors because there are always a number of people involved in writing them. We go about collecting information through examining government documents, interviewing people, speaking with people at the UN secretariat. We don't shy away from any information source.

In what direction has the Congo been heading under Joseph Kabila? Where do you see the Congo in five years?

Last November, the Congolese people elected a president in their country's first fair election, but the events of the last year do not leave me extremely encouraged. The international community is not seeing all the progress it should be seeing. Why? The answer could be a month long conversation. I do not want to simplify things to the point of meaninglessness. If I had to answer, I'd say there is a lack of will to progress. It only has been a year, and things might need more time. International relations for the Congo are less than fully settled. The international community decided to disengage more than they should have after the elections. They claimed, once a free and fair election had taken place, that they had no right to stay and influence the policies of a sovereign government. On face value, this is a good argument—you don't want to tell a free country what to do. But as we have seen elsewhere, certain structures must exist before a true democracy can take place—elections are not enough.

Rebel Life: *Dissident general Laurent Nkunda approaches a dog at his mountain camp in the eastern Congo. President Joseph Kabila on October 17th 2007 ordered his troops in the east of the Democratic Republic of Congo to prepare to disarm rebel soldiers led by the 'criminal' dissident Laurent Nkunda. (Lionel Healing/AFP/Getty Images)*

Asia's Human Rights Crisis

An interview with Maria Lisitsyna

Conducted By Michael Camarda

***Maria Lisitsyna** is the founder of the Youth Human Rights Group, a prominent Kyrgyz NGO, through which she advocates for children's rights, monitors human rights in state institutions such as psychiatric hospitals and orphanages, and runs training programs on human rights throughout Kyrgyzstan and Central Asia. A lawyer, she also founded the Independent Human Rights Group, which helps to implement international human rights agreements and provide legal representation to victims of human rights violations. In 2005, Lisitsyna was elected to the Constitutional Council, a body convened to amend Kyrgyzstan's constitution.*

How would you compare the occurrence of human rights violations in Central Asia to that in Western nations?

Human rights violations in Central Asia are systematic, deep-rooted, and widespread. My work mostly focuses on civil and political rights, and the situation is abysmal. These are authoritarian and semi-authoritarian states, where pressure on journalists, NGO activists, or political opponents of the current governments is an everyday reality. So are the cruelest violations—torture, arbitrary detention, unfair trials. At the same time, although Central Asia clearly is an authoritarian neighborhood, each of its five countries is different, has its own main problems, and the scale of its human rights abuse is not the same. It is hard to generalize.

Unfortunately, the record of a number of Western countries with regard to civil and political rights also went down in recent years, in particular, under the auspices of counter-terrorism measures. It is widely discussed and criticized internationally. The rhetoric of anti-terrorism provides a comfortable pretext for countries to hide human rights abuses, and Central Asian states did not miss the opportunity to adopt it. The global war on terrorism gave great leverage for a much harsher backlash against practicing Muslims, those who attend other than official state-managed mosques. The irony is that these are countries with majority Muslim population.

In the most closed and authoritarian states, which by all accounts are Uzbekistan and Turkmenistan, at the moment, the violations can be so bad that other states appear warm and fuzzy.

You don't need to be a terrorist suspect in a Central Asian state to be tortured—it can happen to anyone arrested by the police. Such practices existed before the current world situation, and they continue to prevail.

What do you mean by torture?

The definition of torture includes both physical and psychological sufferings inflicted by a state official or when he knows about it and does not prevent it. Torture generally has a specific aim—to punish, to extract a confession. It is also a power game, often described that police torture and humiliate people with only objective to show who the master is.

Depending on the country, the intensity would be different. The usual practice is beating the suspect with nightsticks for hours at a time. Of course, official numbers on such incidents do not exist. Officers who want to hide the practice of torture would use methods that do not leave traces—severe beatings to the kidney or stomach, for example, sometimes with a water bottle. Some other non-traceable practices include placing a gas mask on the suspect and then cutting the oxygen. Tying or cuffing a captive's hands behind a chair and leaving him in all sorts of uncomfortable positions is commonplace and found in all countries. There are many reports by international organizations describing even worst practices happening. Particularly horrifying are the accounts from Uzbek and Turkmen jails of throwing suspects to the solid floor from a height and the alleged administration of psychotropic

drugs. Very worrying is that it looks like such practices are the norm, not an exception.

Although torture was criminalized, it is not punished. In the first torture case in Kyrgyzstan this year that finally reached court, the policemen were acquitted. And this happens in a country where acquittals make up about one percent of all verdicts in criminal cases.

What are the biggest challenges you face in advocating for human rights in Central Asia?

Central Asia is quite a difficult environment for human rights work. Lack of efficient mechanisms of human rights protection is one of the major obstacles. It is hard, and in some countries just impossible, to bring the perpetrators of abuse to justice and restore infringed rights.

Kyrgyzstan sometimes is called a country of NGOs; NGOs are the main actors in the human rights cause, but the media's input is irreplaceable. I am happy that some defense attorneys also take seriously their role to protect the rights of their clients. We have several courageous attorneys who run cases against the government, against policemen, and their participation is extremely important. Unfortunately, many attorneys still see their role as taking bribes from a client and passing in on to the judge. We really need other actors to be involved in human rights cases—NGOs alone are limited in what we can achieve.

As for challenges, the government's practice generally was to let you know that they were "watching" you. Some of your phone calls may sound like they are being tapped. Police may come to your apartment under the guise of passport control to ask questions about where you work, where you travel, and how much you earn.

Kyrgyzstan is, unfortunately, changing for the worse. While the central government takes "hands off" approach, local governmental officials bring lawsuits against human rights defenders. Although the charges are often ridiculous, the outcomes are not very funny, especially since most cases involve criminal prosecution. One human rights defender got ten days' detention for exercising the freedom-of-information law. In the Kyrgyz city of Talas, activists were protesting the development of gold mines, in particular for ecological reasons. During the protests some stones were thrown by unknown people. Some of the activists are now charged with crimes that would land them in prison for twenty years. Three key staff members of Justice, a great NGO in southern Kyrgyzstan, stand criminal trial for libel for publishing an account of a pregnant woman maltreated by the police. In Uzbekistan, NGOs often have to work underground, while in Turkmenistan, there are no registered human rights NGOs, although some activists work in exile. In sum, the major challenge is that the formal mechanisms that activists can use to defend the rights of victims of human rights violations, and sometimes protect themselves, are extremely weak and not really efficient.

Which state in Central Asia is the biggest human rights violator?

This would not be my favorite question. In Kyrgyzstan and Kazakhstan, we call ourselves "victims of comparison," meaning that our situation is judged to be acceptable just because we are compared to our neighbors. In the most closed and authoritarian states, which by all acounts are Uzbekistan and Turkmenistan, at the moment, the violations can be so bad that other states appear warm and fuzzy in comparison. I believe that each country should be assessed against minimum international standards, and not against each other.

What legal recourse is there for victims of human rights violations in domestic law or international law?

Some nominal laws exist in all countries. You can appeal the violations to the courts, but your chance of winning is another story. Although, in Kyrgyzstan, the Independent Human Rights Group (IHRG) started actively addressing the poor performance of government officials through administrative court procedure. In particular, our cases were related to the breaches of Freedom of Information Act. During last two years IHRG got positive decisions in 12 out of 27 cases.

As for the international mechanisms, save Kazakhstan , other countries ratified the Optional Protocol to the International Covenant on Civil and Political Rights. It gives the right to send an official complaint against the state to the UN Human Rights Committee, although applicants first must exhaust all domestic remedies. The procedure in many aspects is similar to the better-known European Court on Human Rights. The problem with the Human Rights Committee is that there is no clear enforcement mechanism. Sad examples include the first Tajik case, in which the person was executed even after the government received the notification and request not to execute from Human Rights Committee. Kyrgyzstan also expelled asylum seekers back to Uzbekistan where they were facing torture despite UN Human Rights Committee's request not to extradite.

Still, this possibility to address an international body gives people a sense of hope. One, it's a matter of law; when a government is told they have a bad law, it does make a difference, and you can lobby harder to amend it. Two, this empowers people; they can hope for change and also at least the formal recognition of injustice. Sometimes the situation of the victim gets speedily improved. In Tajikistan, for example, in previous years some death sentences were replaced with other punishment as soon as the government

learned that the complaints were sent to the Human Rights Committee.

As of October 2007 there are 77 complaints registered by the Human Rights Committee against Uzbekistan (of them, the Committee found violations of the applicant's rights in 14, and 11 were discontinued); 28 against Tajikistan (with 11 of them decided in favor of the applicant); 16 against Kyrgyzstan (none yet decided by the Committee, but most were brought by the defense lawyers that went through training with the Youth Human Rights Group); four against Turkmenistan, where people do not complain for different reasons, including fear of retaliation. The Turkmen cases have not yet been decided either. There is one case of a Turkmen citizen against the Russian Federation that he won in the European Court for Human Rights (Garabayev v. Russia.) The case was related to his extradition back to Turkmenistan from Moscow and maltreatment there.

None of Central Asian government has yet won any case in the UN Human Rights Committee.

Death of a Dictator: *A Turkmen soldier stands at the coffin of the late President Saparmurat Niyazov, aka the Turkmenbashi, father of all Turks, at his palace in Ashgabat Dec. 24, 2006. Niyazov ruled Turkmenistan through the use of a cult of personality coupled with severe repression of dissidents. (Burhan Ozbilici/AFP/Getty Images)*

What is the most effective method in improving human rights in Central Asia?

In Kyrgyzstan, the usual way is to mobilize civil society. It's easier to prevent human rights violations before they happen. Petitions, signatures, and strategic litigation are all effective preventative means. On cases that are less political, you can win in Kyrgyz and Kazakh courts. For example, the Independent Human Rights Group took the Kyrgyz government to court for not establishing independent services for people in psychiatric hospitals. The law failed to specify which agency's duty this was. IHRG won the case. Even better, the government then looked to us for advice on implementation.

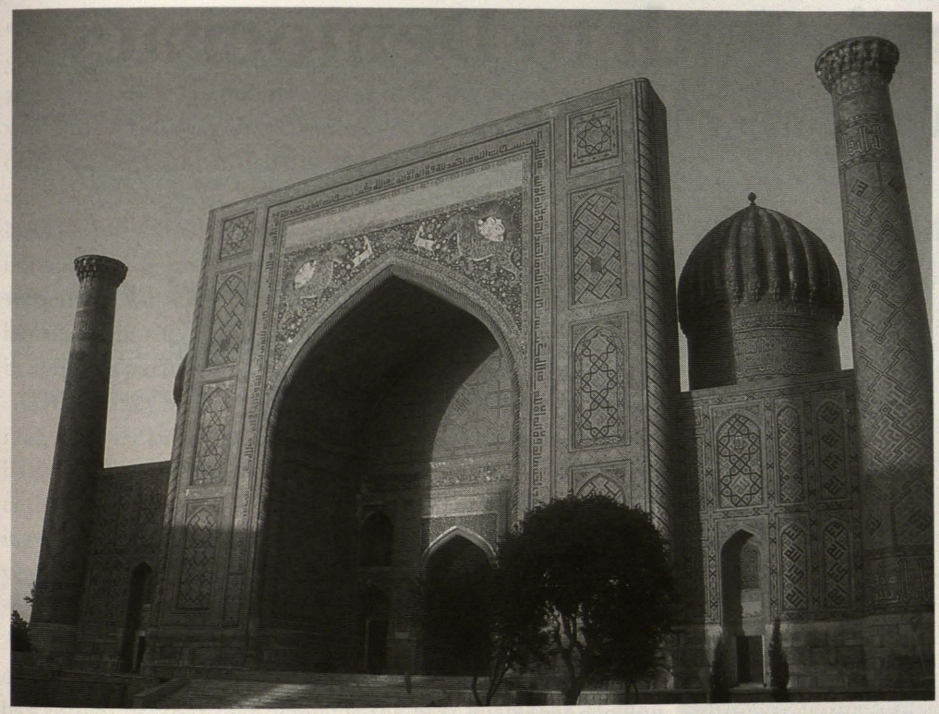
I also see great potential in Freedom of Information laws. They serve as discipline for the government.

What can the people of Central Asia do for themselves to allow for a stronger and more just rule of law?

Let's take one example. To be corrupt is easy. Check an Index on Corruption, and you will see how high Central Asia is there. For example, in many universities you can easily pay for your grades, and generally the "price" is rather affordable. Once you stop paying, you are in the spotlight. Not being corrupt often means being outside the system or complicating your life. You still can refuse to pay, and you will make it through, it is just more difficult. Many of us did it, though, as students—we decided not to pay bribes and still graduated fine. With a growing middle class in Kazakhstan and Kyrgyzstan, the serious challenge is to resist corruption. I believe that you could at least reduce corruption that way, although maybe it is a naïve view.

How linked are standards of human rights with a vibrant economy?

I'm not a specialist on the economy, but the right to property is very important. Basically, I have very classical liberal views. I do not think that because you are poor you don't want your human rights to be respected. Let's look again at civil and political rights. We only ask for minimal standards: Do not torture, do not arbitrarily arrest, do not threaten journalists and dissidents, and respect your own laws. The issue of economic and social rights is dependent on economic progress. Although in our countries, where the infrastructure for social services existed not long ago, some simple reallocation of



Beauty Belied: The beautiful madrassas of the Registan Square in Samarkand, Uzbekistan date back to the late 1300s and represent the cultural pinnacle of the Timurid Empire. Today, Uzbekistan is marred by severe political repression. US airbases for the war against the Taliban were closed in 2005 by the Uzbek government after the US condemned a severe government crackdown on protesting Muslims in Andijan Province in May 2005. (Photo by Michael Camarda)

resources should improve the situation.

If you pay attention to the protests that happen quite often in Kyrgyzstan, you will see that people do not ask for money as such; they criticize corrupt practices that impede the country's developments and their own chances to live better lives.

What does the future hold for human rights, freedoms, and education in Central Asia? What can the outside world do to make Central Asia a better place in these regards?

The biggest thing the outside world can do is to stop pretending that progress has been made when it hasn't. The international organizations, as different agencies of the United Nations or the Organization for Security and Cooperation in Europe, often do not "notice" that member-states significantly violate their commitments. Different reports and resolutions are published, but they are not monitored and no action is taken. I am for sure not arguing for military interventions in every country that violates its citizens' rights—this tactic proved inefficient in addition to raising moral doubts. But firm and principled stands on cooperation with such countries and continued demands to respect their commitments are desperately needed.

Many would argue that United States and other Western countries also do not respect human rights. I just think it is not a sufficient argument to say that because of it they have no right to comment on the others. International human rights values are universal, and citizens of many countries should be protected from the actions of their own states. Every country in the world should be under scrutiny and should be able to criticize others and be criticized. So I would hope that "usual suspects" such as the U.S. and the EU would have coherent policy toward our countries and take a firm stand on human rights issues. I would also hope that at the same time they improve their own human rights records, but it is not directly interdependent. Financial institutions, economic players, and development organizations have to finally notice human rights problems as well.

I believe local NGOs and other civil society organizations are very important actors for the future of Central Asia. International institutions would be extremely limited without working with organizations on a local level.

On the theoretical level I would like to mention what individualism means for human rights in Central Asian societies. I would argue that in places were collectivism was imposed or where the sense of community is culturally ingrained, we have to speak more about individual rights. Focus only on community would be counter-productive. My stake on the issue is that you first have to understand your value as an individual—to realize that, for example, the government functions on your taxes. Then you can meaningfully participate in the community but also protect yourself.

I am not very optimistic with regard to the future of human rights in my region. In all Central Asian countries we see a backlash of different degrees, and it is a good reason to be concerned—but not desperate. We need to take action by demanding the release of political prisoners in Turkmenistan, religious prisoners and human rights defenders in Uzbekistan, stopping harassment of religious groups such as Hare Krishna in Kazakhstan, prosecuting perpetrators of abuses in every state. Both local and international actors have to do it, and we have to take into account that often things in Central Asia move slowly, so to achieve some change for the better might take a while. But we have to get to the right track faster.

Azerbaijan's Path to Democracy

An interview with Ambassador Anne Derse

Conducted By Rebecca Yergin

***Anne Derse** is a career member of the Senior Foreign Service. She was confirmed as Ambassador to the Republic of Azerbaijan in May 2006. Before her post in Baku, served as Minister Counselor for Economic Affairs at the U.S.'s recently established embassy in Baghdad.*

Although Azerbaijan is your first posting as ambassador, you have represented the United States in Singapore, Korea, the Philippines, Belgium, and most recently Iraq. What preparations did you make before arriving in Baku, and what experiences from previous posts have you been able to draw upon since your arrival?

From my point of view, Azerbaijan is just about the most perfect place that I could have been offered to serve as U.S. ambassador given my background. Azerbaijan, traditionally, has been an historic crossroads between Asia and Europe, and you see that reflected in the society and in the history very clearly. My experience in Asia—in Singapore, Korea, and the Philippines—and then in Brussels for six years brings together the two traditions that exist side by side in Azerbaijan.

If you have read the novel *Ali and Nino*, you know that at the beginning of the novel there is a very famous debate at a boys' school over whether Azerbaijan is a European nation or an Asian nation. This has traditionally been a long-standing theme in Azerbaijan's history and society, and I see elements of both worlds in the work I do here and in the culture of the country. And then, of course, it's a majority-Muslim country. The year I spent in Iraq helped me very much to understand the Muslim world and the perspectives that that brings to Azerbaijan's current circumstances.

I have not served before in the post-Soviet world, so before coming out I studied the history of the collapse of the Soviet Union and the seventy years Azerbaijan was under Soviet rule—what that meant, what that brought to people's thinking and to the governmental structures here, and how they are relating that to the modern world and to independence.

I also have a lot of economic experience. A key part of Azerbaijan's future is how they manage their oil wealth. With the commissioning of the Baku-Tibilisi-Ceyhan pipeline last July, they are beginning to realize in a major way the revenues that will ramp up for the next ten years—$250 billion or more. How they handle that wealth will be a key determinant of Azerbaijan's future. If they can manage the money wisely, it can help develop the non-oil sector, raise standards of living, and help Azerbaijan assure its independence and security. But if it is not managed well, it can contribute to worsening a legacy of corruption that many of the former Soviet countries experience. It can also create strong inflation. It can undercut the development of the non-oil sectors. So having economic experience has proved very valuable.

Democracy promotion is not only compatible with other U.S. interests in Azerbaijan, it is an essential component of our bilateral relationship.

Democracy promotion is at the forefront of the United States' current agenda around the world. Is this goal compatible with the U.S.' military, economic, and energy interests in Azerbaijan, as previously discussed? As ambassador, what would you say is the highest priority of the U.S. in this Southern Caucasus country?

Democracy promotion is not only compatible with other U.S. interests in Azerbaijan, it is an essential component of our bilateral relationship.

You correctly identified the major areas in which we

engage with Azerbaijan. Azerbaijan is a key part of the global war on terror; they have troops in Iraq, Afghanistan, and Kosovo. Many people don't know this, but Azerbaijan was one of the very first countries to call us after 9/11 and offer support and assistance. Security is a key element of our relationship. We also help the Azerbaijanis with their NATO Individual Partnership Action Plan process, with implementing Caspian maritime security. Energy security is something we talked about before. Azerbaijan is already a key player in the global oil markets and has the potential to be a major partner on gas.

Democracy is the third big element. When we say democracy, I mean political and economic reform to assure the basic freedoms that we believe as Americans all peoples are entitled to. This area is more difficult because we are working with a country that experienced Soviet rule for seventy years and faces many of the problems that other Soviet states faced. But the United States promotes democracy in Azerbaijan and in the world for two reasons. One is a matter of principle because we believe, and our national experience has shown us, that democracy is the best guarantor of the fundamental human freedoms that we believe all human beings should enjoy. But we also promote democracy as a matter of interest. Our national experience has shown us that the best partners over the long-run in the world are stable, representative democracies that respect human rights. So, it is a matter of interest in a country like Azerbaijan—where we share important security interests, where we share important energy interests—that we also work closely with them to help them along the path of political and economic reform. Over time it will make Azerbaijan a better and closer partner.

The good news is that Azerbaijan has chosen a Western orientation, a democratic path. Their national policy is to integrate into Euro-Atlantic structures and develop as a market-oriented democracy in this part of the world. Azerbaijan has illustrated that commitment by its undertakings to the Council of Europe, to the EU, to the OSCE, to NATO, and in bilateral relationships, such as our own. We have a bilateral dialogue on democracy, as we do on energy, on security, and on economic reform. We work with Azerbaijan both diplomatically and programmatically, the latter through technical assistance programs to help develop the institutions of democracy.

It isn't just political reform either, in my view—economic reform is a key part. It is an essential part of democratic development because in many countries with a Soviet past you have a strong legacy of corruption and non-market structures. Economic reform, such as pursuing accession to the WTO, helps countries like Azerbaijan to develop the institutions, regulations, and legal structures of a market economy, which helps to overcome that legacy. It helps to introduce transparency, which helps to tackle corruption and opens doors to foreign investment, which brings in

Derse meets with students studying English in Baku. Derse says that young people in Azerbaijan have a great interest in better understanding the United States and in engaging with Americans, especially students. Derse said she is working to create strong ties between youths in the United States and in Azerbaijan. (Courtesy Rebecca Yergin)

American companies, for example, which have different business ethics and can help the country develop the foundation necessary for a strong democracy in the future. For those reasons, economic reform is a key part of democracy promotion as well.

The U.S. works very actively with Azerbaijan across five key areas in terms of promoting democracy:

We work to build the rule of law and to fight corruption;

We work to build respect for human rights;

We work to develop media freedom. We work to develop both the conditions for an independent media to thrive and grow and have the political space to develop. We also work with the press itself to develop its standards of professionalism and ethics.

We work to help develop an educated, empowered, and engaged citizenry by supporting an active civil society of NGOs, strong local governance, and a good understanding on the part of the population of what is democracy, what are their rights, what are their responsibilities as a citizen in democracy. These things are second nature, perhaps, to Americans, to people living in established democracies. They're not second nature, necessarily, to people here. We work a lot through our technical assistance programs to help develop a strong civil society.

And the fifth area is helping to develop a strong political process, by which we mean helping the parliament of Azerbaijan to develop as a truly independent and strong legislative branch of the government. We mean helping Azerbaijan meet its commitment to the OSCE and COE with respect to the conduct of elections, to have free and fair elections. We mean helping political parties to develop. It is important to recognize that in our assistance programs in all these areas, particularly in the areas of elections and political process, the U.S. does not support any particular party or politician. Instead we support the development of the processes and institutions of democracy.

Local governance also falls in this area because, frankly, democracy is most vibrant at the grassroots, and it is important that people see democracy working in their hometowns and villages and be active in citizen councils in order to understand how it all works at the national level. So we work hard to develop local governance.

In talking about democracy promotion in Azerbaijan, I did not just talk about elections. Elections are one key part of developing democracy, but that's only one part. All the other elements need to be there in order to have a truly strong, thriving democracy. President Bush has said that the United States understands that countries don't become democracies over night. It requires work, it requires evolution, and it requires transition. What is important to us is to see continued commitment and steady progress towards those goals. And that is what we strive for in our engagement with Azerbaijan.

Looking to the future, Azerbaijan is also potentially a major producer of gas and a key lynch pin in a transit corridor that would bring Caspian gas from possibly Turkmenistan, maybe Kazakhstan, West to Europe.

While over 90 percent of Azerbaijan's population is Muslim, the country generally identifies itself as a secular state. What role does religion play in Azerbaijani society, and is fundamentalism on the rise?

You see a very healthy trend in Azerbaijan, in my view, of people rediscovering their religion after years of repression under Soviet rule. In the fifteen years since independence, people have started to explore their Muslim roots again. That's a positive thing, and it's a different thing than religious fundamentalism.

One of the questions in a country such as Azerbaijan where people are starting to rediscover their Muslim past is who is informing their thinking? Who are the religious leaders? Where are they getting their information? And I think there is a great need and a great interest in Azerbaijan, particularly on the part of young people, in understanding Islam better. As I said, that's a positive trend.

There are many different forms of Islam. In the United States we have traditions of modern Islam that I think are very strong, very good traditions. And we're trying to build the links between Muslim groups here, particularly young people, and Muslim groups in the United States, so that they can share thoughts on modern forms of Islam.

There are other forms that are less modern, and those influences do exist in Azerbaijan as well. I think that people here, if given the choice and given a wide range of information, view their country as a secular country. I believe Azerbaijanis want to preserve that; even religiously observant Azerbaijanis are very committed to their secular traditions.

So, I think there is important work to be done by Azerbaijan's partners in helping its people connect to a broader world of Islamic thought that is a modern form of Islam.

Iran poses many challenges to the international community—especially to Azerbaijan, its northern neighbor. While Iran is commonly thought of as a Persian nation, almost a quarter of its population is ethnically Azeri. How does Baku manage its relationship with Tehran, and how do these ties affect the U.S.-Azerbaijan relationship?

Azerbaijan has traditionally been very astute and very successful in managing its relationships with large partners, including large neighbors and large partners like the United States. Azerbaijan can't change its geography, and so they need to work as constructively as possible with neighbors, and that is their basic position vis-à-vis Iran. They will work constructively in their national interest, preserving their independence, security, and stability.

But, for Azerbaijan, independence is also very important, and they make a point of instituting policies that allow them to preserve their independence while managing relations with their neighbors—both north and south—very effectively. Azerbaijan supports the international community's efforts to stop Iran from developing a nuclear weapons program because for Azerbaijan a nuclear-armed Iran is a threat. They are working actively to implement Security Council resolutions.

At the same time, they point out that because of the ethnic Azeri community there, a military option would be the last that they would choose. The United States says the same,

by the way. Our policy is that we are pursuing a diplomatic path, and we seek a peaceful solution. We are trying to find ways to convince Iran that it is in the interest of the Iranian people to pursue a peaceful path and accept the proposal of assistance that the United States and other international partners put forward last year.

So Azerbaijan basically has, I think, a constructive approach to managing what could be a very difficult relationship, and they have done it reasonably successfully.

The recent opening of the Baku-Tiblisi-Ceyhan Pipeline, a project that transports oil from the Caspian to the Mediterranean, is an important boost to global energy security. What role do you see Azerbaijan playing in the future of energy security for itself, the United States, and the world at large?

Azerbaijan makes a significant contribution now with the Baku-Tiblisi-Ceyhan Pipeline to global oil markets. That pipeline will ship up to a million barrels a day when it reaches full capacity sometime next year; that is a significant contribution to global oil markets. Looking to the future, Azerbaijan is also potentially a major producer of gas and a key lynchpin in a transit corridor that would bring Caspian gas from possibly Turkmenistan, maybe Kazakhstan, west to Europe. The United States currently doesn't buy any gas or oil from Azerbaijan, as far as I know. But we are interested in the gas project. The U.S. policy has traditionally been to diversify sources of energy supply—gas or oil—and make energy markets competitive. Market-based and transparent is our fundamental policy. And more needs to be done with respect to meeting the gas needs in Europe. Right now Russia is the dominant supplier and will remain so for years to come. They provide a huge amount of gas to Europe, but it's in everyone's interest to have diversified sources of supply. Azerbaijan, as I said, is still exploring what its potential gas production may be. But they could produce a significant amount of gas over the next ten to twenty-five years. That could make them a good alternative for Europe. That is also in keeping with U.S. policy—to have more diversified energy markets.

Azerbaijan can't change its geography, and so they need to work as constructively as possible with neighbors, and that is their basic position vis-à-vis Iran.

The struggle between Azerbaijan and its neighbor Armenia over Nagorno-Karabakh is an issue that has caused much bloodshed for many years. Fighting continues sporadically, damaging relations between the two countries. While the United States is currently working to strengthen its ties to Azerbaijan, it also has close ties to Armenia. What is the U.S.' official position on the issue in light of its close ties to both countries?

The United States' official position on the conflict is that we seek to promote and facilitate a peaceful, mutually-acceptable, negotiated solution. We believe that a return to violence here would be a tragedy for both sides. It would set back regional cooperation and development significantly. We work as a formal mediator, as one of the co-chairs of the Minsk Group of the Organization for Security and Cooperation in Europe, along with Russia and France, to encourage both sides to narrow their differences on the issues that stand in the way of a solution. The Minsk Group has made progress working with both sides over the past year in elaborating a set of principles that could become the basis for a final negotiated solution. Ultimately, it is going to be up to the two sides to decide to bring this solution to a conclusion and to work hard with their domestic publics to help them understand the outcome. Our basic policy is to work very actively through the Minsk Group to secure a peaceful, mutually acceptable, and negotiated solution to the conflict.

In June, President Vladimir Putin proposed to the United States to share data from an anti-missile radar station in Qabala, Azerbaijan, as an alternative to the United States' deploying elements of a missile defense system on Poland and the Czech Republic. What is the current state of this proposal?

In the interest of protecting our national security and that of our friends and allies, the U.S. has proposed to deploy ten missile interceptors in Poland and the radar to support those receptors in the Czech Republic. We believe that this missile defense system, which is relatively modest if you look at it, is very important to protect us from threats that could come from the Middle East or North Korea. We have looked at the technical possibilities. Placing these interceptors in Poland with a radar to support them in the Czech Republic—and possibly another radar somewhere else to help support the system—is something we need to do. We have talked to the Russians about this for years now, at various levels. We have explained why we're doing it and why it is important to national security. We have offered to cooperate and work with Russia in a constructive way and even have them participate in some fashion in this system. That continues to be our policy. We would like the Russians to work with us,

constructively.

When the Russians made the proposal that there might possibly be some value in cooperating in Azerbaijan vis-à-vis the radar station here, President Bush welcomed the fact that Russia had recognized that there is, in fact, a need—that there is, in fact, a threat from Iran—and that we need to work to counter it. We welcome the fact that Russia was offering to cooperate because we have been talking to them for some time now about our willingness to do that.

We will see how this proposal develops in the coming weeks and months. Of course, the Qabala radar station belongs to Azerbaijan; it is only leased by Russia. For any arrangements we make, we will need to have full consultations with our Azerbaijani partners as well.

The oil fields of Baku: Derse says in the future Azerbaijan has the potential to be a major producer of gas and a key lynch pin in a transit corridor that would bring Caspian gas from Central Asia to Western to Europe. (Courtesty Rebecca Yergin)

How is it to be a woman in a field traditionally dominated by men?

In the twenty-five years I have been in the Foreign Service, it has never been an issue. Wherever I have gone, people engage me as an American official; whether I am male or female doesn't seem to make a difference. Fundamentally, in this field, as in every other, it is whether you can do the job or not that determines how people interact with you. That is how it has been in Azerbaijan, and, if anything, it has been an advantage to be the first woman American ambassador here because people are curious. It has given me a chance to engage with the public here in a way because they were interested, and I have found that I have a very good dialogue with the public in Azerbaijan, as well as the government. An important part of a diplomat's work is to engage the people of a country as well as to engage the government. So it's never been as issue, and maybe it has been something of an advantage.

Although some ambassadors do not know the languages spoken in their posts, you intensively studied Azerbaijani in anticipation of your arrival in Baku. How important is it for ambassadors to know the language of their regions, and what advantages do you think your knowledge of Azerbaijani has afforded you?

It is something I feel very strongly about because I was a linguistics major in college. I have a great deal of interest in languages, personally. But I also think that it is increasingly important for American diplomats to actively engage a country in that country's own language. Of course, English has become an international language, and it is the language of business and technology. But in terms of actually understanding the people, the society, the culture of a country, there is no substitute for studying the language. It is the key that unlocks the thinking of a country.

In terms of showing interest in truly understanding the way the people of country think, speaking their language is simply the best way to do it. I've seen that graphically illustrated here in Azerbaijan. I, unfortunately, only had six weeks of language training before I came here. Azerbaijani, which is like Turkish, is a relatively difficult language. But in those six weeks I learned a lot, enough to be able to give speeches in Azerbaijani. I had to make a decision as I was flying over the Atlantic on my way to take up my new posting. When I got off the plane at the airport, I had to decide whether I was going to deliver my arrival speech in English or in Azerbaijani. As I said, I had only had six weeks of Azerbaijani, so I did not feel wholly confident in my language skills. But I decided this was an important gesture to show the people of Azerbaijan that we, the

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United States, are sincerely interested in the country. So I gave my first speech here in Azerbaijani. I am sure it wasn't the greatest speech, but it had the effect I wanted. People noticed that the new American ambassador, upon arriving in the country, took the time and the trouble to make an arrival statement in their language. That has resonated in my time here. It reinforced my commitment to continue learning the language. I go into work an hour early to spend an hour with an Azerbaijani teacher almost every day of the week and sometimes on weekends in order to perfect my language skills. I made it a policy to give all my speeches in Azerbaijani. I read a text because it is still difficult for me speak off the cuff in the language, but I am getting better at it. But I can certainly read a speech, and that way I don't have to go through a translator when I want to deliver an important message, a policy or a cultural message; I can deliver it directly.

I am very pleased to see that some of my colleagues at the embassy are beginning to do the same thing. My Deputy Chief of Mission gives his speeches in Azerbaijani, and my defense attaché and my USAID director have started as well. The people of Azerbaijan have noticed this. They have noticed the United States is really making an effort to communicate in their language. There really is no substitute, and in an ideal world, I would say every ambassador should be equipped to speak the language of the country in which they serve. So I encourage students to learn foreign languages.

Azerbaijan makes a significant contribution now with the Baku-Tiblisi-Ceyhan pipeline to global oil markets.

How would you characterize the way in which Azerbaijan's media portrays the United States?

It depends what part of the media, first of all. In Azerbaijan you have opposition media, you have government media, and you have a sort of in-the-middle, independent media. I think that generally the views of the U.S.—of the nation, of our culture, of our society, and of our people—are very positive.

There is, from time to time, criticism of our policies. That happens everywhere, and it is part of my job to help people understand our policies. But the country is basically pro-Western and pro-American, and so I find the public discussion of our policies, even when critical, to be a reasonable debate and reasonable questions about our policies. Part of a diplomat's job is to engage with people who don't understand or don't support us. In fact, that is probably the most important part of our job—to work with people who don't understand or support us and to perhaps gain their understanding and support for our policies.

How would you characterize the way in which Azeri youth perceive their peers in the United States and vice versa? What occasions are there for cultural exchange, and what do you think American students can and should learn from the students of Azerbaijan?

Thank you very much for highlighting that issue. In addition to the all the important policy areas where we work with Azerbaijan—on democracy, on security, on energy—another very important objective for me is to strengthen considerably the people-to-people ties between our countries because, fundamentally, those ties underlie strong relations between governments, and I believe there is significant scope to do a lot more in terms of building those ties.

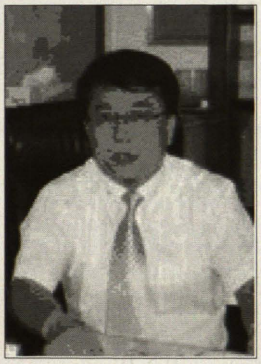
There is a huge interest on the part of young people here to better understand the United States, to engage with Americans of all levels and ranks. Young students here are very happy to engage with me, but I know that they would really welcome the chance to have direct contact and interaction with American students as well. There is a thirst and hunger for knowledge about the United States. I think in many respects the U.S. is a great curiosity. What is democracy really all about? What is the life of a young person in the U.S. really all about? In Azerbaijan, as in many parts of the world, sometimes the only things that are coming through about America are what you see on the television or movies, and that can sometimes present a skewed view of the United States.

So I am very interested in trying to build stronger contacts. We have a lot of exchange programs that send Azerbaijani students to the U.S. to study, but I don't see many American students coming this way. I think that many American students would find it fascinating to be in this country because it is relatively little known. But it is a hugely strategic part of the world, and it is a country where we share many important interests. It is a country that, because of its great oil wealth, is going to have a significant role in the future, politically and economically, if they manage the wealth wisely. So it is a country worth learning more about, and it is a country that is very open to engaging with and learning more about America.

We talked before about Islam. There is a lot of interest on the part of young people here in learning more about their religion and Islam, and I'd like to encourage American students—Muslim students—to think about engaging actively through youth groups or through Muslim organizations with their counterparts in Azerbaijan. I think that could contribute very positively to our relationship and to Azerbaijan's development as a secular Muslim democracy.

Bridging the Gap

An interview with Lee Hae-Young



Conducted and Translated By Chris Jin Gon Park

***Lee Hae-Young** is the director of the Association of the North Korean Defectors. He was dispatched to Russia by the North Korean government but entered South Korea as a defector in 1996.*

What are the objectives and activities of the Association of the North Korean Defectors?

The Association of the North Korean Defectors was established in February 1999 by former Secretary of the North Korean Workers' Party Hwang Jang-Yop and about 800 defectors in South Korea. One of the organization's chief goals is to help North Korean defectors successfully settle in South Korea or other free countries. Our ultimate aim is to end Kim Jong-Il's dictatorship, promote democracy in North Korea, and unify the two Koreas with the cooperation of defectors. Along with raising the world's awareness of the North Korean regime's iniquity, we are making efforts to protect the rights and interests of defectors and help these people adjust to their new environments. Our motto is "freedom, democracy, and unification."

Why do a considerable number of people defect from North Korea each year?

Because the regime stopped distributing food, it has been especially difficult to avoid starvation in the country over the past few years. Disillusionment with the regime, the stifling environment, and yearning for freedom and the protection of rights are other powerful reasons why so many North Koreans risk their lives to escape. Most fundamentally, all this is happening because the Kim Jong-Il regime has completely drained the country's resources out of self-interest and continues to neglect the people's livelihoods. In the mid-1990s, over three million North Koreans starved to death. North Koreans will continue to escape from their country until there is a government in North Korea that truly serves the people and guarantees freedom and human rights.

How do defectors escape their country and eventually enter South Korea or the United States? What difficulties do they face?

The only way to escape North Korea is to pass over the North Korea-China border without being caught by the guards patrolling either side, and often one has to cross the Tumen River or the Yalu River. North Koreans who are sent abroad for official work or other special reasons sometimes disappear and refuse to return.

For defectors, there are three ways to enter a country that guarantee their personal safety. One way is to ask for protection from a foreign embassy. But in most cases, defectors escape from China into some Southeast Asian country or Mongolia and are kept under the local government's surveillance until the South Korean government contacts them. All of these routes, however, are extremely risky because China is cooperating with North Korea in capturing defectors.

Why does the Chinese government arrest refugees and send them back to North Korea? Is this due to ideological ties between North Korea and China, or are there more practical reasons?

That North Korea has long been China's brother state seems to play a role in China's turning deaf ears to the voice of international community. China also fears that if the arresting of refugees stops, a massive influx of North Korean refugees into China could result and then become a factor of domestic instability.

What awaits those who are arrested and returned to North Korea? How does the North Korean government treat the families of defectors?

Failed defectors are first interrogated, and if they have met a missionary or a foreigner or tried to go to South Korea or the

United States, they are either executed or sent to a special camp for political criminals. Those who escaped the country simply for subsistence are put in a labor camp for a certain period of time. The North Korean regime closely monitors the families of defectors and in some cases also sends them to the camp for political criminals or banishes them to a southern region [to make it more difficult for them to escape the country through the Chinese-North Korean border—translator's note].

What are the conditions of North Korean refugees in Thailand? Have these conditions improved? What is the Thai government's position toward North Korean refugees?

The Thailand refugee facility currently has over 350 North Korean refugees. Each room is so overcrowded that some refugees sleep in bathrooms. Last August a man in his thirties died because he could not receive any medical assistance, but the Thai government has not acted on the deteriorating conditions of the facility, merely repeating that their hands are full with domestic problems.

Do the North Korean people believe their government's propaganda? How do ordinary people in North Korea obtain and share accurate information about the outside world?

The Kim Jong-Il regime has maintained its power and oppressed the North Korean people for decades through false propaganda. But thanks to the brave march to escape the country, there are now 10,000 North Korean defectors in South Korea and hundreds of thousands in China, and these people are sending real-time news of the outside world to people in North Korea by various means. Therefore the North Korean people no longer believe the propaganda, and the people's anger is increasing day by day, though they cannot publicly express it. Despite tremendous effort, the regime has been unable to cut this flow of information into the country.

What problems do refugees have when they try to settle in South Korea? Does the South Korean government accommodate North Korean refugees?

The issues of families left behind in North Korea, the lack of independent economic standing, and health problems are the most common difficulties that refugees face. Over the past seven years, over 2,000 North Korean refugees have entered South Korea every year, raising problems and confusion that the government and the society are still struggling to deal with.

Are there problems with South Korea's present North Korea policy, the so-called "Sunshine Policy"? In your opinion, what would be the best way to achieve the reunification of the two Koreas?

Reunited: North Korean Yun Young-Seob 73, hugs his sister Yun Bok-Seob, 68 of South Korea during a family reunion meeting at Mountain Kumgang on October 17, 2007 in North Korea. Hundreds of South Koreans dared to cross the heavily-armed border to meet relatives in North Korea whom they have not seen since the Korean War. (Photo by Pool/Getty Images)

I believe that the South Korean people will more objectively assess the current North Korea policy after the reunification. As a person who had actually lived in North Korea and knows Kim Jong-Il's true nature, I do not think trying to induce the Kim Jong-Il regime to move toward the reunification will work. The collapse of Kim Jong-Il's dictatorship, the establishment of a democratic government in North Korea, narrowing the gap between the two Koreas, and the establishment of a unity government in the end—these are the necessary steps.

What role do North Korean defectors have in South Korea today? Might that role change if the Koreas were to reunify?

North Korean defectors reveal the true situation in North Korea to the whole world and play an important role in shaping policies and activities related to North Korea. I'm also convinced that defectors will become the fertilizer of the reunification process as people who have the experience of overcoming the gap between the two Koreas. After the reunification, defectors should have the right to return to their homeland without any international or political interference, and, as people who have experienced democracy and advanced culture in South Korea, they will become pivotal to reconstructing the North.

Japan's Consensus Builder

New prime minister to pursue cautious agenda

By Bruce Klingner

Bruce Klingner is Senior Research Fellow for Northeast Asia at the Asian Studies Center of The Heritage Foundation.

Yasuo Fukuda, selected on September 26 by Japan's ruling Liberal Democratic Party (LDP) to replace Shinzo Abe as prime minister, is an experienced, if uninspiring, consensus builder. While Fukuda's principal opponent, Taro Aso—an outspoken hawk on foreign policy—would have risked alienating Japan's neighbors and the opposition Democratic Party of Japan (DPJ), Fukuda will be more accommodating toward North Korea and China and will be willing to reach across the aisle to the DPJ.

Compared to his predecessor, Fukuda will be less inclined than Abe to press for removing legal restrictions to allow Japan to assume a larger regional security role, a major change in Japanese policy advocated by Washington, but this will not unduly impact the U.S.–Japan relationship.

To regain the trust of the electorate that punished the LDP in July's upper house election, the new prime minister will have to focus on domestic economic issues. The length of Fukuda's tenure will depend on his ability to balance conflicting LDP demands for pork barrel spending to appease alienated rural constituencies—once the party's stronghold—and the need for prudent economic policy that will improve Japanese competitiveness without growing the deficit.

Abe's Fall

Fukuda's selection was necessitated by Shinzo Abe's September 12 announcement of his intent to resign as prime minister "to take responsibility for causing political confusion," a reference to the LDP's humiliating loss of the upper house of parliament in July 29 elections. Though Abe's announcement was not surprising, the timing was, coming just two days after his September 10 pledge to fight staunchly for renewal of anti-terrorist legislation critical to the U.S.–Japanese alliance.

The LDP suffered from the electorate's anger over the government's loss of 50 million pension records and a series of scandals that led to the resignations or suicides of several cabinet ministers. The scope of the LDP's defeat in the July election, especially in its rural strongholds, reflected a deeper anguish over the disparate pain imposed by the economic reforms of Abe's predecessor, Junichiro Koizumi. A disenfranchised countryside felt bypassed by the national economic upturn and punished the LDP for cutting public works projects and tax transfers to local governments.

The LDP suffered from the electorate's anger over the government's loss of 50 million pension records and a series of scandals that led to the resignations or suicides of several cabinet ministers.

A Course Correction, Not a Reversal

Though some expect drastic policy changes from the reputedly dovish Fukuda, he will likely maintain most of his conservative predecessor's policies, with some adjustments. The most significant will be the reprioritization of Abe's signature issue: pursuing the constitutional and legal revisions necessary for Japan's self-defense forces to assume new missions and for Japan to play a larger security role regionally and internationally. Fukuda is a proponent of a strong U.S.–Japanese alliance, but he does not share Abe's zeal for using Japan's armed forces as a policy instrument or for forming a "broader Asia"

partnership of democracies—Japan, India, the U.S., and Australia—to contain China.

While Fukuda's foreign policy will not be as U.S.-focused as his predecessor's, it would be a mistake to see this as a repudiation of the U.S.–Japan bilateral relationship. Fukuda has vowed to renew the Anti-Terrorism Special Measures Law which allows Japanese tankers to refuel Coalition naval forces in the Indian Ocean that support operations in Afghanistan. The United States sees the legislation as critical to continuing the global war on terrorism and a test of Tokyo's relationship with Washington. But the prime minister is operating in a more restrictive domestic political paradigm brought about by his party's loss in the upper house election.

Ichiro Ozawa, head of the DPJ, will not back down from his opposition to the refueling mission. Ozawa sees the legislative impasse as an opportunity to force the dissolution of the lower house for a new election, and an electoral win would enable his party to select the next prime minister. The LDP's two-thirds majority in the lower house allows it to override a DPJ veto in the upper house, but this will be a last resort for Fukuda, who undoubtedly hopes to avoid confrontation on the issue. A lower house veto override is only possible after a 60-day delay, ensuring that there will be a gap in Japanese participation after the November 1 expiration of the current law.

Changing of the Guard: Former Chief Cabinet Secretary Yasuo Fukuda (R) waves after being elected as new LDP president to succeed Prime Minister Shinzo Abe at the headquarters in Tokyo, 23 September 2007. Japan's ruling party selected the dovish veteran Fukuda as the country's next prime minister, seeking safe hands after a disastrous year under conservative Shinzo Abe. The Liberal Democratic Party (LDP) is reeling from a landmark election defeat in July, and Fukuda will immediately face a tough battle in parliament, where a resurgent opposition is pushing for snap general polls. (TORU YAMANAKA/AFP/Getty Images)

Reaching Out to Japan's Neighbors

Fukuda will continue Abe's efforts to repair Japan's relations with its neighbors, which were strained by former Prime Minister Junichiro Koizumi's visits to the controversial Yasukuni Shrine. Fukuda has vowed not to make an official visit to the shrine, which other Asian nations say honors past Japanese militarism. A majority of the Japanese public saw Koizumi's visits as problematic and will likely welcome Fukuda's restraint.

More problematic, however, will be Fukuda's vow to show greater flexibility in his administration's approach to North Korea. Abe's firm stance on the abductee issue was derided by the academic intelligentsia as marginalizing Tokyo's role in the Six-Party Talks on North Korea's nuclear program. But Abe's position reflected the will of the populace, which consistently identifies resolving the kidnappings as Japan's foremost foreign policy objective.

Although Fukuda will probably not announce any change in policy on the abductee issue, he may be more willing to accept less from North Korea than Abe. This could be a step toward the normalization of diplomatic relations with Pyongyang. Whether the Japanese electorate will accept it is another question. Barring a major spontaneous shift in the public mood, the Fukuda administration may have to undertake a significant public relations effort to convince the public that the Six-Party Agreement's provisions on the abductions are sufficient.

Mixed Signals

The Fukuda administration faces conflicting objectives in the realm of economic policy. LDP leaders will press for pump-priming initiatives to alleviate the impact that Koizumi's economic reforms have had on rural constituencies. Panicking party leaders have called for increased funding in an effort to regain voter support before the 2009 lower

War Weary: A peaceful protestor hold candles during a demonstration demanding the withdrawal of Japan's support for the Iraq War in front of the prime minister's official residence in Tokyo on September 11th, 2007. The rally was planned purposefully to fall on the sixth anniversary of terrorists' attack in the US. (Yoshikazy Tsuno/AFP/Getty Images)

house election. Fukuda, however, has advocated cutting back on public work projects and continuing economic reform. But many economists are now worried that the siren song of increased government spending will prove hard to resist.

Fukuda's intentions remain unclear; he has come down on both sides in recent statements. This month, Fukuda tempered his stance on reform, saying that the government must "carefully address problems arising from reforms" to alleviate their negative impacts. Efforts to expand spending, however, will face opposition from the finance ministry and international investors, who favor fiscal restraint at a time when the public debt remains high. In any case, he will have to operate within a narrow set of constraints and thus could find it difficult make big transfers to the rural regions.

Conclusion

Slow and steady will characterize Fukuda's administration, with quiet consensus building substituting for what would have been a more confrontational approach by Taro Aso. Fukuda's selection reflects a reassertion of control by LDP faction chiefs, who saw the new prime minister as a greater break from the unpopular sAbe than Aso and see the need to rebuild public trust. The appointment—the second selection of a prime minister based on only the popular mandate of the 2005 lower house election—has raised perceptions of a return to backroom politics, generating some support for Ozawa's call for a snap lower house election. Whether Fukuda acquiesces remains to be seen, but he has shown some preliminary interest.

Lest Fukuda follow the path of Abe, he must be seen as making rapid progress in fixing the government's loss of pension records and in improving conditions in rural constituencies. To broaden support, the prime minister is likely to compromise on the gains his predecessors made in asserting a new regional security role for Japan. Abe's departure less than a year after assuming office—and the chance that Fukuda may fair no better—raises concern that Japan will return to the pattern of ineffectual prime ministers serving brief terms that prevailed through much of the 1990s. A revolving-door leadership would have serious consequences: political gridlock, delays in necessary but painful economic reforms, and marginalization in international relations. It also would raise questions in Washington over Japan's role as an ally.

America's most pressing priority in the current political turmoil is to secure renewal of the anti-terrorism legislation. However, U.S. policymakers should be careful about using the legislation as a measure of the countries' overall relationship. Context is important, and the political scene in Japan has changed dramatically since the July elections. Because the opposition DPJ intends to use this legislation to induce a political confrontation with the LDP, Washington runs the risk of needlessly straining the broader relationship with Tokyo. Should that happen, the U.S. could wind up undermining its long-term objective of having Japan assume a larger security role in northeast Asia as a bulwark against the military threats of North Korean and China.

If (Yasuo Fukuda) cannot reverse the LDP's flagging public approval soon, the Japanese ship of state may see another captain forced to walk the plank.

Fukuda's quiet professionalism will be severely tested early and often. He must overcome perceptions that he is simply a caretaker prime minister beholden to LDP factional leaders. If he cannot reverse the LDP's flagging public approval soon, the Japanese ship of state may see another captain forced to walk the plank.

Making the Grade

How to reform and improve No Child Left Behind

Before the end of this year, Congress must decide whether to renew, reform, or scrap No Child Left Behind (NCLB). This piece of legislation—on which President Bush is resting his entire education policy legacy—was passed in 2001 with overwhelming bipartisan support, but now finds itself besieged by critics on both sides of the political spectrum. In fact, just in this issue of *The Politic* we have pieces from both liberals and conservatives that offer harsh criticism of the law. But although NCLB contains some significant flaws that have hampered its effectiveness thus far, it would be a mistake to get rid of the act all together.

The virtue in No Child Left Behind is that it offers something that has been woefully absent from federal education policy: accountability. Beginning with Sen. Robert Kennedy's unsuccessful attempt to require districts to send in test-score data as part of the Elementary and Secondary Education Act of 1965, politicians in Washington have failed to add a measure to accountability to ever-increasing federal education spending.

The unfortunate result of this failure has been rising spending with minimal results: total K-12 education spending—including state and local funding—doubled between 1990 and 2003 from around $250 billion to $500 billion, while reading test scores according to the National Assessment of Education Progress (NAEP) have stayed essentially flat. Clearly the problem with American public schools is not a lack of money.

NCLB attempts to fill this accountability gap by requiring schools to take annual tests to measure students' proficiency in reading and math—the basic skills necessary for learning in all other subjects—and forcing schools that routinely fail to bring up scores to take corrective action, while rewarding those that make progress. Corrective measures include offering free outside tutoring, allowing students to transfer to better-performing public and charter schools, and ultimately the restructuring or closing of the school if failure persists for an extended period of time—not a gradual reduction in funding as many critics of NCLB claim.

The problem is that states are given too much flexibility in writing their own yearly tests on which progress or failure is judged. This is akin to students being able to write their own final exams, knowing full well the consequences of their grade. As a result, states write tests that inflate scores and shield failing schools from corrective action. In Mississippi for example, 89 percent of fourth-graders were proficient readers under its NCLB state-written exam in 2005, while according to the NAEP, the "gold standard" in education data, only 18 percent hit the proficient mark. How can the NCLB accountability system operate effectively if the data is so skewed? A reformed NCLB must have either a single national yearly assessment test, or rigorous oversight of state tests to ensure that they are up to standard.

Washington and state capitals can enact many different policies to break the education status quo, but the accountability system of No Child Left Behind is a step in the right direction.

Other problems with No Child Left Behind include a lack of serious enforcement. School districts frequently fail to inform parents with children in failing schools of their ability to transfer out, and consequently a dismal percentage of eligible parents choose to do so. The same is true with free tutoring—schools either don't let parents know of their free tutoring options, or only offer in-house tutoring services from the same teachers that have been chronically failing their children. The irony is that Secretary of Education Margaret Spellings is aware of these compliance issues, but chooses to avoid incurring the wrath of states and local school districts.

It is clear that for the amount of money that the United States spends on education, its public schools aren't making the grade. Washington and state capitals can enact many different policies to break the education status quo, but the accountability system of No Child Left Behind is a step in the right direction. With its reauthorization around the corner, reforming NCLB should be given the utmost priority, and any serious attempt to strengthen the law must address the issues of assessment standards and general enforcement. The United States owes it to those children who are still left behind.

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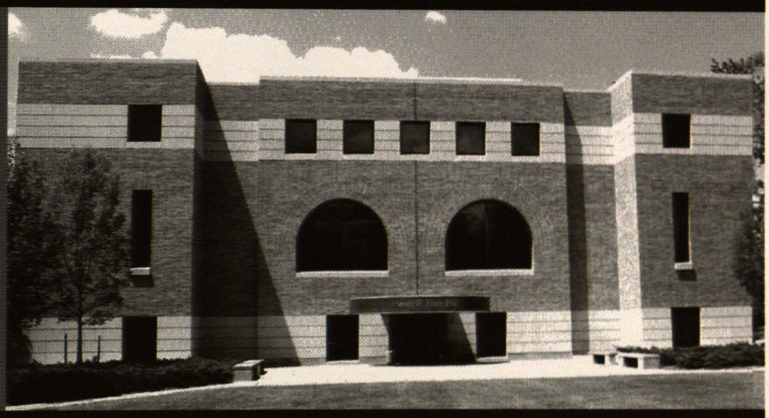

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